

ARTICLE 0.1 - TITLE

The official title of this Agreement shall be "The Collective Agreement between the Faculty Association and the Board of Governors of Laurentian University". Hereinafter, this title shall be referred to as the Agreement.

ARTICLE 0.2 - OFFICIAL LANGUAGES

1. Both the English and French versions of the Collective Agreement shall be official and definitive versions. Both parties may use either the English or the French version in any proceedings arising out of the Collective Agreement, and shall apply the version of the Collective Agreement in which formal grievance/arbitration proceedings were initiated.
2. The Parties agree to cooperate to have the Collective Agreement translated within ninety (90) days from the version negotiated at the table into the other official language of Canada. The Parties will share equally in the cost of the translation.

ARTICLE 0.3 - DEFINITIONS

For the purpose of this Agreement the following words shall bear the definition indicated herein except as otherwise provided in this Agreement:

1. Laurentian University of Sudbury Act shall mean the Laurentian University of Sudbury Act, being Chapter 151 of the Statutes of Ontario for the year 1960 as amended by Chapter 154, 1961-62.
2. University shall mean Laurentian University of Sudbury.
3. Employer or Board shall mean the Board of Governors of Laurentian University, or its designate, as provided for in the Laurentian University of Sudbury Act.
4. Association or LUFA shall mean the Laurentian University Faculty Association, certified to be the exclusive Bargaining Agent for the Full-time and Sessional Faculty of the University pursuant to the various relevant decisions of the Ontario Labour Relations Board.
5. Parties shall mean the Board of Governors of Laurentian University of Sudbury and the Laurentian University Faculty Association.
6. Senate shall mean the Senate of Laurentian University of Sudbury as constituted in the Laurentian University of Sudbury Act.
7. President shall mean the President of Laurentian University of Sudbury or the President's designate.
8. Vice-President (VP, Academic) shall mean the Vice-President, Academic (Anglophone Affairs) or Vice-President, Academic (Francophone Affairs) as appropriate or their respective designates.

9. Dean shall mean the Dean of a Faculty duly appointed or the Dean's designate.
10. Faculty shall mean any body identified as such by the Senate of Laurentian University of Sudbury, and with the approval of the Board in accordance with the Laurentian University of Sudbury Act.
11. Director of the Library shall mean the officer in charge of the University Library.
12. Chairperson/Director shall mean the Chairperson/Director of any teaching department/professional school/library department.
13. Academic unit head shall include the Chairperson/Director of a Department/Professional School, and the head of any other unit, which the parties have agreed, is equivalent to a teaching/library department;
14. Member or Employee shall mean a Member of the bargaining unit for whom the Association is certified as the exclusive bargaining agent except where the context requires otherwise.
15. Unless specified in relevant Articles within the Agreement, the terms Professional Librarians and professional librarianship shall mean Professional Librarians and Archivists, and professional librarianship and archival management, respectively.
16. Sessional Member shall mean a Member hitherto a Member of the Bargaining Unit designated by the 28 March 1994 OLRB Certificate and now a Member of this Merged Bargaining Unit.
17. Academic Year shall mean the twelve (12) month period commencing July 1 and ending June 30 of any given year and includes the Fall, Winter, and Spring Terms as per the University Calendar, even where the Spring Term extends beyond June 30.
18. Session shall mean either or both Terms of the Winter Session (from September to December or from January to April) or the Spring Session (from April to July) as per the Laurentian University Calendar.
19. Course credits shall mean the number of credits assigned to a course by the University Senate and as indicated in the Laurentian University Calendar.
20. Course credits that contribute toward Sessional Seniority shall mean credits arising from courses for which the Sessional Instructor's name appears on the Laurentian University course masters, grade reports, teaching evaluations, or letters of appointment and excludes courses offered by the Centre for Continuing Education, except for non-distance education courses that are offered on the Laurentian campus.

ARTICLE 0.4 - COPIES

1. The Board shall, within 30 days after the respective bargaining committees have approved the translation of the Collective Agreement, provide at no charge, a copy of this Agreement in both official languages to each Member of the Association, and upon request to individuals who were employed as Sessional Instructors during the previous three years.
2. The Board shall also issue, at no charge, a copy of the Agreement to each new appointee, whose appointment falls within the Bargaining Unit, no later than with the offer of appointment.
3. The cost of producing any additional copies shall be borne by the party that requests them.

ARTICLE 1.10 - PURPOSE OF THE AGREEMENT

1. It is the purpose of this Collective Agreement:
 - a) To set forth terms and conditions relating to employment, remuneration and benefits.
 - b) To maintain a harmonious relationship between the Association and the Board by providing amicable means for settling differences which may arise between them from time to time.
 - c) To encourage the efficient and responsible conduct of the life and work of the University.
 - d) To foster a working environment which motivates Members to achieve the objects and purposes of the University.

ARTICLE 1.20 - THE OBJECTS AND PURPOSES OF THE UNIVERSITY

The objects and purposes of the University, as set out in the Act, are:

1. The advancement of learning and the dissemination of knowledge; and
2. The intellectual, social, moral and physical development of its members and the betterment of society.

The parties agree to cooperate in the pursuit of these objects and purposes.

ARTICLE 1.21 - ACADEMIC FREEDOM

1. In addition to their legal rights as citizens, Members have the right to academic freedom. Academic freedom is the right to search for truth, knowledge and understanding and to express freely what one believes. The University as an institution and the community of its scholars have a duty to protect and defend the search for knowledge and truth by all that enquire,

teach, offer professional library service and learn under its auspices. They shall be free to carry out research and to publish its results; free to teach, to discuss and to criticise both the University and the wider society it serves. However, in doing so they shall maintain the proper academic tradition of reasonable discussion.

2. Academic freedom entails the obligation to base all research and teaching on a responsible search for truth and knowledge. It requires the fulfilment of responsibilities to other members of the teaching and learning community. It requires the acknowledgement of the work of others and the acceptance of responsibility for one's own beliefs and utterances. Academic freedom does not confer legal immunity.

3. The Parties agree to safeguard, as far as reasonably possible, the privacy of information, whether on paper or in electronic form, that is exclusively personal to and in the possession of, individual Members.

ARTICLE 1.22 - NO DISCRIMINATION

1. The parties agree that there shall be no discrimination, interference, restriction or coercion exercised or practised with respect to any Member in regard to salaries, rank, appointment, promotion, tenure, reappointment, dismissal, leaves, fringe benefits, or any other matter arising from this Agreement, by reason of age (except for retirement as provided for in this Agreement), race, language (except where the lack of language competence would clearly prevent carrying out the required duties), creed, colour, ancestry, ethnic or cultural background, national origin, political or religious affiliation or belief, sex, sexual orientation, marital status, family relationship, personal or social life style or behaviour, clerical or lay status, physical handicap (except where the physical, emotional or mental condition would clearly prevent the carrying out of the required duties). The parties agree, however, that no Members or person acting as an officer of the University shall take part in formal discussions or vote with respect to the determination of any term or condition of employment of a member of their immediate family.

2. The choice of the most competent person for the post as described in a formally approved job description or a formally approved advertisement will not constitute discrimination.

3. In the case of the evaluation of candidates for appointment, renewal, tenure and promotion, the criteria adopted must not systematically discriminate against members of designated groups and shall be periodically reviewed to ensure that work done predominantly by members of designated groups is not undervalued.

4. There shall be no discrimination with respect to any Member arising from membership or activity in the Association, or from a failure to join or participate in the Association.

5. This article shall not preclude any action that has as its object the

equitable representation of designated employment equity target groups throughout the academic community.

ARTICLE 1.23 - WORKING ENVIRONMENT

1. The Board acknowledges its responsibility to maintain facilities, services and general working conditions, which support the effective discharge by Members of their responsibilities as specified in Article 2.00. The Board may determine the manner in which and the level at which facilities and services are provided to Members, on the understanding that the Board will endeavour to maintain reasonable levels of working space, secretarial and other support services, including telephones, computing, printing, duplicating and library services, technical services and teaching and research assistance. The reasonableness of levels of services may be measured by consideration of the financial resources of the University.
2. On an annual basis all Members, including retirees, upon request, will be supplied with a photo id. library card at no cost to them except if they require a replacement for a lost card. The charge for replacement will be \$10 per card.

ARTICLE 1.24 - HEALTH, SAFETY AND SECURITY

1. The employer recognises a responsibility to provide an environment intended to protect the health, safety and security of employees as they carry out their responsibilities. To that end, the Employer agrees to establish a Joint Health and Safety Committee, which will independently consider matters concerning the health and safety of employees and students. This Committee shall include one representative of all unionised groups in the University (including LUFA), as well as one representative of the Science/Engineering Safety Committee and one member from the Administration with power to co-opt other members.

The Committee's work will include an examination of procedures and physical facilities brought to its attention, as these relate to health, safety and security.

2. The Association shall observe and assist in the implementation of rules adopted to protect the health and safety of employees and to maintain the security of persons and premises.

ARTICLE 1.25 - BILINGUALISM

1. The University is committed to the fulfilment of its role as a bilingual institution of higher learning, in accordance with the Laurentian University of Sudbury Act. The University and the Faculty Association pledge themselves to the maintenance and promotion of both the English and the French languages and cultures.
2. Consistent with the commitment stated in paragraph 1, the University recognises the right of all Members to communicate directly (verbally and in

writing) with all academic and administrative services of the University in the official language of their choice for all official transactions.

3. The two parties shall have the right to be heard in either of the official languages, and to require the translation of any official materials.
4. The two parties agree to make every effort to provide a translation of non-official documents where either party requires such.

ARTICLE 1.26 - EMPLOYMENT EQUITY

1. Laurentian University and the Laurentian University Faculty Association support the principle of employment equity as defined by Provincial and Federal Laws and the Senate/Board approved Policy on Employment Equity.
2. Employment Equity
 - a) The parties pledge themselves to work to increase the proportion of faculty members who are members of the four designated employment equity groups (women, native people, persons with disabilities and members of visible minorities) to an equitable level in each discipline.
 - b) To determine an equitable proportion of members of the four designated employment equity groups for each discipline, the Parties shall consider among other factors the number of doctoral candidates in Canadian universities as revealed by Statistics Canada data.

ARTICLE 1.30 - RECOGNITION OF THE BARGAINING UNIT

The Board recognises the Association as the exclusive Bargaining Agent for the Bargaining Unit(s) defined in the OLRB Certificates of 9 July 1979, 28 March 1994, and 31 October 1995 (which are attached as appendixes to this Memorandum of Agreement) and any amendments to these certificates.

ARTICLE 1.31 - RIGHTS AND PRIVILEGES OF THE ASSOCIATION

1.
 - a) The Board agrees to provide the Association with the use of a serviced office, in an academic area of the University.
 - b) The Board agrees to provide to the Association room L-303 (not including L-305) as a common room for use by Members, Senior Administrators and their guests.
2. The Association shall have access to the internal postal service of the University. Normal practice of charging for external mail will apply.
3. The Board shall permit the Association to use University premises as meeting rooms on the same basis as University organisations.

4. The Board will allow the Association to use University printing, computer, and audio-visual facilities at the same rate as University users, subject to availability.
5. The University agrees to continue to extend a monthly account, due when rendered, to which charges incurred by the Association shall be debited.
6. The Association may request, prior to May 8 of the preceding academic year, that Members be relieved by the appropriate Dean/Director of the Library of up to two-thirds of a teaching workload, or its equivalent in the case of the Library, during the course of an academic year. Such requests shall not be unreasonably refused. In any one academic year no more than three full-course-equivalent reductions will be granted in total.

If, on the recommendation of the Dean/Director of the Library concerned, a replacement is required to take on the duties of which a Member has been relieved, the Association will reimburse the University for payment of the replacement to a maximum of one (1) overload payment for each full-course-equivalent reduction for which a replacement is required.
7. The President of the Association, or someone designated by the President of the Association, and a second Member designated by the President of the Association, shall continue to be non-voting members of the Board of Governors.
8. The President of the Association, or someone designated by the President of the Association, shall continue to be a non-voting member of the Finance Committee of the Board of Governors.
9. The Board agrees to continue current practices with respect to release time for Association activities provided these practices are known and reasonable.
10. The Association shall maintain its current representation of one Member on the University Parking Committee.
11. The President of the Association or someone designated by the President, and two additional Members designated by the President of the Association, shall continue to be voting members of the University Pension Committee. Given the importance of pensions, on substantive matters, the LUFA Board has the right to ratify the recommendations of its representatives.

ARTICLE 1.32 - DUES CHECK-OFF

1. No Member shall be required to join the Association as a condition of employment. Except as hereinafter specified, the Employer shall deduct once monthly during the term of this Agreement from the salary of each Member of the bargaining unit monthly dues or other assessments for

general Association purposes uniformly and regularly payable by a Member of the Association authorised in accordance with the Constitution and by-laws of the Association and certified in writing to the Employer by the Association.

2. At the commencement of the Agreement, the Association shall advise the Employer in writing of the amount of its regular monthly membership dues. Thereafter the Association shall advise the University in writing of any change in the amount of regular monthly membership dues, such notice to be given at least thirty (30) days prior to the effective date of such change. The Association shall limit the change in membership dues to no more than three times per year.

3. Except as hereinafter specified, the amounts so deducted shall be remitted to the Association by the 15th of the month following the month in which the deductions are made together with a list specifying the names of those Members of the bargaining unit from whose salaries the aforementioned deductions have been made and the individual amount of each member's deduction. The Employer shall with the list aforesaid provide the names of all Members who have ceased to be employees of the University.

4. The Employer shall deduct from the salary of each Member of the bargaining unit who obtains an order from the Ontario Labour Relations Board under section 47 of the Labour Relations Act of Ontario (directing that the said Member is not required to pay monthly dues or other assessments to the Association because of his religious conviction or belief) an amount equal to the monthly dues or other assessments for general Association purposes uniformly and regularly payable by a Member of the Association and shall remit said amount on behalf of the said Member to the University's Scholarship Funds.

5. In the event the Association wrongfully receives dues hereunder on account of an employee who is not a Member of the Association, or if on account of a Member of the Association but in excess of the amount required, the Association agrees to reimburse or credit the employee as the case may be for the amount so received. The Association shall indemnify and save harmless the University against any action arising out of the wrongful deductions of money for Association dues resulting from the Association's instructions and the refusal of the Association to reimburse the employee, within 60 days of the lodging of their claim.

6. At the time that Income Tax T4 slips are provided to each Member by the University, the University shall indicate on the T4 slips or separately in writing to each Member the deductions from his salary under this article.

ARTICLE 1.33 - EMPLOYMENT OF NON-MEMBERS

1. The Board agrees that, except as otherwise provided for in this article, it will not employ Non-Members to teach in the programs of/or offer professional library service in the University. Membership in the bargaining

unit is defined in Article 1.30 Recognition.

2. Notwithstanding the generality of 1. above, nothing in this Agreement is intended to prevent the Board from assigning a teaching load to individuals that are precluded from membership in the Bargaining Unit by virtue of their position as described in the OLRB Certificates designated in article 1.30 above. The Association will exercise reason in entering into Memoranda of Agreement to allow the assignment of occasional teaching loads to qualified individuals who hold senior administrative posts within the University and whose official functions could reasonably be deemed to be inconsistent with Association Membership.

3. As per the OLRB Certificate, Visiting and Exchange professors/librarians may work outside the bargaining unit.

4. Notwithstanding 3, above, Non-Members of the Bargaining Unit must not participate in decisions by the unit on personnel matters except as specified in this agreement.

ARTICLE 1.40 - RECOGNITION OF THE EMPLOYER

1. COMPOSITION

Laurentian University of Sudbury is incorporated under the Statutes of the Province of Ontario, 1960, Chapter 151 as amended by 1961-62, Chapter 154.

2. RECOGNITION

The Association recognises that the Board has retained and shall possess and exercise all rights and functions, powers, privileges and authority that the Board possessed under the Act of Incorporation prior to the signing of this Agreement with the Association, excepting only those that are clearly and specifically relinquished or restricted in this Agreement, or modified by statute. The Board undertakes that all rights and functions, powers, privileges and authority shall be exercised in a manner consistent with the provisions of this Agreement.

ARTICLE 1.41 - CORRESPONDENCE

In conformity with section 113 of the OLRA, except where otherwise expressly provided in this Agreement, notices required to be given under the provisions of this Agreement shall be in writing and shall be sufficient either if addressed to the appropriate recipient and sent by campus mail or Canada Post, or if delivered to the appropriate recipient personally with a signed receipt required.

Notices to and official correspondence with the Association shall be addressed to the attention of the President of the Association or the President's designate.

Notices to and official correspondence with the Employer shall be addressed to the Vice-President, Academic.

ARTICLE 1.42 - INFORMATION

1. The parties recognise that their mutual goals stated in Article 1.1 can only be realised if both parties have access to necessary information required for effective collective bargaining and the proper administration of this Agreement. Both parties agree to use professional discretion in dealing with this information. This information will be provided in hard copy, and where feasible, on computer diskette.

2. To that end the Board undertakes to provide the Association with the following, at the times indicated:

- a) In October of each year, a list showing the name, rank, salary, and type of appointment of each Full-time Member of the Bargaining Unit. For Members designated as 'On Leave', the list shall indicate the type of leave that the Member is on.
- b) In October of each year a list of all limited term appointments and the reasons for the appointment categorised according to Article 2.21 Sections 11a to 11e.
- c) In October, February and May of each year a list showing the name, courses taught on overload/professional library service rendered and amount of money paid to each Full-time Member of the Bargaining Unit during the current academic session.
- d) In October, February and May of each year a list showing the name, courses taught on overload/professional library service rendered and amount of money paid to each Non-Member during the current academic session.
- e) In October of each year a statement of the number of Full-time Members of the Bargaining Unit that did not expend all of the professional allowance available to them as provided in Article 4.52, and the total amount of funds left unexpended as of June 30 of the previous year.
- f) The letters of appointment of all new Full-time Faculty Members who accept employment with the University subsequent to the signing of this Collective Agreement by both Parties shall be supplied to the Faculty Association within fifteen (15) days of receipt of the said executed letters of appointment.
- g) A copy of the contracts issued to all Full-time Faculty Members who have been granted sabbatical leave or any other kind of leave. Such contracts shall be supplied to the Faculty Association within fifteen (15) days after acceptance by the Member.

- h) Copyright contracts per Article 4.72.
 - i) In October of each year, the total salary allocation and median salary for:
 - i) Senior administration;
 - ii) Part-time employees outside the Bargaining Unit by unit;
 - iii) Any other teaching or research employees outside the bargaining unit;
 - iv) Library employees outside the bargaining unit.
 - j) A copy of the course master and updates to the course master when they become available.
 - k) A copy of the University's annual audited financial statements and supporting schedules, following approval of these by the Board of Governors.
 - l) Employment equity data including the number of women and men applying for each advertised position, the gender, highest degree and years of experience for each applicant chosen for the interview list. Such information will be forwarded to the Association by September 30 of each year.
 - m) The Employer shall provide the Association with the letters of appointment of all Sessional Instructors who accept employment with the University subsequent to the ratification of this Collective Agreement by both parties. Such letters of appointment to be supplied to the Association within fifteen (15) days of receipt of said executed letters of appointment.
 - n) The Employer shall in October, February, and May of each year provide the Association with a list showing the name, salary, establishment status, and courses taught that contribute to the Sessional Seniority of each Member of the Bargaining Unit that is employed during the current academic session.
 - o) Copies of advertisements for faculty positions shall be sent to LUFA once they have been approved by the Office of the Vice President, Academic.
 - p) Copies of any mailings forwarded by the Board to Members, to be sent to the Association at the same time as the general mailing.
3. The Association agrees to provide the Board with:
- a) Copies of any mailings made by the Association to all its Members, to be sent to the Employer at the same time as the general mailing.
 - b) Copies of any statements or representations made or to be made publicly by the Association.

- c) An up-to-date copy of the constitution of the Association.
 - d) An up-to-date list of the Executive of the Association.
4. Each member, who has not previously done so, shall when requested supply the Personnel Office with one copy of his/her birth certificate (or other equivalent documentation attesting to the date of birth).
5. It is understood that this section shall not be construed to require either party to supply any information that is confidential with respect to matters relating to labour relations.
6. Each party agrees to inform the other party when statistical information concerning Members is released as required by law or in response to a request from a government body or agency, and further, to inform the other party of the nature of the information requested or released. Except when required by law, the Board agrees not to release any individually identifiable statistical data in aggregate form concerning Members to any person, body, agency, and institution without the written consent of the Association.
7. One (1) individual shall be chosen by each party to coordinate the exchange of information and to act as liaison between the two parties.
8. Nothing in this Article is meant to preclude either side of this Agreement from making reasonable requests for additional information from time to time. Both parties agree to fulfil such requests.

ARTICLE 1.43 - JOINT CONSULTATIVE COMMITTEE FOR THE ADMINISTRATION OF THE AGREEMENT

1. The President of the Association or the President's designate and the Vice-President, Academic or the Vice-President, Academic's designate shall act as liaison between the two parties as required by this Agreement as well as co-ordinate and exchange information as per Article 1.42.
2. When either party deems it advisable, its representative may be accompanied by one (1) or more advisers.
3. The parties are authorised from time to time to enter into memoranda of agreement with regard to the Collective Agreement. The parties may from time to time authorise other representatives, in addition to the Vice-President, Academic and the President of the Association to sign these memoranda of agreement.
4. The parties agree to form a Joint Consultative Committee for the Administration of the Agreement, composed of three (3) representatives of each party as follows: the President of the Association and the Vice-President, Academic or their respective designates; one officer of LUFA and one Dean appointed by the Vice-President, Academic; and one appointee from each party.

5. The Committee shall attempt:
 - a) To maintain and develop a spirit of cooperation and mutual respect between the parties.
 - b) To facilitate better working relationships between the Board and the Association and its Members.
 - c) To discuss, review, and make recommendations to the parties on matters of concern to either party.
6. The Committee shall meet once in November and once in February and at other times when deemed useful or necessary by mutual agreement of the parties.
7. The Committee shall be chaired in alternation by a representative of the Board and a representative of the Association. The chair shall be responsible for preparing and distributing the agendas and preparing minutes of meetings.
8. The Committee shall determine its own procedures subject to the provision that a quorum shall consist of at least two (2) representatives of each party.
9. The Committee shall not have the power to add to or to modify the terms of this Agreement.

ARTICLE 1.50 - EXISTING PRACTICES

1. Prior to modifying or discontinuing any working conditions not covered by the Agreement but possessed by all Members of the bargaining unit or by a group thereof, the Board agrees to give notice of such change or discontinuance to the Association.
2. The Association shall be afforded the opportunity to make a representation to the Board through the Joint Consultative Committee for the Administration of the Agreement prior to the implementation of any change as defined in paragraph 1 of this Article. After such representation, the Board has the right to proceed providing the change or discontinuance is urgent and reasonable.

ARTICLE 1.51 - MODIFICATIONS TO THE LEGAL STATUS OF THE UNIVERSITY

1. Amendment To The Act

Any future proposals by the Board to amend the Laurentian University of Sudbury Act, 1960 shall be presented to the Legislative Assembly of the Province of Ontario, after consultation with the Association.

2. Amalgamation, Consolidation, Merger Or Expansion Of The University

- a) In the event of a merger or amalgamation or a transfer of jurisdiction, the provisions of the Labour Relations Act of Ontario shall apply, particularly sections 62 and 63.
- b) This Agreement shall bind the transferees or assignees of the University or of the Association.

ARTICLE 2.00 - RIGHTS, RESPONSIBILITIES AND DUTIES OF ACADEMICS

The Members of the bargaining unit have rights, duties and responsibilities which derive from their positions as teachers/professional librarians and scholars working within the University community, and which reflect the reasonable expectations of the Members, the University community and the contractual expectations of the Employer.

Members have the right to engage in the following activities:

- A. Teaching / Professional Librarianship / Archives Management
- B. Scholarly Activity
- C. University Governance and Administrative Duties
- D. Outside Professional Activities
- E. Service to the Community
- F. Other Paid Activity

1. Members of the Regular Stream.

Members of the regular stream have responsibilities relating to items A), B) and C) and are expected to participate actively in items A), B) and C), although not necessarily in all three in any one given year. A Member's responsibilities related to item A) shall consist of those teaching or library duties which are assigned by the Dean/Director of the Library as per Article 2.10 - Academic Workload. A Member's responsibilities related to items B) and C) are inherent in a Member's status as an academic and thus flow naturally therefrom. Certain specific duties related to item B) and C) may also be assigned by the Dean/Director of the Library on an *ad hoc* basis in order to ensure a good and proper functioning of the University. A Member's responsibilities relating to item d), e) and f) are undertaken voluntarily by the Member.

2. Members of the Alternate Stream.

Members of the alternate stream have responsibilities relating to items A) and C) and are expected to participate actively in items A) and C), although not necessarily in both in any one given year. A Member's responsibilities related to item A) shall consist of those teaching or library duties which are assigned by the Dean/Director of the Library as per Article 2.10 - Academic Workload. Certain specific duties related to item A) and C)

may also be assigned by the Dean/Director of the Library on an *ad hoc* basis in order to ensure a good and proper functioning of the University. A Member's responsibilities relating to item D), E) and F) are undertaken voluntarily by the Member.

In order that they may meet their responsibilities according to this article, Members shall be provided with reasonable access to facilities and services per Article 1.23.

Some specific features of academic responsibilities are set out in the following sections:

PRIORITY I

A. Teaching

1. Members have an obligation to develop and maintain their scholarly competence and effectiveness as teachers within the area of their expertise. They shall inform their students regarding their methods of evaluation, which have been approved by the unit and the Dean, consistent with Senate policies. They shall also inform their students regarding their instructional methods and seek approval of the unit and of the Dean for substantial changes in instructional methods involving significant increases in costs or alterations in the established policy of the unit, e.g. conversion of a lecture course to a reading course.

In addition, Members of the alternate stream have an obligation to continue their professional development to enhance and broaden their professional and teaching ability.

2. While it is recognised that whenever possible there shall be adequate consultation with the Member and the unit as to the assignment of teaching duties, once such teaching duties have been assigned in a fair and equitable manner by the Dean, it is the responsibility of the Member to teach the assigned courses to students registered in them at the time and place designated by the Dean in a manner which reflects the area of the content of the course approved by the unit consistent with the University calendar. Assignment of teaching duties shall be consistent with Article 2.10 Academic Workload. Teaching responsibilities include being available for reasonable consultation with students at their teaching locale subject to Article 2.10 Academic Workload.

3. Members shall comply with all properly established regulations of the University, which are not at variance with this Agreement. Members shall accept responsibility for participation in the effective operation of the University, including responsibilities for academic counselling, registration, and the supervision of examinations as appropriately assigned by the unit, the Dean or the Registrar's office consistent with Senate policy. During examinations, only the head invigilator shall be a faculty Member. The head invigilator shall be selected randomly from the LUFA full-time faculty membership and the names of those who serve shall be removed from the

pool of potential head invigilators until all remaining Members have served. The names of those Members not scheduling any of their final examinations through the Registrar's Office, will not be included in the pool for the examination period concerned.

4. It is the responsibility of Members to deal ethically and fairly with students and their academic colleagues in relation to their own teaching. Ethical and fair dealing with students and colleagues includes respecting the Laurentian Policy and Procedures on Personal or Sexual Harassment. It is also the responsibility of Members to foster a free exchange of ideas including a discussion of differing views, to avoid discrimination, to respect the principles of confidentiality in a manner consistent with the performance of their academic role, and to acknowledge their indebtedness to students and their academic colleagues in relation to their own teaching.

5. Each Member shall have freedom of discussion. However, in the exercise of this freedom in the classroom, reasonable restraint shall be used in introducing matters unrelated to his/her subject or discipline.

6. Members shall be free to organise and to structure classroom and laboratory activities and to adopt reasonable means to maintain a learning environment, which is both productive and orderly. They shall have the right to rule on the use by students of recording devices and calculating devices in the classroom, laboratory or learning situation.

7. Members shall not alter or cancel scheduled instruction except with prior permission of the Chairperson/Director in any but exceptional circumstances. Such permission shall not be unreasonably refused. Both parties agree that every reasonable effort will be made to notify the students affected. Timetable changes of a permanent nature require the prior permission of the Dean. Absences are governed by Article 3.6 - Absence - General.

A. Professional Librarianship /Archives Management

1. Members have an obligation to develop and to maintain their scholarly competence and effectiveness as librarians within the area of their expertise.

2. While it is recognised that whenever possible there shall be adequate consultation between the Member and the Director of the Library as to the assignment of duties, once such duties have been assigned in a fair and equitable manner by the Director of the Library, it is the responsibility of the Members to perform their duties at the time and place designated by the Director of the Library. Assignment of professional library / archives management duties shall be consistent with Article 2.10 - Academic Workload.

3. It is the responsibility of Members to deal ethically and fairly with those to whom they render professional service. Ethical and fair dealing with clients and colleagues includes respecting the Laurentian Policy and Procedures on Personal or Sexual Harassment. It is also the responsibility of

Members to foster a free exchange of ideas, to avoid discrimination, to respect the principles of confidentiality in a manner consistent with the performance of their academic role, and to acknowledge their indebtedness to their academic colleagues in relation to their own professional activities.

4. Members shall have the right and responsibility to adopt reasonable means to maintain an orderly and productive learning environment in the library / archives.

5. Members, if involved in scheduled work-related activities, shall not alter or cancel such scheduled activities except with prior permission of the Director of the Library in any but exceptional circumstances. Such permission shall not be unreasonably refused. Both parties agree that every reasonable effort will be made to notify the person affected. Absences are governed by Article 3.6 - Absence - General.

B. Scholarly Activity

1. Members shall have the right and responsibility to devote a reasonable proportion of their time to scholarly activity.

2. It is understood that for the purposes of this Collective Agreement the term "scholarly activity" means:

a) Research directed towards a contribution to knowledge, and the dissemination of its results;

and/or

b) Participation in those academic activities that contribute to the enhancement, creation and dissemination of knowledge;

and/or

c) Creative and professional activities which contribute to one's discipline.

3. Scholarly activity may involve, although not necessarily be limited to the following, but in each case the Member must demonstrate that the activity is of good quality and is consistent with the contribution to knowledge described in paragraph 2 above. It is understood that this list does not imply an order of priority. It is also understood that the following forms of scholarly activity are not necessarily to be given equal weight and application for each discipline when a Member is being evaluated for an annual increment, merit increment, tenure or promotion. In such evaluations, where the evidence does not rest on externally reviewed publications, other evidence of scholarly activity must be considered, but the burden of proof rests upon the candidate.

a) The writing or editing and publication of books, textbooks, journals and of articles.

- b) The obtention of additional appropriate academic and/or professional qualifications.
 - c) Research carried out on research contracts.
 - d) The writing of case studies.
 - e) The development of teaching/library materials, of an innovative sort which have a wider application than the Member's own teaching/library activities.
 - f) The compilation and publication of scholarly bibliographies, or literary work.
 - g) The translation and publication of scholarly or literary work.
 - h) Literary and artistic works appropriate to one's discipline.
 - i) Demonstrated leadership in the area of professional education, including workshops.
 - j) Creative application of existing knowledge through such activities as consulting or workshops.
4. The parties agree that scholarly activity does not normally include research directly related to the immediate and normal preparation for teaching activity.
5. Where appropriate in their published work, the Members shall indicate affiliation with the University and acknowledge their indebtedness to students and their academic colleagues in relation to their own research.
6. The parties encourage all members of the bargaining unit to deposit one signed copy of their published material in the University Library. The University agrees to pay for reasonable expenses incurred by a Member in making such material available to the Library.
7. Members have the right to participate in the activities of professional or learned societies and the like, providing such activities do not conflict with the reasonable fulfilment of assigned duties.

PRIORITY II

C. University Governance and Administrative Duties

1. To the extent consistent with their teaching/library and scholarly responsibilities, Members shall contribute to the governance of the University through membership on appropriate bodies. It is understood that for the purposes of this Article, service to colleagues within the University context will be considered equivalent to service on Unit/Senate Committees.

2. While exercising university governance and administrative responsibilities, Members shall deal ethically with other university employees and students so that objectivity, fairness, and absence of discrimination are maintained in all deliberations including assessment of performance of any employee or student. Members shall not infringe on the academic freedom of academic colleagues or students or breach confidentiality in this regard.

3. In order to ensure equality of opportunity to participate in university governance, the University agrees to circulate notice of openings on all university bodies above the Department/School/Library level to eligible Members at least two weeks prior to the time that the vacancies must be filled. As a university body, the Association agrees to circulate notice of vacancies, which allow Members to serve colleagues at least two (2) weeks prior to the time that these vacancies must be filled.

PRIORITY III

D. Outside Professional Activities

1. The parties encourage Members to participate in outside professional activities.

2. The scope and nature of any professional activities of a substantial nature, whether paid or unpaid shall be reported in writing to the Dean/Director of the Library as part of the annual report of Members. Notwithstanding the above, contractual activities that would involve Members spending a total of more than one half day a week on a regular basis between Monday and Friday during a term in which they teach or perform professional library duties shall be reported in writing to the Dean/Director of the Library prior to the signing of the contract or beginning of the work. The Dean/Director of the Library may require the Members not to undertake an activity or to moderate such an activity on the grounds that the time involved would or does interfere with the Member's academic obligations as defined in this Agreement. A reasonable period of time shall be allowed for the Members to comply. The appropriateness of the decisions of the Dean/Director of the Library on these matters is subject to grievance and arbitration.

3. When undertaking outside professional activities, Members retain the rights and responsibilities associated with academic freedom.

4. When a Member's outside professional activities involve the use of the University's facilities, supplies or services, permission for their use shall be approved in writing or through email by the appropriate University Administrator. Such permission shall not be unreasonably refused. These services shall normally be paid for at the prevailing internal University user rate, unless the University Administrator agrees in writing to waive all or part of the fee(s).

E. Service to the Community

1. The parties encourage Members to offer service to the community.
2. The rights and responsibilities of Members who offer service to the community shall be the same as for those members who participate in outside professional activities, as modified by 3 below.
3. When a Member's service to the community involves the use of the University's facilities, supplies or services, permission for their use shall be approved in writing or through email by the appropriate University Administrator. Such permission shall not be unreasonably refused. These services shall normally be paid for at the prevailing external University user rate, unless the University Administrator agrees in writing to waive all or part of the fee(s).

PRIORITY IV

F. Other Paid Activity

1. Faculty members have the right to engage in other paid activity.
2. All such activities shall be governed by Section D.2, except the annual report where such reporting shall be optional to the Member.

ARTICLE 2.01 - ASSESSMENT OF A MEMBER'S PERFORMANCE

1. When making an assessment, the assessing body shall take into account all relevant factors including.
 - a) The nature and scope of past teaching/librarianship activities.
 - b) The nature and scope of administrative responsibilities of Members.
 - c) The unique nature of Laurentian University, that is, small size, remote location and demands of off-campus teaching.
 - d) When assessing Librarians, the amount of available time for scholarly activity shall be taken into account.
2. The assessment of a Member's teaching performance shall be based on:
 - Senate approved course evaluations
 - and
 - The Member's annual teaching dossier.
 - a) During each term of the academic year, the Board shall administer

the course evaluations approved by the Laurentian University Senate. The Vice-President, Academic shall be responsible for the distribution and collection of the said instruments. It is agreed that Members shall have access to the results of course evaluations prior to their use by the University.

b) It is the responsibility of Members to maintain on an annual basis their teaching dossiers. For each course, the annual dossier must contain at least the following material:

- i) Course syllabus and sufficient material to permit an evaluation of the contents of the course, the teaching/learning process, and the means of assessing the performance of the students.
- ii) Sufficient material to permit the evaluation of the Member's teaching performance as perceived by groups such as graduates, peers, or students.
- iii) The file should also contain any other material that the Member deems relevant to his/her teaching role.

c) Committees, which may use the results of the course evaluations and the contents of the teaching dossier in their deliberations, shall receive suitable guidelines on their use and interpretation from the Vice-President, Academic.

Should a Member feel that a course should be exempt from the approved evaluation process, reasons for exemption should be addressed to the Vice-President, Academic no later than the end of the first week of classes in that course. The Vice-President will communicate his decision on the request prior to the planned date of the course evaluation.

3. Notwithstanding the priorities for teaching/librarianship and/or scholarly activities as noted in the various articles in this Agreement, the parties recognise that the University benefits greatly from significant contributions in many areas including academic administration and/or university governance, continuous involvement in a Member's professional/learned society or in a community activity directly related to the work of the University. The parties agree that Members who have made such contributions shall have these contributions taken into especial account as compensating for lesser performance in another area.

Notwithstanding the priorities for scholarly activities as noted in the various articles in this Agreement, the parties recognise that the University benefits greatly from the contributions of Members who are exceptional teachers. Members who can make such a contribution shall have this taken into especial account as compensating for lesser performance in another area. When considering librarians, professional service and library management skills shall be substituted for "teaching".

4. Every assessing body shall put forward its recommendation or decision in written form setting forth its findings and grounds for recommendation or decision in order that a member may know which factors were persuasive in a recommendation or decision.

ARTICLE 2.10 - ACADEMIC WORKLOAD

1. The academic workload shall be assigned in a fair and equitable manner. To help ensure this goal, each member of a unit shall receive a copy of the Chair's recommendations to the Dean/Director of the Library on workload, including any recommendations for overload payments, as well as a copy of the Dean's/Director of the Library's decision on these recommendations.

2. The academic workload of a Member in the regular stream includes in varying proportions teaching/professional librarianship, including the supervision of graduate students, scholarly activity including commitments to external granting agencies, administrative duties and other contributions to the University.

The academic workload of a Member in the alternate teaching stream may include teaching, clinical supervision, coaching, professional development, and administrative duties.

3. The assignment of the workload shall be communicated in reasonable detail, in writing, to the Member by 1 June by the Dean/Director of the Library. The Dean/Director of the Library shall request the written advice of the unit concerned at least one month prior to 1 June and the Dean/Director of the Library shall normally accept the advice of the unit. The time-tabling of the teaching load/library assignment shall be communicated in writing to the Member by 1 July by the Dean/Director of the Library after consultation with the Registrar. For the duration of this agreement the Registrar shall have final authority in time-tabling all courses.

4. The composition of the workload of particular Members may vary with their discipline, and will take into account the capabilities of the Members, the need to maximise their potential and any obligations placed on them within the University's operations, consistent with the terms of this Agreement. In the assignment of teaching loads, the Deans, in consultation with the academic units, shall consider, not only the number of courses taught by a Member, but the size and type of such courses. It is understood that there will be no rigid formula for course assignments based solely on the number of separate courses taught by a Member.

5. The Dean/Director of the Library may include in Members' workloads any teaching/professional library assignment related to their discipline and any administrative activity that the Dean/Director of the Library considers necessary for the effective operation of the Faculty/Library or of the University program. With regard to the load for teaching/professional librarianship, generally prevailing past practices shall apply unless these practices have been the result of Members undertaking voluntarily unpaid

overloads to maintain the integrity of programmes or service commitments in units which have suffered complement reductions due to budgetary pressures or unless specific provisions in this contract state otherwise.

6. The determination of the workload shall be subject to the following conditions:

a) The Dean/Director of the Library, in accordance with Article 1.21, Academic Freedom, shall not impose specific scholarly tasks other than the teaching/professional librarianship duties referred to in 5 above. Specific tasks related to the internal governance of the Unit shall not be imposed by the Dean/Director of the Library, except for the appointment of an Acting Chairperson/Director as in Articles 5.0 and 5.1. The Dean/Director of the Library may assign specific responsibilities concerning a University-related community activity in consultation with the Member. The Member shall not unreasonably refuse.

b) The Dean/Director of the Library shall normally not impose on any individual a workload in excess of that which in the past has generally been applicable to members within the Faculty/Library to which the Member belongs. The Parties agree that excessive overload teaching/professional library work is undesirable and for that reason compensation for teaching-related overloads from all sources, including courses administered through the Centre for Continuing Education, shall be limited to the maximum payable for 9 credits (as per Article 4.30 - Overloads) during the Fall/Winter Session (September to April), and for 6 credits during the Spring Session (May to August) or its equivalent in the Library. The Parties further agree that the 9-credit overload allowance during the Fall/Winter session, and the 6-credit overload allowance during the Spring Session, shall be limited to three consecutive years.

Where the above limitation on total compensation to a Member involves a component from the supervision of a distance education course(s) according to Article 4.31 5, the University shall make available marking assistance as required and in keeping with the degree of limitation.

c) From time to time, the Dean/Director of the Library, in consultation with the unit may request a Member to undertake additional duties over and above the normal workload. In such instances, an overload payment may be made, as in Article 4.30 Overload. The Member shall not unreasonably refuse such assignments. Members who believe they are entitled to overload payments shall apply through the Dean/Director of the Library to the Vice-President, Academic within 10 working days after the assignment of the workload. This official shall provide an answer, in writing, to the Member within 10 working days of his application. If negative, the decision shall be accompanied with reasons.

d) In the event that a workload assignment, with regard to the courses

taught or professional librarian duties, is not acceptable to the Member or the Unit, after discussion with the Dean/Director of the Library, the Member or the Unit may appeal to the Vice-President, Academic by 1 July. The decision of the VP shall be final and shall be communicated in writing to the Member/unit before 1 August.

7. Once assigned, workloads shall not be altered except in cases of emergency. If a proposed workload must be altered, such alteration will be taken into consideration in the annual performance evaluation.

If the Dean, for non-emergency reasons, deems it necessary to alter the workload of a Member once it has been assigned, the Dean must obtain the agreement of the Member.

Any alteration to a Member's workload, including any associated overload payments shall be communicated to each Member of the unit within five working days after the Member has been formally notified of the change.

Notwithstanding the provisions of this Article, when an assigned course(s) is cancelled because of zero registration in the course(s) there arises an obligation on the part of the Member to undertake additional work in order to maintain fairness and equity within the Academic Unit. The nature and extent of such work shall be determined in discussions between the Member, the Chair of the Academic Unit and the Dean. In the event that the Member was scheduled to receive an overload stipend such a stipend should be reduced appropriately. In the case where additional work assigned is in the form of a course, such course shall be one the Member has taught in the last two years, unless otherwise agreed to by the Member.

8. The determination of the workload for Members of the teaching faculty shall also be subject to the following conditions:

- a) Members may be requested to teach any of the three sessions on and off campus and if requested, they shall not unreasonably refuse, provided that the requests are made on a fair and equitable basis within the unit.
- b) Such teaching service outside the Sudbury Winter-session shall be assigned on a rotational basis and normally not more than once every three years.
- c) In the case of correspondence or off-campus courses, consultation times shall be arranged for the teaching locale in accordance with the requirements of the subject matter. The unit Chairperson/Director shall outline the norms in consultation with the unit.
- d) In the case of evening courses, the Dean shall not assign another course scheduled to begin within twelve (12) hours of the scheduled end of the evening course unless the Member agrees to this in writing.

e) With the exception of Members who are teaching at this university for the first time or teaching in a new programme, no Member shall be required in an academic year to prepare for more than one full course or two half-courses (or equivalent) which he has not taught at least once during the previous four years. Normally, no Member shall be required to undertake such course preparation more than once every two years, nor shall any Member be required to undertake new course preparation unless requested to do so by 1 June.

f) Members may be required to supervise or develop distance education courses as part of their normal workload subject to provisions of Article 4.31. Members whose appointments specifically included the development of distance education courses as part of their normal workload may be assigned such duties for the duration of their contract(s).

g) In order to enhance the ability of Members to undertake scholarly activity, it is desirable to schedule the teaching activities in such a way as to create blocks of time free of scheduled teaching activities. Members wishing to create such teaching-free blocks shall approach the Chair of the academic unit(s) and the Dean with an appropriate request. These officials shall make reasonable efforts to accommodate such requests within the constraints imposed by requirements of offering programs and courses to students. When competing requests for teaching-free time blocks cannot be met for all applicants, priority shall be given to those individuals who earlier have been unsuccessful in making such a request, provided that these were based on bona fide requirements to enhance scholarly activity.

h) Full-time Members teaching in programs where the preparation of a thesis is mandatory for students have an obligation to participate in the thesis supervision provided that they are qualified to do so. However, the Parties agree that the close working relationship desirable for the successful preparation of a thesis is best achieved under conditions that allow for mutual choice on the part of the Member and the student before entering the supervisor/student relationship.

i) The supervision of a research master's or Ph.D. thesis in a programme offered by Laurentian, where such supervision is over and above normal workload, shall be recognised upon its successful defence as equivalent to one credit as a teaching load reduction for the supervisor of the thesis. This credit may be shared by agreement between two or more Members who have contributed to the thesis supervision. In cases of disagreement the Dean shall arbitrate the proportions. If circumstances within the academic unit make the teaching load reduction undesirable, an amount of \$1,000 per credit shall be added to the amount a Member may spend for professional expenditures upon consultation with the Chair of the Unit and the Dean. This provision will be effective for advanced practicum in Social Work (12 credits or more) completed after the ratification of the Collective Agreement.

In master's or Ph.D. programmes offered by Laurentian where students have the option of writing a research essay or carrying out a research project (valued at least as six (6) credits) in lieu of a full research thesis where such supervision is over and above normal workload and where such work is reviewed by a formal committee process, the supervision of such work will be recognised at the value of one half credit as teaching load reduction for the supervisor of the thesis. This half-credit may be shared by agreement among two or more Members who have contributed to the thesis supervision. In cases of disagreement the Dean shall arbitrate the proportions. If circumstances within the academic unit make the teaching load reduction undesirable, an amount of \$500 per half-credit shall be added to the amount a Member may spend for professional expenditures. This provision will be effective for essays or projects completed after the ratification of the Collective Agreement.

9. The determination of the workload for professional librarians shall also be subject to the following conditions:

- a) Members may be requested to offer service during one evening per week and if requested, they shall not unreasonably refuse, provided that such requests are made on a fair and equitable basis.
- b) Professional librarians may be expected to carry library supervisory duties.

10. In order to promote research within the University, a Member may have his teaching/library service workload altered.

- a) Without compensation to the University.
For such an assignment to become operative, it shall require the recommendation of the unit, of the Dean/Director of the Library, and approval of the Vice-President, Academic. Faculty Members who receive one or more course reductions for purposes of enhancing scholarly activity, including the preparation of teaching materials for the Centre for Continuing Education, shall not be entitled to overloads as per Article 6.b) above. This restriction shall also apply to Librarians whose workload is also reduced for scholarly purposes.
- b) With compensation to the University.
A Member with a regular teaching load may request a buy-out of up to 6 credits of teaching load per year or the equivalent of professional library service in order to concentrate on research activities. The buy-out must be applied for no later than May 1 of the year proceeding the academic year for which it is requested and must be approved by the Dean/Director of the Library in consultation with the Academic Unit by June 1. The buy-out shall cover the actual cost (including benefits) to replace the teaching/professional library work but shall not exceed the overload or sessional rate of pay as appropriate. A buyout will not be granted if an appropriate replacement for the teaching/professional library work cannot be secured; otherwise permission shall not be unreasonably withheld.

11. The workload of any or all Members shall be made known to the Association on request.

12. It is acknowledged that the provision of teaching assistants is a factor to be considered in the assignment of workloads. As such the Vice-President, Academic will ensure to the greatest degree possible the equitable distribution amongst the Faculties of such assistance, consistent with the policies of Academic Councils.

ARTICLE 2.11 - ANNUAL REPORT FOR MEMBERS

1. All Members of the Bargaining Unit except those Members on sabbatical or other leaves who have given prior notice to their Dean/Director of the Library of their intent to postpone submission until their return shall submit a report in writing on their activities for the preceding twelve (12) months to the Dean/Director of the Library, through the Chairperson, by May 15th. The report will cover all components of his/her responsibilities as listed under Article 2.00 - Rights, Responsibilities and Duties of Academics.

2. In preparing their reports, Members shall use the appropriate standardised form developed for each Faculty and the Library.

3. It is also the responsibility of the Members to provide annually an up-to-date and corrected C.V. for their personnel file.

ARTICLE 2.20 - ACADEMIC QUALIFICATIONS GUIDELINES

For the purpose of this Agreement the following definitions shall apply:

- a) "Doctoral degree" shall mean an earned Ph.D. or other degree formally recognised as equivalent to an earned Ph.D.
- b) "Relevant experience" shall mean any combination of teaching and scholarly activity as defined in Article 2.00 - Rights Responsibilities and Duties of Academics and/or equivalent professional experience.
- c) "Professional designation" shall mean a diploma earned as a result of additional experience/training and qualifying examinations such as, but not limited to C.A., R.I.A., C.G.A., and C.R.E.D.I.F., or others agreed to by the parties.
- d) When considering librarians, professional service or, where appropriate, library supervision shall be substituted for "teaching".

In interpreting these guidelines, the following shall apply:

- a) Article 2.00 - Rights, Responsibilities and Duties
- b) Article 2.01 - Assessment of a Member's Performance
- c) Article 2.20 - Academic Qualifications Guidelines

- d) For those persons appointed prior to 1 July 2002, Article 2.20, of the 1999-2002 agreement shall apply.

1. Academic Qualifications Guidelines for Appointment or Promotion of Members of the Regular Stream Teaching Faculty.

- a) For the rank of Instructor
 - (i) A Baccalaureate degree;
or
 - (ii) Professional or semi-professional qualifications plus relevant professional experience which allows the individual to make a contribution to a program.
- b) For the rank of Lecturer
 - (i) A Master's degree or equivalent degree;
or
 - (ii) A Baccalaureate degree and an appropriate professional designation.
- c) For the rank of Assistant Professor
 - (i) A Doctoral degree;
or
 - (ii) A Master's degree or equivalent and satisfactory performance of the Member's responsibilities and duties over a five-year period as per Article 4.11 and demonstrated evidence of scholarly activity as per Article 2.00;
or
 - iii) In the Department of Law and Justice, eight years of full-time university education (or the equivalent) during which time the Member must have obtained a LL.B. and an appropriate Master's degree.
- d) For the rank of Associate Professor
 - (i) A Doctoral degree;
and
 - (ii) Teaching, the quality of which is satisfactory as determined solely by the method of teaching evaluation mandated by the Collective Agreement;
and
 - (iii) Evidence of scholarly activity (as per Article 2.00 Rights and Responsibilities) that is of good quality;
and
 - (iv) At the time the promotion to Associate becomes effective, at least five (5) years of full-time teaching and/or research in a university or an institution of equivalent level or at least five (5) years of professional experience judged to be relevant for teaching at the university level.

(v) The requirement for scholarly activity as stipulated under (iii) may be replaced in exceptional cases by a consistently demonstrated quality of teaching and tutorial activity that clearly indicates outstanding qualities as a teacher as established by whatever is the generally accepted method of evaluation.

e) For the rank of Full Professor

A Member shall have:

- (i) A Doctoral degree;
and
- (ii) Teaching, the quality of which is satisfactory as determined solely by the method of teaching evaluation mandated by the Collective Agreement;
and
- (iii) Shown evidence of scholarly activity (per Article 2.00 Rights and Responsibilities) throughout the Member's career and after his/her promotion to Associate Professor that ranks as a recognised contribution to the scholarly field or professional activity concerned. This work must be judged by four (4) external referees, who shall normally be full professors in an academic institution, and at least two (2) of these referees may be nominated by the candidate;
and
- (iv) Normally, at the time that the promotion to Full Professor becomes effective, at least ten (10) years of full-time teaching and/or research in a university or in an institution of equivalent level, or has accumulated at least ten (10) years of professional experience judged to be relevant for teaching at the University level;

Alternative to the requirements for promotion to Full Professor:

The requirement for scholarly activity stipulated under (ii) may be replaced in extraordinary circumstances by a requirement that the Member has consistently shown clearly outstanding qualities as a teacher and has scholarly activity of good quality.

2. Academic Qualifications Guidelines for Appointment or Promotion of Members of the Alternate Stream Teaching Faculty.

a) For the rank of Instructor

- (i) A Baccalaureate degree;
or
- (ii) Professional or semi-professional qualifications plus relevant professional experience which allows the individual to make a contribution to a program.

- b) For the rank of Lecturer
 - (i) A Master's degree or equivalent degree;
or
 - (ii) A Baccalaureate degree and an appropriate professional qualification;
and

Proficiency in one of the areas of professional specialisation of the unit to which the candidate is appointed and proficiency in imparting that specialised knowledge and current professional expertise to students.
- c) For the rank of Assistant Professor
 - (i) A Doctoral degree;
or
 - (ii) A Master's degree and appropriate professional qualifications;
and
 - (iii) Demonstrated, over five (5) years, effectiveness in teaching based in part on mastery of the subject area and the ability to stimulate and challenge students;
and
 - (iv) Evidence of current professional development that continues to enhance and broaden the candidate's capacities as a professional and teacher;
and
 - (v) Evidence of current professional involvement in the community through practice, consultation, activities in professional organisations, and public education and service.
- d) For the rank of Associate Professor
 - (i) A Doctoral degree;
or
A Master's degree and appropriate professional qualifications;
and
 - (ii) Demonstrated over five (5) years at the rank of Assistant consistently high quality of teaching that clearly indicates exceptional qualities as a teacher, and teaching performance above the normal expectations of an alternate teaching stream member as evaluated by peer review and recognition as a teaching expert;
and
 - (iii) Achievement of clinical or professional expertise that is highly regarded and recognised by the professional peers as making significant contributions to the advancement of the profession. Demonstrate increased depth in defined areas of practice and teaching as evidenced by the development, utilisation, and dissemination of innovative teaching techniques;
and
 - (iv) Continuous enhancement and broadening of capacities

through professional development since previous promotion;
and
(v) Evidence of current professional involvement in the community through practice, consultation, activities in professional organisations, and public education and service since previous promotion.

e) For the rank of Full Professor

- (i) A doctoral degree;
and
- (ii) Demonstrated over at least ten (10) years of full-time teaching in a university, or in an institution of equivalent level, a consistently high quality of teaching that clearly indicates exceptional qualities as a teacher, and teaching performance above the normal expectations of an alternate teaching stream member as evaluated by peer review and recognition as a teaching expert;
and
- (iii) Demonstrated (including publication) originality and creativity in the advancement of the profession through teaching innovations and contributions to the profession;
and
- (iv) Has achieved a reputation among professional peers as an expert in a specialised area on a provincial and/or national level.

3. Academic Qualifications Guidelines for Appointment or Promotion of Professional Librarians and Archivists.

a) For the rank of General Librarian or General Archivist

A Master's degree, in Library or Archival Studies.

b) For the rank of Assistant Librarian or Assistant Archivist

- (i) A doctoral degree, it being understood that unless this doctoral degree is in the field of Library Science or Archival Studies, it shall be accompanied by a Master's degree or equivalent qualifications in Library Science or Archival Studies;
or
- (ii) A Master's degree in Library Science or Archival Studies and professional service and library or archival supervisory skills relevant to academic librarianship or archival management, the quality of which is established as clearly satisfactory by whatever is the generally accepted method of evaluation over a period of four years; and demonstrated evidence of scholarly activity as per Article 2:00.

c) For the rank of Associate Librarian or Associate Archivist

- (i) An appropriate doctoral degree, it being understood that unless this doctoral degree is in the field of Library Science or

Archival Studies, it shall be accompanied by a Master's degree or equivalent qualifications in Library Science or Archival Studies;

or

In exceptional cases, a Master's degree in Library Science or Archival Studies and professional service and library or archival supervisory skills relevant to academic librarianship or archival management, the quality of which is established as clearly satisfactory by whatever is the generally accepted method of evaluation over a period of four years; and demonstrated evidence of scholarly activity as per Article 2:00 since last promotion; and

(ii) At the time the promotion to Associate becomes effective, at least five (5) years of full-time professional service relevant to academic librarianship or archival management.

d) For the rank of Full Librarian or Full Archivist

(i) An appropriate doctoral degree, it being understood that unless this doctoral degree is in the field of Library Science or Archival Studies, it shall be accompanied by a Master's degree or equivalent qualifications in Library Science or Archival Studies; or

In exceptional cases, a Master's degree in Library Science or Archival Studies and professional service and library or archival supervisory skills relevant to academic librarianship or archival management, the quality of which is established as clearly satisfactory by whatever is the generally accepted method of evaluation over a period of four years; and demonstrated evidence of scholarly activity as per Article 2:00 since last promotion; and

(ii) Have demonstrated outstanding professional performance and, in addition, have shown evidence of on-going scholarly activity of good quality (as per Article 2.00) throughout the Member's career and after his/her promotion to Associate Librarian or Associate Archivist. This work must be judged by four (4) external referees, two of whom may be nominated by the candidate;

and

(iii) Have normally accumulated, at the time the promotion to Full Librarian or Full Archivist becomes effective, at least ten (10) years of full-time professional service relevant to academic librarianship or archival management.

4. Bilingualism.

a) The Board may, in consultation with the Units:

(i) Stipulate in advertising for and in appointing Members, that a bilingual candidate is preferred or required;

(ii) Require the appointment of candidates capable of working in

either or both of the official languages in order to improve the balance between courses offered in English and courses offered in French within any Academic Unit, School or Faculty;

(iii) Require the appointment of candidates capable of working in either or both of the official languages in the Library;

(iv) Consider bilingualism as a desired qualification for those Members who are selected to take on specific responsibilities.

b) Letters of appointment shall clearly indicate any bilingual requirements which are to be a condition of being granted tenure and any assistance that the Board might agree to provide to the Members for them to meet these requirements.

c) A Member's performance in both French and English will be taken into consideration in such matters as promotion and tenure.

5. A Member who has consistently demonstrated clearly outstanding performance in the areas of teaching/professional librarianship, research, and/or administration may, in extraordinary circumstances, be promoted to the next rank without fulfilling the years of experience criterion as stipulated in Sections 1c, 1d, 1e, or 2b, 2c, 2d of this Article. The burden of proof of outstanding performance rests with the applicant.

ARTICLE 2.21 - APPOINTMENT AND RENEWAL

Appointment of Members of the Bargaining Unit

1. New appointments that fall within the Bargaining Unit shall normally be advertised:

- a) Within the University and
- b) Outside the University

In suitable national and discipline publications such as University Affairs, CAUT Bulletin and other publications that may be especially directed to professionals who belong to any of the four designated employment equity groups. Advertisements shall contain a clause stating that Laurentian University is committed to employment equity.

- 2. a) Appointments shall be made by the Vice-President, Academic on behalf of the Board and on the recommendation of the Dean/Director of the Library and the Department/School concerned.
- b) The letter of appointment shall indicate the unit to which the Member will be assigned and shall also indicate whether the appointment is to the regular stream or the alternate teaching stream.
- c) In the event that an appointee will have duties and responsibilities

in more than one unit or program then one unit shall be declared to be the Member's unit. Wherever in this Agreement recommendations or evaluations of a Member's performance are required from a unit, in addition to the recommendation or evaluation from the assigned unit, the other unit(s) or program(s) shall also submit their recommendation or evaluation; these recommendations shall carry a weight approximately proportional to the duties and responsibilities of the Member in each program/unit.

3. If a number of candidates have been judged to be substantially equal in qualifications and appropriateness of academic specialisation, priority shall be given to Canadian citizens, permanent residents, and persons on minister's permits.
4.
 - a) Where selection has to take place among equally qualified candidates, relevant criteria for appointment shall include teaching/professional, scholarly potential and employment equity goals.
 - b) In disciplines where it is difficult to attract qualified faculty, and/or in order to achieve employment equity goals, the University and LUFA will work together to devise and implement innovative appointment arrangements in order to combine appointments with the opportunity to complete doctoral degrees.
 - c) All unit search committees for new faculty appointments shall include at least one woman. Where the unit has no women members, the Dean/Director of the Library, in consultation with the unit, shall appoint a woman Member from another unit to the search committee.
 - d) The search committees shall be proactive in the recruitment of female candidates. If it is not possible to find a suitable female candidate for the short list, then the search committee will provide the Vice-President Academic with a detailed summary of the special measures that were undertaken to satisfy this requirement.
5. Appointments shall be made only to the ranks referred to in this agreement, viz. instructor, lecturer, assistant professor, associate professor, full professor, and the corresponding library ranks (general librarian, assistant librarian, associate librarian, full librarian).
6.
 - a) Appointments shall be made to either the regular stream or the alternate teaching stream, only in the status categories referred to in this agreement, viz. limited term, probationary and tenured. From time to time the parties may agree to other categories. Appointments to the alternate stream may be made in the School of Human Movement for Members whose primary responsibility is the teaching of applied courses and activities, the School of Nursing for members whose primary responsibility is clinical education; the School of Social Work for Members whose primary responsibility is the coordination and supervision of field placements, admissions and the teaching of practical courses; and the Department of Français for Members whose

primary responsibility is language instruction. Such appointments may not be made in any other unit. Furthermore, such appointments cannot be made where the number of alternate stream members would exceed 25% of the full-time faculty of the unit.

b) Any Member may apply for an opening in the other stream. Should members of one stream receive appointments in the other stream they shall transfer with their rank, salary, and type of appointment provided the rank and type of appointment in the new position have been authorised by the Vice-President Academic.

7. Appointments shall be made only to the status categories referred to in this agreement, viz, limited term, probationary and tenured. From time to time the parties may agree to other categories.

8. Candidates from within the bargaining unit shall be entitled to consideration for all advertised posts.

9. Letters of appointment shall specify all terms and conditions of appointments, including rank, status, and salary, and any special conditions such as bilingual requirements per Articles 1.25 and formal educational requirements (Article 2.20), special sabbatical credit per Article 3.21 and extra moving expenses per Article 4.55. No letter of appointment shall contain any conditions not consistent with this Agreement. A copy of the letter of appointment, or revisions thereof, shall be forwarded to LUFA at the same time as the original is sent to the candidate. The candidate's telephone/fax numbers and email address, as well as any other means of contacting the candidate will be included if the candidate has provided them.

10. Upon appointment the new Members shall provide copies of their birth certificate, or equivalent document, and upon request certified copies of academic professional qualifications obtained by the Members.

LIMITED TERM APPOINTMENTS

11. Limited Term appointments are appointments that carry no implication of renewal or continuation beyond the stated term and no implication that the appointee shall be considered for tenure. Limited term appointees must be assigned to an academic unit and shall be considered Members unless excluded by Article 1.30 - Recognition of the Bargaining Unit. Limited term appointments are utilised:

- a) To bring distinguished visitors to the University.
- b) For exchange appointments.
- c) To provide replacements for Members on leave.
- d) To respond to specific academic needs which the Board, for academic and/or budgetary reasons, does not wish to result in an appointment in the probationary stream. This shall be done in

consultation with the Association who shall not unreasonably withhold its agreement.

e) For appointments to programs with provisional funding or of a trial nature.

12. Where appointments must be made urgently, the Vice-President, Academic may, with the agreement of the parties, authorise exceptions to the procedures in paragraphs 1 and 2 of this Article. Such agreement shall not be unreasonably withheld.

13. The Vice-President, Academic has the discretion, after consultation with the Unit and the Dean/Director of the Library, to re-appoint the holder of a term appointment without further advertisement. Should the Board choose to re-advertise the post, the incumbent may apply, but retains no right of preference over other acceptable candidates. The normal procedures for appointment will apply.

14. Term appointees may not apply for promotion in the final year of their term appointment. A term appointee reappointed to a further term appointment or a term appointee reappointed to a probationary position shall be reappointed to the same rank that he/she held in the previous appointment. A Member so reappointed may, subsequent to reappointment, also apply for a promotion as per Article 2.23. If the Member is granted a promotion, the said promotion shall be retroactive to the date of the Member's reappointment.

15. Term appointments shall be limited to a total of three (3) years, except by agreement of the parties. In cases where the limited term appointment is a replacement for an academic administrator, the appointment may be for a term up to five (5) years. The initial term may be for less than a full academic year, but reappointment shall normally be for a full twelve- (12) month period. The term limits (three or five) shall apply whether or not the term appointments are consecutive or intermittent.

16. Non-renewal of term appointments shall not be subject to grievance.

17. For the duration of this Agreement, the Board agrees that the total number of limited term appointments will not exceed fifteen (15) percent of the total number of faculty members except with the agreement of the parties.

PROBATIONARY APPOINTMENTS/TENURE APPOINTMENTS

18. Probationary appointments are defined as appointments lasting up to a maximum of five (5) years, during which time the employer and the employee are afforded an opportunity for mutual appraisal.

19. Probation does not imply that the Board will grant tenure at the end of the probationary period; it does imply that the Board will give serious consideration to awarding tenure.

20. Should a Member holding a term appointment wish to apply for a probationary appointment, the Member's application shall be considered in the normal way along with all other applications for the position. Should such a Member be appointed to the probationary position, consideration for tenure shall be awarded on a year-for-year basis, to a maximum of three (3) years.

21. Faculty appointed on probation will serve a maximum probationary period based on the academic rank at which the appointment is made. Faculty appointed at the rank of Lecturer/General Librarian or Assistant Professor/Assistant Librarian will serve a five- (5) year probationary period. Faculty appointed at the rank of Associate Professor/ Associate Librarian and Full Professor/Librarian will serve a three- (3) year probationary period. Where a Member is appointed at the rank of Full Professor/Librarian the University may grant tenure on appointment. Under exceptional circumstances and upon recommendation of both the unit and the Vice-President, Academic, where a Member is appointed at the rank of Associate Professor/Librarian the University may grant tenure on appointment, provided that the new Member is tenured at another recognised university.

22. An Associate Professor/Associate Librarian or Full Professor/ Full Librarian who has at least three (3) years service to the University, who has applied for a probationary position, shall be considered for such a position on the basis of the criteria listed in Article 2.22 - Tenure Evaluation. Should such a Member be appointed to the position, it shall be a final probationary appointment of one year with tenure evaluation to begin by 30 September of that year.

23. In the case of persons appointed at the rank of Lecturer/ General Librarian and Assistant Professor/Assistant Librarian, the initial probationary appointment shall be for a period of three (3) years.

a) In their initial letter of appointment by the Vice-President, Academic and in their annual evaluation letters by the Deans/Director of the Library, all Members on initial probationary contract shall be notified that they shall begin to undergo a renewal evaluation by the FPC/FFPC/LPC no later than September 30 of the final year in their initial probationary contract.

b) Subject to satisfactory performance as outlined in c) below, the initial probationary contract will be followed by a further two year probationary appointment with a tenure evaluation to take place in the final year of that second appointment or as per Article 2.22.

c) The decision whether or not to offer a second two (2) year probationary appointment shall be reached on the basis of:

(i) judgement of satisfactory performance under procedures set out under Article 2.11-Annual Report for Members, Article 2.22-Tenure Evaluation Procedures and Article 4.11-Procedures for the Award/Denial for a Progress-Through-the-Rank Increment;

(ii) and, for alternate teaching stream faculty, satisfactory evaluations of teaching, professional expertise, and development; assessments shall include decanal and peer assessments of teaching based in part on class visits.

d) In assessing the Member's progress toward meeting the requirements for tenure outlined in Article 2.22 paragraphs 2. c, d or e, the FPC/FFPC/LPC shall comment on each aspect of these criteria. The FPC/FFPC/LPC should also comment whether the rate of progress shown during the initial probationary period, if continued, would likely lead to the award of tenure at the end of the final probationary period. If the performance is found unsatisfactory the FPC/FFPC/LPC may recommend that the Member not be offered a final probationary appointment.

24. In the case of persons appointed at the rank of Associate Professor/Associate Librarian and Full Professor/Librarian, the initial appointment shall be a three (3) year probationary appointment with a tenure evaluation to take place in the final year of the appointment, except as modified in paragraph 20 above.

25. The tenure evaluation is to be conducted in accordance with the procedures set out in Article 2.22 - Tenure, and will result in a decision either to award tenure or to allow the appointment to lapse.

ARTICLE 2.22 - TENURE EVALUATION PROCEDURES

1. a) In the interest of the University community and of society at large tenure protects free criticism and independent judgement and hence forms an integral part of Academic Freedom per Article 1.21.

b) Tenure means permanency of appointment. Such an appointment may be terminated through resignation, retirement, dismissal for cause as established by a proper hearing, redundancy or financial exigency consistent with the terms of this Agreement, or as otherwise stated in this Agreement. Tenure includes the right during appointment to academic freedom and to fair consideration for increases in responsibility and salary, and promotions in rank.

2. Tenure Evaluation

a) Members on probationary appointments shall normally begin to undergo a formal tenure evaluation by the FPC/FFPC/LPC no later than 30 September of the final year of their probationary status. However, Members may apply for tenure one year prior to the final year of their probationary status. An early application for tenure may not result in a termination of appointment. Members considered for tenure at the end of the normal probationary period may be awarded tenure, denied tenure, or if the Member has not made an early application for tenure, may have his/her probationary period extended by one additional year, during which she/he shall be evaluated for tenure for a final time. A

Member may not be considered for tenure more than twice.

b) All Members on probationary appointments shall begin to undergo a formal tenure evaluation by the FPC/FFPC/LPC no later than 30 September of the final year of their probationary status.

(i) However, in recognition of the fact that Members may have to deal with heavier than normal personal responsibilities or extraordinary circumstances, not faced by the majority of other Members, the opportunity is provided for a Member to request a delay of up to two years in the tenure review process. Members wishing to delay their final tenure evaluation must apply in writing to the appropriate Dean/Director of the Library no later than August 1 of the final year of their probationary appointment describing the special circumstances why a delay in tenure review is requested, identifying the particular area in the performance of the Member that would be strengthened by the delay and what steps the Member will take to meet the requirements for tenure during the period of the delay. The Dean/Director of the Library, after discussion with the appropriate academic unit(s) will forward a recommendation to the Vice-President, Academic who will render a decision by September 1. The Vice-President, Academic may authorise a delay in tenure evaluation for up to two years. If the Vice-President, Academic does not authorise a delay in tenure evaluation, the evaluation will proceed. Failure by the Vice-President, Academic to authorise a delay in tenure evaluation shall not be subject to grievance and arbitration.

(ii) Members who have taken maternity leave of seventeen (17) weeks or adoption leave of eight (8) weeks as provided under Article 3.51 – Family Responsibility during their probationary period may elect to postpone the mandated evaluations leading to tenure (both the evaluation for renewal of the probationary appointment and the final tenure evaluation) by one year for each incident of leave period.

c) In the case of regular stream teaching faculty, this evaluation shall be based exclusively on an assessment of:

(i) The probationer's performance, as exemplified in teaching and scholarly activity. In no instance will tenure be awarded if teaching performance is judged unsatisfactory as determined solely by the methods of teaching evaluation mandated by the Collective Agreement. However, the nature and scope of past teaching activities shall be taken into account in assessing a Member;

(ii) The probationer's contribution to the Department or School, to the University, and as appropriate to the wider community; and

(iii) Whether the probationer has met the formal educational

and/or professional and/or linguistic qualifications specified in the original letter of appointment.

- d) In the case of alternate stream faculty this evaluation shall be based on an assessment of:
 - (i) Probationers' performance, as exemplified in teaching, the execution of their assigned workload, and professional development. Assessments shall be based in part on class visits by the Dean and the probationers' peers. In no instance will tenure be awarded if teaching performance is judged unsatisfactory. A negative decision can be based only on the methods of teaching evaluation mandated by the Collective Agreement;
 - (ii) The probationer's contribution to the Department or School, to the University, and as appropriate to the wider community; and
 - (iii) Whether the probationer has met the formal educational and/or professional and/or linguistic qualifications specified in the original letter of appointment.
- e) In the case of librarians, this evaluation shall be based exclusively on an assessment of:
 - (i) The probationer's performance, as exemplified in professional and scholarly activity. In no instance will tenure be awarded if overall professional performance is unsatisfactory. The amount and duration of release time allowed librarians for scholarly output shall be taken into account in assessing a Member;
 - (ii) The probationer's contribution to the Library, to the University and as appropriate to the wider community; and
 - (iii) Whether the probationer has met the formal educational and/or professional and/or linguistic qualifications specified in the original letter of appointment.
- f) In the conduct of its tenure evaluation, the FPC/FFPC/LPC shall:
 - (i) Ask each tenured Member of the unit concerned for a written assessment of the candidate, plus recommendation in terms of the criteria stated in 2 c) d) or e) above. Each Member has a responsibility to submit such an assessment. The Members' reports shall be forwarded to the Faculty/Library Personnel Committee not later than 15 October, and summaries shall be made available to the candidate by the Chairperson of the FPC/FFPC/LPC, without attribution of assessors.
 - (ii) Receive a written assessment/recommendation from the Dean/Director of the Library not later than October 15 and forward a copy to the Member.

The Parties agree that, where Members are appointed to more than one unit, assessments shall be sought from all members of each unit. The assessments shall be weighted in the process to reflect proportionately the extent of the Member's teaching assignments in each of the units.

In units with fewer than six members and in cases where fewer than four colleagues are required (by reason of tenure qualifications, etc.) to provide assessments, a Memorandum of Agreement shall be entered into with LUFA and in consultation with the Member and with other members of the unit to provide an appropriately-sized and appropriately-qualified panel of assessors.

Notwithstanding the foregoing, any member being assessed may request that assessments from additional colleagues with relevant qualifications and experience should be introduced. The Member shall so inform the Dean/Director of the Library in applying for tenure or promotion, and the Dean/Director of the Library shall officially request assessments from the nominated assessors. The FPC/FFPC/LPC will be responsible for deciding what weight to give such assessments.

(iii) Assess the probationer's teaching/professional activities by means of evaluations that follow Senate sanctioned procedures and criteria, including student evaluations.

(iv) Interview the probationer.

(v) Forward a written assessment of the candidate including the assessment/recommendation of the Dean/Director of the Library, and their decision, in terms of the criteria stated in 2 c) d) or e) above, consistent with Article 2.00, to the Vice-President, Academic, with a copy to the probationer, no later than 15 November of the academic year in which the evaluation takes place.

3. Within 30 days of the FPC/FFPC/LPC decision the Vice-President, Academic shall confirm or refer back, the decision. In the event that the Vice-President, Academic refers back the decision, the Vice-President, Academic shall state to the candidate and the FPC/FFPC/LPC, in writing, the reasons for the action. The Committee must re-examine and address the Vice-President's concerns within 21 days. In making a final decision whether to offer tenure the Vice-President, Academic shall also take into consideration any representations made by the Member as well as the response of the FPC/FFPC/LPC to the specific concerns expressed. The decision of the Vice-President, Academic whether or not to offer tenure shall be communicated in writing by the Vice-President, Academic to the Member with a copy to the FPC/FFPC/LPC and to the Association by January 15 of the academic year in which the Member is considered for tenure.

4. All Members of the bargaining unit with tenure on 1 July 1980 shall continue to have tenure.
5. All full-time professional librarians of the bargaining unit having previously been evaluated for a permanent position at the University shall be deemed to have tenure effective 1 July 1980.

ARTICLE 2.23 - PROMOTION PROCEDURES

1. The term "promotion" applies to advancement from the rank of Instructor to Lecturer, Lecturer to Assistant Professor, Assistant Professor to Associate Professor and Associate Professor to Full Professor, or to corresponding advancement for the Librarians from the rank of General Librarian to Assistant Librarian, Assistant Librarian to Associate Librarian and Associate Librarian to Full Librarian.
2. A Member is eligible to apply for promotion while on leave, but the Member is responsible for maintaining contact with the University and for all expenses incurred in making appearances when requested.
3. Members shall normally apply for their own promotion. Applications may also be submitted by Chairpersons/Directors, or a Dean/Director of the Library on behalf of Members who have not themselves applied where the Members have declared their willingness to be considered.
4. Applications shall be made on the prescribed application form and forwarded in triplicate to the office of the applicant's Dean/Director of the Library, together with three copies of all necessary and relevant documentation.
5. The application for promotion shall reach the Dean/Director of the Library not later than September 30th, for decision in that Academic Year. Members are urged to consult with the Dean/Director of the Library well in advance of the application deadline. If the Member so requests by 15 September, the Dean/Director of the Library will prepare a preliminary written assessment based on the requirements set out in the appropriate paragraphs of Article 2.20 within one week of receiving the Member's application. A copy of this assessment will immediately be forwarded to the Member who will then have one week to decide whether or not to proceed with the application.
6. The following documents must be attached to the application for promotion and must be submitted at the time of application:
 - a) An updated curriculum vitae of the applicant.
 - b) For applications for promotion to Full Professor/Librarian:
 - (i) A list of at least three (3) referees, of which two will be chosen, from outside the University qualified to assess the research and creative works of the applicant. In the case of Members of the alternate teaching stream, the assessors must be

qualified to assess the professional and teaching qualities of the applicant as described under Article 2.20, 2. (3).

(ii) A copy of the research and creative works the applicant wishes to have considered in the examination of the application, it being understood that the applicant may attach a clear and detailed description of these works when the works are such that their physical submission is not practical. Barring unusual circumstances, it is assumed that all research and creative works submitted by the applicant will be made available to the external referees for review.

(iii) In the case of Members of the alternate teaching stream, other material necessary for an evaluation of the candidate's performance according to the criteria outlined in Article 2.20, 2. (e).

7. For promotions to the rank of Full Professor/Librarian, the Dean/Director of the Library will review each application and determine whether the candidate meets minimum service requirements and has a chance of success that is not low. If the determination is negative, the Dean/Director of the Library will inform the candidate and meet to explain the determination and to suggest what action should be taken to give a future application a reasonable chance of success. A written explanation shall be provided on request. Where the determination is positive or where a Member who decides to proceed with her/his application in spite of a negative determination, the Dean/Director of the Library shall ask each full-time Member of the applicant's unit (or units, as outlined in Article 2.22, paragraph 2 f i)) for a written assessment, using an appropriate form designed for the purpose, of the candidate in terms of the relevant criteria for promotion. The Member's reports shall be forwarded to the Chair of the FPC/FFPC/LPC not later than 20 October. Summaries of the assessments shall be prepared by the Chairperson/Director of the unit and the Dean/Director of the Library, and shall be made available to the candidate without attribution of assessors.

For promotion to ranks other than Full Professor these assessments shall be made available to the applicant as soon as summaries have been completed but at least one-week before an FPC/FFPC/LPC considers a given case. For promotions to the rank of Full Professor the summaries will be completed but not forwarded to the applicant until after the external assessments have been obtained. At that time the Chair of the FPC/FFPC/LPC will review the assessments for potential conflict of interest.

8. The Dean/Director of the Library will prepare an assessment/recommendation for each Member who has applied for promotion and forward this to the appropriate FPC/FFPC/LPC not later than 31 October. For promotions to the rank of Full Professor/Librarian, the Dean/Director of the Library may append additional comments to the assessment within one week of receiving the reports of the external assessors. These assessments shall be made available to Members as soon as

they are prepared and at least one week before an FPC/FFPC/LPC considers a given case.

9. The appropriate FPC/FFPC/LPC shall study each application and all relevant documentation and shall decide whether the criteria have been met. In making the decision, the FPC/FFPC/LPC shall refer to:

- a) Article 2.00 - Rights, Responsibilities and Duties
- b) Article 2.01 - Assessment of a Member's Performance
- c) Article 2.20 - Academic Qualifications Guidelines

For appointment/promotion to the rank of Full Professor/ Librarian, the FPC/FFPC/LPC shall consider the assessment of the Member's scholarly activity as judged by four (4) external referees. Two (2) of these referees will be nominated by the candidate if the candidate so requests. Should the candidate fail to nominate one or both external referees, the Member's academic unit will nominate the required referees. The additional external referees shall be appointed by the Vice-President, Academic after consultation with the Unit. All external evaluations shall come to FPC/FFPC/LPC duly signed by the author.

10. Once the external assessment of the applicant's research or creative works is completed, the FPC/FFPC/LPC shall forward summaries without identification of author of all solicited information from external referees or otherwise confidential information to the applicant.

11. When the FPC/FFPC/LPC has completed its inquiries and deliberations it will forward its decision to the Vice-President, Academic. Except in the case of applications for promotion to Full Professor/ Librarian, this shall be done by 15 January. All relevant documentation shall be attached, including the written comments and evaluations from the unit's (or units') Members, the Dean/Director of the Library, the FPC/FFPC/LPC, and in the case of applications to Full Professor/Librarian, outside referees. A copy of the FPC/FFPC/LPC's decision shall be forwarded to the Member.

12. Within 30 days of the FPC/FFPC/LPC decision the Vice-President, Academic shall confirm or refer back, the decision. In the event that the Vice-President, Academic refers back the decision, the Vice-President, Academic shall state to the candidate and the FPC/FFPC/LPC, in writing, the reasons for the action. The Committee must re-examine and address the Vice-President's concerns within 21 days. In making a final decision whether to promote, the Vice-President, Academic shall also take into consideration any representations made by the Member as well as the response of the FPC/FFPC/LPC to the specific concerns expressed. The decision of the Vice-President, Academic whether or not to promote will be communicated in writing by the Vice-President, Academic to the Member with a copy to the FPC/FFPC/LPC and to the Association.

13. In the case of Members at the rank of Lecturer/General Librarian who are awarded a doctoral degree, they shall be promoted to the rank of Assistant Professor effective January 1 or July 1 whichever next follows the

award of the degree. The doctorate will be deemed to have been received when the individual can provide a diploma or a letter from the university where the doctorate is being obtained indicating that all the conditions for the doctorate, including the thesis defence and the corrections to the thesis, have been met. Members must supply a copy of the diploma or of the letter to their Dean/Director of the Library with a normal application form as well as an updated C.V. before the promotion procedures will be initiated. In the case of librarians, Members must also demonstrate that they are holders of a Master's degree in Library Science if their doctorate is not in Library Science.

ARTICLE 2.30 - PERSONNEL FILES

1. Official personnel files of a Member shall be kept by the appropriate Dean of Faculty or the Director of the Library, with copy in the office of the Vice-President, Academic. There shall be two types of files for Members, active files and archival files. Active files shall contain only information allowed under this article. Archival files shall contain material which has been banned for use in subsequent proceedings as in clauses 5, 6, 7, 8 and 9 of this article but which the University requires for matters other than those related to this Collective Agreement.
2. Members shall have the right to examine all of their personnel files during normal business hours, after notice in writing, in the presence of the Dean/Director of the Library or a person authorised by the Dean/Director of the Library. Material in the files which is to be held confidential according to the provisions of this Agreement will be removed from the files prior to their inspection by the Member. However, an inventory of this confidential material, certified by the Dean/Director of the Library, will be provided to the Member, such inventory shall identify all confidential documents by authorship (if appropriate), date and general subject matter only.
3. Members may request the VP Academic to provide one (1) copy of their personnel file, excluding confidential material according to the provisions of this Agreement but including the inventory thereof. Such requests will be filled within five (5) working days, at no charge to the Member. One copy of additions made subsequent to the initial copying may be requested under the same conditions and terms. Requests for additional copies will be filled at the convenience of the Vice-President, Academic.
4. No anonymous material concerning any Member shall be kept by the Board for inclusion in the Member's personnel file. Statistical summaries of student evaluations or written summaries of student comments unrelated to Senate sanctioned course evaluations, such summaries to exclude anonymous comments, shall neither be considered anonymous nor confidential and shall remain available when required by this agreement.
5. Members shall have the right to have all of their files supplemented or corrected in the event of error, or inadequacy. In the event of alleged distortion, Members shall have the right to provide additional material for inclusion in their personnel files. Members shall have the right to request the

removal from their personnel file of any false, irrelevant or unsubstantiated material. Such requests shall be made through the Dean/Director of the Library as appropriate and must be accompanied with reasons why the material is false, irrelevant or unsubstantiated. In the event of refusal by the Dean/Director of the Library of such a request, the Dean/Director of the Library shall provide the Member with reasons why the material is true, relevant or substantiated, and shall send a copy of that response to LUFA. Members can grieve according to the provisions of this agreement, providing only that such grievance is initiated within forty-five (45) working days of notification by the Board to the Members that the material in dispute is to be included in their personnel file.

6. Letters of assessments received in relation to the appointment of a Member shall be confidential and shall not be submitted as evidence in any subsequent proceedings against that Member.

7. Letters of reprimand are inadmissible evidence if used against a Member for any purpose when no further disciplinary measures have been imposed on the Member for two (2) subsequent academic years. In advance of any proceedings involving the Member, the Dean/Director of the Library shall remove such letters from the Member's personnel file and place them in a University depository. The Member shall be notified that this has been done.

8. All letters or assessments solicited by the FPC/FFPC/LPC and any summaries thereof shall be kept confidential and used only for the purposes for which they were solicited in any subsequent proceedings against that Member.

9. Student evaluations, in numerical or written form, shall not be admissible as evidence in any process involving a Member's tenure, promotion or dismissal if such evaluations are more than five (5) years old.

10. A full copy of a Member's file, including all letters of reference and assessments except those excluded by the provisions of this agreement, shall be made available to the FPC/FFPC/LPC and the Vice-President, Academic at their request for the purpose of promotion and tenure evaluation. Such committees will treat the file as confidential.

11. When confidential information is to be used by the Board in the course of proceedings to resolve a grievance, the detailed substance of such confidential information shall be made available at least one (1) week in advance of the hearing to Members or their duly authorised representative in a form which does not identify the author. For arbitration, reasonable efforts will be made to supply the information as soon as practicable, subject to the above.

12. Where in the opinion of an arbitrator the identity of the author is central to the resolution of the difference, the arbitrator shall be supplied with the information and may make use of it as essential to his decision while maintaining the confidentiality thereof.

13. The Board agrees not to release any individually identifiable information concerning a Member or Members without the written consent of the Member(s), except as provided for in Article 1.42 information.

14. In the case of an appeal against dismissal, the contents of the official personnel file shall be made available to the Member as a true copy if and when the formal grievance procedure has been initiated using the same protection of confidentiality as stated in paragraph 11.

ARTICLE 2.40 - DISCIPLINARY MEASURES

1. Discipline of Members by the Board shall be only for just cause. The disciplinary measures taken shall be commensurate with the just cause.

2. "Just cause" for disciplinary measures shall include:

- a) Serious unprofessional behaviour.
- b) Failure to comply with any of the provisions of this Agreement, minor technical violations excepted.

3. The following are the only formal "Disciplinary Measures" which may be taken by the Board against a Member:

- a) A formal reprimand in writing to the Member, specifying the grounds and adding this reprimand to the personnel file of the Member concerned.
- b) The withholding of an annual increment as per article 4.11 - Procedures for the Award/Denial of an Annual Increment.
- c) The suspension without pay of a Member for a period of one to five, ten, fifteen or twenty working days. The reduction in pay shall be computed as 1/365 of normal salary per day of suspension. The suspension may, at the Vice-President's discretion, be scheduled so as not to interfere with a Member's teaching/library duties.

4. When a Dean/Director of the Library is satisfied following an investigation that there is just cause to write a formal reprimand the Dean/Director of the Library shall do so directly, although the Member has the right of review per Article 2.30 Personnel Files.

5. When the Vice-President, Academic is satisfied following an investigation that there is just cause to suspend a Member, the Vice-President shall do so by written communication to the Member, setting out therein the reasons therefor.

6. Cases involving the inability of a Member to perform reasonable duties by reason of physical or emotional illness shall be treated separately from cases for disciplinary measures. If sickness or disability is proven, leave

shall be granted and the case dealt with within the University sickness and disability provisions. In exceptional cases when behaviour providing grounds for disciplinary measures is judged to be due to illness and the Member refuses to be placed under the sickness and disability provisions of this Agreement, disciplinary procedures may be initiated.

7. Grievances regarding disciplinary measures against Sessional Members shall be dealt with by the procedures in Article 2.95-7.

ARTICLE 2.41 - DISMISSAL PROCEDURES

1. "Dismissal" means the termination for just cause of a term appointment or a probationary appointment before the end of the stated contractual period, or the termination of a tenure appointment for cause at any time other than normal retirement. Neither the failure to renew a term or probationary appointment at the end of the defined term nor the decision not to grant tenure, nor termination of an appointment for the purpose of retirement, provided these actions are in accordance with this Agreement, constitutes dismissal.

2. Just cause shall be defined as:

a) Gross misconduct.

b) Persistent failure to discharge academic responsibilities as defined in this Agreement either through incompetence or neglect of duties.

3. a) Cases involving the inability of a Member to perform reasonable duties by reason of physical or emotional illness shall be treated separately from cases of dismissal for cause.

b) Where such inability has been established, leave shall be granted and the case dealt with within the University sickness and disability provisions according to Article 3.4.

c) If the Member refuses to comply with the requirements of the University's sickness and disability provisions, e.g. refuses a medical examination required by the University pursuant to Article 3.4 or policies of the company carrying the insurance or refuses the leave associated with these procedures, the President may proceed to lay dismissal charges.

d) If the President proceeds with dismissal for cause, it shall be a sufficient defence to prevent dismissal for the Member to establish that failure to perform reasonable duties arose from physical or emotional illness.

e) If Members are on sickness or disability leave and consider that they have recovered and are capable of undertaking normal academic activities, they shall present medical evidence from a medical practitioner to their Dean/Director of the Library. If the Dean/Director

of the Library agrees, the Members shall be reinstated with full rights and benefits forthwith. If the Dean/Director of the Library disagrees, the Dean/Director of the Library shall require the opinion of two (2) additional medical practitioners named by agreement with the Member, or if there is no agreement, by the O.M.A. The majority opinion of the three (3) medical practitioners shall prevail. The Board shall pay the cost of such additional medical examinations required by it.

4. Where the Dean/Director of the Library is satisfied that there is just cause to warrant dismissal proceedings, the Dean/Director of the Library shall make a recommendation, in writing to the President.

5. The President of the University may, by written notice for stated cause, suspend Members from some or all of their University duties and withdraw some or all of their University privileges, excluding membership in Senate, provided that dismissal procedures or procedures related to physical or emotional incapacity to perform reasonable duties (see 3 above), have already been initiated or are initiated within 24 hours. The suspension shall terminate with the conclusion of the dismissal or other proceedings, or at such earlier time as the President may deem appropriate. The stated cause must involve a situation perceived by the President as an immediate threat to the functioning of the University, or to any member of the University. Salary and other benefits shall continue throughout the period of suspension.

6. If the President is satisfied that there is a prima facie case the President shall initiate dismissal proceedings in the following manner. The President shall notify the Member of the Dean's/Director of the Library's recommendation and request that the Member meet with the President, and such person as the President may wish, for a discussion of the case. In this and all further proceedings, an advisor may accompany the Member. If this attempt fails to settle the matter, or if the Member refuses to meet with the President, the Member shall be informed by the President, in writing, by registered mail, of the reasons for the dismissal proceedings against the Member in sufficient detail to enable the Member to prepare a response.

7. If the Member's whereabouts are unknown to the University and the Association, the meeting contemplated in (6) above shall be dispensed with and the President may immediately give notice of dismissal by registered mail addressed to the Member's last known address.

8. The Association is entitled to carry forward a grievance on behalf of the Member commencing at step 2 of the grievance and arbitration procedure and proceeding through the grievance and arbitration provisions of this Agreement.

ARTICLE 2.50 - RETIREMENT

1. Normal Retirement Date

The normal retirement date of a Member shall be the first day of July next following the attainment of age 65, unless the member's 65th birthday

falls on the first day of July, in which case the Normal Retirement Date shall coincide with the Member's 65th birthday.

2. Optional Retirement Dates

a) Early Retirement

Early retirement shall be governed by the regulations of the Laurentian University Pension Plan or if applicable by the terms of the Special Voluntary Early Retirement Plan, Appendix C.

b) Postponed Retirement

(i) The Board may, at its discretion and with the approval or request of a unit invite Members to postpone retirement beyond the normal retirement date. Such postponement shall be on a year by year basis, except that the postponement of the start of the retirement annuity may not be continued past the Member's seventy-first birthday.

(ii) If Members elect to continue their contributions to their Money Purchase Account after the normal retirement date, the Employer will also continue its contribution to that account on the Member's behalf. However, no employee or employer contributions will be made after the Member's seventy-first birthday. A postponed retirement shall be on a year by year basis whether full-time or part-time, except that the postponement of the start of the retirement annuity may not be continued past the Member's seventy-first birthday. Members who postpone their retirement will receive an actuarially increased annuity.

c) Retirement at Dates Other than July 1st.

Subject to paragraphs 2a) and 2b) and in unusual circumstances a Member may request and the Pension Committee may approve the request, retirement, at a date other than July 1st. In this instance, an annuity shall be purchased as of the next date the Board will have available to it the evaluation of the total fund as of the day preceding - that is, 1 October, 1 January, and 1 April.

If such a request is made approved and implemented, only that Member's share of the net growth of the fund to the day preceding will be allocated.

3. Members retired from this University shall retain:

a) The right to their title and the listing of their name and their title in a special section at the back of the University Calendar, until the death of the Member.

b) The same library privileges as full-time Members, free parking in

facilities available to full-time Members, and such other University facilities as may be granted by the Vice-President, Academic at his/her discretion.

c) The same exemption from tuition fees for themselves, their spouses, and their dependants as full-time Members, as per Article 4.53.

d) The same eligibility for free Physical Education Centre membership for themselves, their spouses and their dependants as full-time Members, as per Article 4.56.

4. To honour an outstanding contribution in an academic field, the Board may, in accordance with Senate policy, bestow the title of Professor/Librarian Emeritus upon a retiring Member.

ARTICLE 2.51 - RESIGNATION

1. Normally a Member may resign effective 30 June or 30 December, with at least one month's written notice to the Vice-President, Academic. All leaves to which a resigning Member would be entitled must be terminated at that date.

2. Employment may be terminated at any time by mutual written agreement between a Member and the Vice-President, Academic.

ARTICLE 2.60 - FACULTY/Francophone Faculty/Library Personnel Committee

1. Structure of the FPC/FFPC/LPC

a) In each Faculty there shall be a Faculty Personnel Committee (FPC) composed of seven (7) elected Members plus one alternate. A Dean/Director of the Library appointed by the Vice-President, Academic shall be the non-voting Chair. All Members of the FPC must be tenured and no more than two (2) Members shall belong to the same academic unit. Except as provided in (c), at least three (3) Members shall be Full Professors from within that Faculty. Every effort shall be made to seek nominations from female Members.

b) There shall also be a Francophone Faculty Personnel Committee (FFPC) composed of eight (8) members, two from each of the four existing Faculties. The elected member with the lowest number of votes shall serve as the alternate. A Dean/Director of the Library appointed by the Vice-President, Academic (Francophone Affairs) shall be the non-voting Chair. All members of the FFPC must be tenured and qualified Francophone Members i.e. must have taught or be scheduled to teach a course in French at Laurentian. Except as provided in d), at least three (3) Members shall be Full Professors. Potential candidates will be identified by the Office of the Vice-President, Academic (Francophone Affairs). Every effort shall be made to seek nominations from female Members.

If a Member wishes to have his/her case heard by the Francophone Faculty Personnel Committee, this intention must be indicated in writing at the time the application is made; otherwise the application will be heard by the appropriate FPC. Applications are to be sent to the appropriate Dean who will forward these to the non-voting Chair of the Francophone Faculty Personnel Committee. Once a Member has selected a Committee, he/she is not free to change to another Committee either in that academic year or in the following year if the application was unsuccessful.

c) In the Library, there shall be a Library Personnel Committee (LPC) composed of five (5) elected Members and one (1) alternate. A Dean appointed by the Vice-President, Academic shall be the non-voting Chair. All Members of the LPC must be tenured and except as provided in (d), two (2) Members shall be Full Professors/Librarians. There shall be at least two (2) Members from the Library and at least two (2) must be Members of a Faculty outside the Library. Every effort shall be made to seek nominations from female Members. In the event that a Member from the Library wishes to have his/her case heard by a Francophone Faculty Personnel Committee the Parties will reach agreement on the composition of such a Committee by Memorandum of Agreement.

d) In the event that the requirements in (a) (b) or (c) above cannot be met, the first priority in dealing with insufficient Members at a rank shall be to seek nominations by members of that Faculty/Library of Members of another Faculty/Library at the required rank. The second priority shall be to seek nominations by members of that Faculty/Library of Members from the next lower rank within the same Faculty/Library.

2. Election of the FPC/FFPC/LPC Members

a) The Secretary of Senate shall conduct the elections of the Faculty/Library Personnel Committees by September 30 of each year. The Board and the Association each shall appoint one (1) scrutineer for the elections.

b) Nominations shall be by Members of each Faculty/Library. Voting shall be by Members of the faculty/library for Members of their own FPC/FFPC/LPC. Qualified Francophone Members may vote in the elections for faculty representatives on both the FPC and FFPC. Elections shall be conducted in the office of the Secretary of Senate by secret preferential ballot. Except as described in 1.b) the alternate will be the nominee, not elected who received the greatest number of votes.

c) Any tenured Member may be a member of the FPC/FFPC/LPC it being understood that:

(i) No Vice-Dean may be a committee member.

- (ii) The President of LUFA and the Chief Grievance Officer of LUFA may not be committee members.
- (iii) An elected member may not serve for more than two (2) consecutive terms.
- (iv) A Member may not be a committee member during the academic year s/he is on sabbatical.
- (v) No Member may serve on more than one FPC/FFPC/LPC in the same academic year.

d) In the event that any positions of an FPC/FFPC/LPC are not filled through the election process outlined, the Dean of the Faculty/Director of the Library, or in the case of the FFPC, The Vice-President (Francophone Affairs) and an appointee of the LUFA Board shall seek, within five (5) working days, a mutually acceptable candidate(s) who shall be named to serve.

3. Term of Office and Vacancies

- a) The term of office of elected and appointed FPC/FFPC/LPC members shall be two (2) years, starting on September 30 following the election. To ensure continuity, the terms shall be staggered.
- b) A committee member who makes an application for promotion or for whatever reason is being evaluated by the FPC/FFPC/LPC shall be deemed to have resigned from the committee.
- c) In the event that replacements are needed, the Dean of the Faculty/Director of the Library or in the case of the FFPC, the Vice-President, Academic (Francophone Affairs) and an appointee of the LUFA Board shall (subject to 1. above) seek a mutually acceptable tenured candidate who shall be named to serve.

4. Voting, Recording and Reporting Procedures

- a) A quorum shall consist of the full committee. The alternate may replace any elected Member when needed to obtain quorum.
- b) The alternate Member shall act in the absence of a regular Member in order to obtain quorum. A regular Member who is unable to attend meetings shall so inform the Chairperson. The Chairperson shall formally invite the alternate to replace the regular member. The alternate Member shall be kept informed of Committee proceedings and shall be invited to attend all meetings. The alternate member has an obligation to stay abreast of the matters discussed.
- c) All decisions of the Committee shall be recorded. In order to establish which factors were persuasive in any given decision, the FPC/FFPC/LPC shall set forth in its decision its findings and the grounds for its decision. These decisions shall be kept in the office of the Dean/Director of the Library and in the case of the FFPC, in the office of the appropriate Dean and shall be available to the members of

the Committee. Committee members shall make their decisions in a manner consistent with the Collective Agreement. A copy of the decisions shall be forwarded to the candidate. Each decision shall contain the following paragraph: "The Member may make written representations to the Vice-President, Academic within ten (10) working days of the date on which the FPC/FFPC/LPC forwards to the Member a copy of its decision to the Vice-President, Academic."

d) Decisions of the FPC/FFPC/LPC on renewal shall be by majority vote. Decisions of the FPC/FFPC on tenure and promotion shall require five (5) positive votes. Decisions of the LPC on tenure and promotion shall require four (4) positive votes. Members of the committee shall record their vote on an official ballot with their name on it and shall write on the ballot a reasonable opinion supporting the vote. The Chairperson shall rely on these opinions in writing the committee's decision. Prior to sending the committee's decision to the Vice-President, Academic, the report must be brought to FPC/FFPC/LPC for review. Members of the committee who wish to add a minority opinion may do so by submitting a written signed opinion which will be attached to the majority decision. Official ballots shall be retained until all procedures up to and including arbitration have been exhausted.

e) Prior to the end of each academic year, the chairperson of the FPC/FFPC/LPC shall make an annual report to the Vice-President, Academic summarising the activities and decisions of the FPC/FFPC/LPC. This report shall indicate all decisions that were referred back to the FPC/FFPC/LPC by the Vice-President, Academic. A copy of this annual report shall also be sent to the President of LUFA.

5. Operating Procedures

The Chairs of FPC/FFPC/LPC shall ensure that at the commencement of evaluations for promotion and tenure, all members of the Committee are familiar with the employment equity policies.

a) No member of an FPC/FFPC/LPC shall participate in the evaluation/assessment of Members at the unit level.

b) (i) At least two weeks before the FPC/FFPC/LPC considers individual cases, the Chair will mail to each applicant a list of Committee Members and request that the applicant state in writing whether there exists a conflict of interest with any member of the Committee. It is the responsibility of the Chair of the committee to assure that each applicant completes this declaration before his/her case is heard. An applicant will not be allowed to declare a conflict of interest once the FPC/FFPC/LPC has started to discuss that particular case.

(ii) If an applicant believes that a conflict of interest exists with any member of the FPC/FFPC/LPC, she/he will state the reasons

in writing to the Chair of the Committee in sufficient detail to allow the Committee to assess the merits of the claim. The Committee will vote on the issue and if at least three members of the Committee are of the view that a conflict of interest exists the member of the Committee will be replaced by the alternate.

A member of the FPC/FFPC/LPC may declare a conflict of interest with the applicant and may withdraw from the Committee for that particular case.

If the Chair of the FPC/FFPC/LPC perceives a conflict of interest that has not been declared by either the applicant or the member of the Committee, the Chair may raise the matter with the Committee member and/or the applicant and, if not satisfied with the response with the entire FPC/FFPC/LPC. A vote by simple majority of the FPC/FFPC/LPC will resolve the issue of whether or not a conflict of interest exists.

If a conflict of interest exists with two or more members of the Committee, the Chair of the FPC/FFPC/LPC will find replacements according to the procedures of Article 2.60.

(iii) In arriving at a decision on conflicts of interest, the Committee will be guided by the following principles. A conflict of interest occurs when a person has a duty to fairly decide or vote on an issue and there is a reasonable presumption that the person stands to benefit or be harmed from a certain resolution of the issue.

In the context of collegial decision making, prior service in the same department or school, joint service on University or LUFA committees or other normal acquaintance by itself does not constitute grounds for the presumption of a conflict of interest.

c) Before making any decision or recommendation on any individual Member, the FPC/FFPC/LPC shall:

(i) Invite the Member to meet with the FPC/FFPC/LPC. The Member may be accompanied by a colleague of his/her choice.

(ii) Take into account but not be limited to the following evidence:

-Those parts of the Member's current personnel file that are relevant to the matter being discussed. The Member shall be provided with a list of material from the personnel file that is being considered and that has not accompanied the application.

-The assessments by the Members of the unit(s) and by the Dean/Director of the Library.

-Any relevant material specified in the candidate's letter of application or curriculum vitae. The candidate shall be responsible within reason for producing one true copy of any material that he/she wishes to be considered.

-The oral and/or written submission made by the candidate.

-Such other factual information as is necessary to understand the evidence.

- d) Once an FPC/FFPC/LPC has started to consider a case, it shall be the responsibility of that FPC/FFPC/LPC to see that case through to completion even if the process extends beyond one academic year. In the event that replacements are needed, the Dean/Director of the Library and an appointee of the LUFA Board shall (subject to Article 2.60 1. above) seek a mutually acceptable tenured Member(s) who shall be named to serve.

6. Responsibilities of the FPC/FFPC/LPC

- a) To make and place in the personnel files an evaluation in accordance with Article 4.11 - Procedures for the Award/ Denial of an Annual Increment,
- b) To formulate and forward to the Vice-President, Academic its decisions for those Members of the Faculty/Library whose names are being considered for the following:
 - (i) Promotion per Article 2.23
 - (ii) Tenure per Article 2.22
 - (iii) Renewal of Probationary Appointment per Article 2.21
 - (iv) Merit increments as per Article 4.20.
- c) To make submissions on such matters as termination due to redundancy or financial exigency when requested to do so.
- d) To act as consultant on any other matters as requested by the University or required by the terms of this Agreement.

7. Deadlines

In the event that an FPC/FFPC/LPC is unable to meet any of the deadlines set out in this Collective Agreement by virtue of its inability to meet with quorum, then all subsequent deadlines in the particular procedure are extended by the length of time that FPC/FFPC/LPC requires to meet with quorum and make its decision or recommendation.

ARTICLE 2.70 - RESEARCH AND DEVELOPMENT SUPPORT

- a) For each of the years of the Collective Agreement the Board will

provide to the Director of Graduate Studies and Research to enhance scholarly productivity through an open competition among Members:

Year 2002-2003	\$118,000
Year 2003-2004	\$120,500
Year 2004-2005	\$123,000

b) In each of the academic years 2002-2003, 2003-2004 and 2004-2005 the Board will provide the sum of \$55,000 to assist Members in the task of obtaining and/or upgrading computer equipment. Out of the total amount, up to \$8,000, will be available for Sessional Instructors. Each eligible faculty member will be entitled to a subsidy of \$800 (or to a lesser amount as may be determined by the committee below) for the purpose of purchasing a computer. A committee of two members selected by LUFA and two members selected by the Administration will oversee the distribution of funds. Newly appointed full-time faculty members are entitled to receive at no cost a 'standard computer' as determined by Computer Services. In the event that such members wish to purchase a different computer they shall be entitled to the subsidy. If funds are limited, priority will be given to members who have not previously received a subsidy. Funds not spent in any given year may be carried forward to the following year.

ARTICLE 2.90 - SESSIONAL APPOINTMENT PROVISIONS

The Parties recognise that the University's mission is best served by a largely full-time faculty and that it is not generally desirable to make sessional appointments a substitute for full-time faculty.

At the same time, the Parties recognise that sessional faculty add a significant level of diversity, expertise and practical experience to the University, and their value must be recognised in the governance and decision-making processes and generally in the on-going life of the University.

Teaching/professional librarianship duties comprise the only assigned function for Sessional Instructors.

ARTICLE 2.91 - SESSIONAL TEACHING RIGHTS AND RESPONSIBILITIES

1. Sessional Members shall be covered by the general provisions regarding teaching and professional librarianship of Article 2.00 paragraph 3, A1 Teaching and A2 Professional Librarianship except for specific clauses within this section that clearly apply only to full-time faculty.
2. The Chair/Director of the Unit responsible for a course shall, in consultation with and subject to the approval of the Dean, bear primary responsibility for the supervision of the teaching of Sessional Members.
3. The Chair/Director of the Unit shall structure the procedures required by this responsibility in a reasonable manner.

4. The Chair/Director of the Unit shall make procedures regarding Sessional Members a matter of record.
5. In all cases where a personnel action affecting Sessional Members is required, the action shall be an action of the full Departmental/School Council, even where general supervision is delegated to the chair, to a coordinator, or to a committee.
6. The Department shall receive brief written reports from Sessional Members for each course taught.
7. Copies of course evaluations of Sessional Members shall be made available to the Department by the Dean.

ARTICLE 2.92 - SESSIONAL WORKLOAD PROVISIONS

1.
 - a) If, once a contract has been executed, the workload of a Sessional Instructor must be altered, the agreement of the Member must be obtained.
 - b) Once a contract has been executed with a Sessional Instructor, such a contract shall not be cancelled in order to have the duties performed by a faculty Member with a full-time appointment.
 - c) Cancellation prior to its commencement of a course for which a contract with a Sessional Instructor has been executed can occur only in accordance with cancellation clause provisions contained in the contract.
 - d) Cancellation clauses shall be used only where there is good reason to believe that enrolment levels may be vulnerable. In the event of a cancellation the employer shall:
 - (i) Attempt to find work of equivalent value for which the Sessional Member is qualified; and failing this
 - (ii) Shall pay a cancellation fee of 15% of the agreed salary as outlined in the Letter of Appointment for courses taught during the Fall and Winter Terms; or
 - (iii) Shall pay a fixed amount of \$125 per 3-credit course, to be stated in the Letter of Appointment, for courses taught during the Spring Session.

Sessional Instructors shall accrue Sessional Seniority for all cancelled courses once they have achieved establishment. Cancelled courses shall not count toward establishment.
2. The contracts issued to Sessional Librarians shall identify in reasonable detail the hours during which the work is to be performed. These hours cannot be changed without the consent of the Member. The librarian pay

equivalent shall be deemed to be () hours per course credit of pay (the figure used here to be agreed by the parties prior to any use of this provision).

3. The workload of a Sessional Member shall normally not exceed twelve credits per Fall/Winter session (September to April) or six credits per Spring session (May to August).

ARTICLE 2.93 - ANNUAL REPORT FOR SESSIONAL MEMBERS

Sessional Members shall submit brief annual reports to their Departments. Teaching Dossiers may also be submitted, at the option of the Member.

Departments shall make copies of these reports available to the Dean on request.

ARTICLE 2.94 - SESSIONAL APPOINTMENT AND RENEWAL

A. Appointment of Sessional Members of the Bargaining Unit

1. Appointments of Sessional Instructors are made by the Vice-President Academic or his/her designate on behalf of the Board of Governors and on the recommendation of the Dean/Director of the Library and the Department/School concerned.
2. Sessional appointments and other extra-departmental assignments of courses shall be made from rosters of names of potential instructors maintained by the Departments or Units responsible for the particular course. This will enable appointments to be made expeditiously and at the same time in a way that honours Members' seniority and other rights.
3. Those seeking employment in a particular term must give notice to the Department that they wish their name to be added to, or to remain on, the roster. This shall be done by 1 March for the following winter session and by 1 November for the following spring session. Such notice must specify clearly the course, courses, or type of course to which it applies.
4. A letter of application, a current CV and relevant supporting documentation must be filed with the Department by the above dates. Notice may be given simply to bring forward a letter of application for previous sessions, but CV's must be kept up to date.
5. Members may have their names added to the rosters after the above dates. In such cases seniority and other rights shall not be enforceable.
6. Departments shall not be precluded from advertising or otherwise soliciting applications to their rosters, either before or after the above dates.

7. When courses cannot be made part of Full-time Members' normal teaching loads they shall be offered by the Department in the form of overload appointments or sessional contracts. Full-time Members, previous and current Sessional Members, Retirees, and other qualified candidates may apply for these contracts. In awarding them, the Chair/Director of the Unit, in consultation with the appropriate Dean shall follow the criteria for establishment and seniority listed in 2.94 B. and 2.94 C below, and for overloads in Article 2.10.6.b.

For Full-time Members who retired prior to 1 July 2002, the provisions stipulated in Article 2.94 in the 1999-2002 Collective Agreement shall apply.

8. During October of each year the employer will circulate to all Departments/Schools, LUFA and the Library a list of courses taught on an overload basis by Full-time Members of faculty or by Sessional Members during the two previous academic years. The list will also be posted in the Library Electronic Bulletin Board. Departments and Schools will be requested to post these lists on their respective Bulletin Boards. All courses listed will be deemed to have been posted.

9. When a Sessional appointment will be required for any other course, an advertisement shall be posted on a bulletin board by the Academic unit with a copy sent to LUFA and to the Library. The list will also be posted in the Library Electronic Bulletin Board. The rosters shall remain open until ten working days after the posting on the bulletin board by the Academic Unit. Any outstanding course may be advertised locally.

10. Full-time Members wishing to teach courses for which units other than their own are responsible shall be governed by the same procedures and dates as Sessional Members. Article 2.10-Academic Workload and Article 4.30-Overloads also govern such assignments.

11. In exceptional circumstances where appointments must be made shortly before, or even after, the commencement of instruction, and where time does not allow full compliance with the above procedures (e.g., in cases of illness of a Member originally scheduled to teach; opening of a new section of a course(s); unanticipated commencements of Leaves of Absence, etc.) the ten-day period referred to above shall be waived, but the Board of Governors undertakes that reasonable efforts will be made not to violate the appointment rights and seniority protection of Members intended by the foregoing. The Board shall inform the Association of each appointment made under this clause and the circumstances thereof forthwith. Any individual so appointed shall provide a letter of application and a current CV.

B. Establishment

1. Sessional Members shall be deemed to have Establishment status with respect of a particular course once they have been appointed to teach it for their third academic year. Such sessional contracts need not be in

consecutive academic years, but in no case shall exceed the previous six academic years.

2. Full-time Members seeking overload appointments shall be deemed to have Establishment status with respect to a particular course once they have taught a course for the third year on overload appointment or they have taught a course as part of their regular workload three times or a combination thereof. Such overload appointment or teaching need not be in consecutive academic years, but in no case shall exceed the previous six academic years.

3. Retirees shall be deemed to have Establishment status with respect to a particular course either when they have taught a course for the third year on sessional contracts or when they have taught a course as part of their regular workload twice and have been hired at least once to teach a course on a sessional contract. Such sessional contracts or teaching need not be in consecutive academic years, but in no case shall exceed the previous six academic years.

4. The names of Established Sessional Instructors shall be printed in the departmental faculty listings of the next edition of the Laurentian University Calendar following a year in which an appointment is held.

C. Seniority

1. A Member with Establishment status shall accrue seniority credits with respect to a particular course. Where a course is replaced by a renamed, renumbered, or revised version of what is essentially the same course, or is replaced by a course that performs the same function in the Department's curriculum, seniority status shall apply to such a new course.

2. Members with Establishment shall accrue seniority credit each time they teach a course. Members teaching a particular course more than once in an academic year, shall accrue seniority credit each time they teach the course. This shall include one-term courses and shall include the spring session or other extra sessions of that academic year.

3. Members with Establishment and with highest seniority shall have first right of reappointment, subject to notice of those rights with respect to a particular term, as specified above. This shall apply only once the Member has achieved Establishment status. Seniority entitlement shall, during the fall, winter, and spring sessions, be limited to one section per term for each course in which a Member holds seniority. (Such rights are also governed by limitations described in article 2.92.3.)

4. Years of Seniority shall be the number of years in which a Member qualifies for seniority dated back to 1984. The onus shall be on the Member to establish his years of seniority prior to the above roster dates pertinent to the relevant session. Evidence might include, but is not limited to, any of the following in which clear identification is made:

letters of appointment, pay records, University and Continuing Education calendars, course evaluations, grade sheets, administrative letters referring to the course. When requested, the Dean with authority for the course in question shall issue a written statement agreeing to reasonably established seniority claims.

5. Seniority shall be retained during academic years in which a Sessional Instructor is not offered reappointment, but shall not be increased during those academic years. Seniority shall not however be able to be exercised if the Sessional Instructor has not been offered reappointment over three consecutive academic years.

6. However, Seniority shall not be exercised if a Sessional Instructor has removed his/her name from a roster, or has declined an offer of appointment, for a second consecutive academic year.

7. Notwithstanding the foregoing, Sessional Instructors may request leave from a roster for up to two consecutive years for parenting, adoption, or full-time graduate studies. Such application shall be made on a one-year-at-a-time basis and shall not be unreasonably refused. In such cases seniority shall accrue in respect of the years of leave.

D. Written Offer of Appointment

1. The Parties agree that Offers of Appointment shall be sent to Sessional Instructors as soon as possible before classes commence. Except for situations covered by Article 2.94, A, section 11, the Board shall endeavour to mail Offers of Appointment by the following dates: July 15 for the Fall Term, November 15 for the Winter Term, and March 15 for the Spring Term.

Each Offer of Appointment shall specify the course number(s), the number of credits, terms and conditions of employment including salary, benefits, sessional seniority, and cancellation conditions if applicable.

2. A copy of the current Collective Agreement shall be sent with any offer of employment, except where the applicant would already have received a copy.

3. A copy of each accepted Offer of Appointment shall be sent to the Association forthwith.

E. Grievance of Appointment Decision

1. In the event that an unsuccessful applicant for a sessional teaching position believes that someone else was appointed to the position in violation of the provisions of this Agreement, s/he may request within one month of the decision a review of the appointment with the view of establishing whether the Board acted in accordance with the provisions of this Agreement when not appointing the unsuccessful candidate.

2. Such a request for review shall be directed to the Dean and/or the Association and shall involve initially an informal stage in which the Dean and a Grievance Officer appointed by the Association have an opportunity to review the available information. If agreement cannot be reached at the informal stage, the matter shall be referred to the Joint Grievance Committee. (See Article 8.3.)

3. In the event that the Joint Grievance Committee finds that the unsuccessful candidate should have been appointed by the board by virtue of the provisions of this Agreement instead of the successful one, the former shall be entitled to compensation. The amount of compensation and seniority credit shall be determined by the Joint Grievance Committee but shall not exceed the maximum amount of the contract that should have been issued to the unsuccessful candidate.

ARTICLE 2.95 - WITHDRAWAL OF SENIORITY

1. The rights established by the provisions for seniority as described above may be altered or revoked in the event that the teaching performance of a Sessional Member is found to be unsatisfactory. Action that may affect the seniority rights of a Sessional Member may be initiated at the request of the Chair of the Academic Unit or the Dean and will normally occur only after an informal investigation establishes reasonable grounds for a formal procedure. There is an expectation that the Sessional Member will be made aware during the informal stage of an investigation of the concerns regarding his/her teaching performance and will be given an opportunity to give reasons why a formal procedure should not be initiated. The member will be advised of his/her right to union representation.

2. If after an informal investigation the Chair of the Academic Unit and the Dean are of the view that a formal procedure is warranted an investigation shall be conducted by the Departmental/School Council or a specially formed committee that reports back to the Council. LUFA shall be advised that this procedure will be invoked. Academic units shall have reasonable flexibility in the constitution of such a committee. In all cases the investigating body must have at least four members who shall attend all meetings convened. Membership shall include the departmental chair, at least one other Full-time Member of the Department, at least one Sessional Member from the department (if there is one willing to serve), and a nominee of the Sessional Member under investigation (such nominee must be a Full-time or Sessional Member teaching in the Department during the current academic year).

3. The Member under investigation shall have the right to a full and reasonable statement of the Department's reasons for initiating the investigation. The Member shall have the right to examine all evidence under consideration at least ten working days before any final determination is made and make counter-representation on it in writing or in person or both. The Member shall have the right to be accompanied by a colleague.

4. The investigating committee shall present its findings to the Academic

Unit Council stating the reasons for its conclusions in reasonable detail. The decision of the Council, which may differ from that of the Committee, shall be forwarded to the Dean for action.

5. The Council's determination may request that the Member be cautioned or that the Employer's seniority obligation to the Sessional Member be revoked or that the Member be placed on probation for the duration of one course and that a further determination be made at the conclusion of that course.

6. The Dean may accept the recommendation, reject it, or refer it back to the Department for further consideration.

7. If the Dean decides on revocation of seniority rights, he shall advise the member and LUFA in writing, stating reasons. The Member shall have the right to request an appeal within ten working days of the receipt of that communication. The appeal shall be heard by a special FPC/FFPC, which shall consist of the regular FPC/FFPC, augmented by one Sessional Instructor nominated by LUFA who will not vote. The Sessional Member shall have the right to be heard, to be accompanied by a colleague, to examine any evidence with at least ten days notice and to present counter-representation on it. The appeal body shall determine the case by simple majority. No further arbitration or appeal shall be open to the Member or the Board.

8. Where an appeal is determined in favour of a Sessional Member, and where the course has been, or comes to be, scheduled for the following academic year, the Sessional Member, subject to seniority, shall be assigned to, and paid for such a course or courses. Any other Sessional Member assigned in anticipation of a determination against a Sessional Member against whom withdrawal of seniority is anticipated shall be entitled to compensation.

9. Withdrawal of Seniority actions must first be initiated (as per section 1 above) by 1 June in order to be effective for the subsequent academic year.

ARTICLE 3.0 - RECOGNIZED AND OTHER HOLIDAYS

The following days and all days generally declared to be recognised holidays by Federal or Provincial authorities are recognised holidays and paid time off shall therefore be given to the Members on:

- a) Founder's Day, Good Friday, Easter Monday, Victoria Day, Canada Day, August Civic Holiday, Labour Day, Thanksgiving Day, Christmas Day, Boxing Day, New Year's Day.
- b) And on such other holidays as declared by the Board, including the customary Christmas recess.

ARTICLE 3.1 - VACATION

1. Vacation is the period during which a Member is not accountable to the University.
2. In addition to recognised holidays, each Member is entitled to a vacation of one (1) month or twenty-three (23) working days, after eleven (11) months of service and annually thereafter. Members on contracts of less than one (1) year duration are entitled to a pro-rated period of vacation. When Members have accumulated five full consecutive years of employment at the University, for each year of employment thereafter they shall be entitled to an additional two days of vacation to a maximum entitlement of 33 working days.
3. The Members will be paid during vacation periods but there shall be no remuneration in lieu of vacation in the event that the Members choose not to take their vacation allowance.
4. The Members are required to take the vacation to which they are entitled. Vacation may not be accumulated from year to year. The Members are required to take their vacation between Spring Convocation and Labour Day, unless prior permission has been granted by the Dean/Director of the Library. Members may take their annual vacation at any time within that period provided that:
 - a) The period of the vacation does not conflict with a time during which the Members have scheduled duties assigned to them.
 - b) The Members have indicated the dates of their vacation to the Dean/Director of the Library, through their Chairperson/Director at least one (1) month in advance.
5. In the event of the death of Members, the value of any unused vacation entitlement will be paid to their beneficiary.

ARTICLE 3.21 - SABBATICAL LEAVES

1. Preamble

In recognition of the fact that regular stream Members including Librarians are required to continue to develop as scholars and researchers throughout their careers, the University maintains a policy of sabbatical leave intended for academic study, research or writing which will be mutually beneficial to the Member and the institution. For this purpose, sabbatical leave is defined as a period during which a Member is relieved of normal duties in order to:

- a) Engage in further training, advanced studies or courses at a study or research centre, including language study.
- b) Devote more time to scholarly activity as per Article 2.00.
- c) Improve the University's relations with other universities or

countries in the capacity of a visiting professor or visiting librarian.

- d) Gain practical or professional experience in a field connected with the Members' academic or professional specialisation which will enable them to give instruction or, in the case of the library, service that is more complete and suitable to the requirements of the time.

In recognition of the fact that alternate stream Members are required to continue to develop as professionals and teachers throughout their careers, the University maintains a policy of sabbatical leave intended for professional development, which will be mutually beneficial to the Member and the unit. For this purpose, sabbatical leave is defined as a period during which Members are relieved of normal duties in order to gain practical or professional experience in the Members' specialisation which will enable them to give instruction that is more relevant and current.

Members who are on sabbatical leave and who elect to remain on campus for all or part of the duration of the leave shall not normally be assigned any formal workload nor shall they normally participate in any formal activities of the University other than those required by this Agreement.

The Board will replace Members on sabbatical leave when it deems it necessary. The Board retains the right to limit the number granted leave in keeping with its academic responsibilities.

2. Eligibility

Eligibility for sabbatical leave is subject to the following conditions:

- a) Members must have been full-time faculty Members of the University for the past six- (6) consecutive years, holding the rank of either Full Professor/Librarian, Associate Professor/ Librarian, or Assistant Professor/Librarian at the time of application. They must be tenured at the time their sabbatical leave begins. Members who have been previously employed by the University on a full-time basis in limited term positions and who are subsequently hired in a tenure track position, shall have their previous time of employment counted towards sabbatical eligibility. In exceptional circumstances tenured Lecturers/General Librarians with the requisite years at Laurentian are also eligible for sabbatical if they have the approval of the Dean/Director of the Library to apply. Where the leave is to be used for upgrading, the University shall give special consideration to employment equity goals. Faculty Members' service for purposes of sabbatical leave eligibility shall be calculated from the date of their initial full-time appointment by the University or from the date of their last sabbatical leave, whichever is later. When Members take a sabbatical leave, all accumulated years of eligibility entitlement are exhausted. Time spent on sabbatical leave, study leave, or leave without pay does not count towards sabbatical eligibility. Sabbatical leave will not be automatic and shall be granted following an approved

application procedure, outlined below.

b) In order to attract qualified faculty, the Vice-President, Academic may from time to time grant credit towards a sabbatical leave for full-time faculty service at another University, including service at a Federated or Affiliated College of a University. Such entitlement will be specified in the initial letter of appointment.

c) Under special circumstances, the Members may make application for leave one year prior to the year in which they would normally become eligible to take sabbatical leave. If sabbatical leave is granted in this instance, the Members will receive a stipend of 75% of their salary.

d) In the interests of effective scheduling of a unit's course offerings, the Dean/Director of the Library may request that Members apply for their sabbatical leave after the completion of five years. The Dean/Director of the Library shall make the request by 1 May of the academic year preceding the year in which the Members are being requested to apply for sabbatical leave, and the Members shall respond to the Dean's/Director of the Library's request by 1 June. Should the Members accept, the Members shall submit a sabbatical plan by 30 September to the academic unit head, as per paragraph 3(b). Should Members accept, and if the application is approved, the Members shall receive a stipend of 80% of their salary during the sabbatical leave.

3. Application

a) Each Dean/Director of the Library shall maintain and annually revise, in consultation with the unit, a sabbatical eligibility plan for each Unit, the purpose of which is solely to assist in the orderly planning of sabbatical leaves. The plan will be distributed by 1 July of each year to each unit.

b) Applications for sabbatical leave shall be submitted by the Members to their Dean/Director of the Library with a copy to the academic unit head no later than 30 September of the academic year preceding.

c) The unit shall prepare a recommendation for or against approval of the application for sabbatical, including in the recommendation its assessment of the academic merits of the project and shall forward its recommendation to the Dean/Director of the Library by October 20.

d) The Dean/Director of the Library shall transmit the recommendation of the Unit along with the Dean/Director of the Library's own recommendation to the Vice-President, Academic no later than November 15 of the academic year preceding that in which the leave is to be taken. After verifying the status of the application in relation to criteria defined in clauses 1 and 2 of this Article, and after taking into consideration the recommendations of the Unit and the

Dean/Director of the Library, the Vice-President, Academic shall reach a decision and shall transmit it to the Member no later than 15 December of the academic year preceding that in which the leave is to be taken.

e) The Vice-President, Academic shall base his/her decision to approve or not to approve a sabbatical plan on the academic merits of the sabbatical leave project and its value to the professional development of the Member and to the University.

f) Should Members wish to make subsequent changes in their sabbatical plan, they shall submit the proposed changes to their respective Dean/Director of the Library for prior approval. If the proposed changes are not approved by the Dean/Director of the Library after consultation with the unit, Members may ask that they be submitted to the Vice-President, Academic for approval.

g) The Dean/Director of the Library may refer back the application submitted by the Member as per paragraph (b) above or the application for change as per subparagraph (f) above. If referred back, the applicant shall consider the Dean/Director of the Library's suggestions and will re-submit a new application within 10 working days.

4. Postponement

a) In the event that it is necessary on financial and/or program grounds for the Dean/Director of the Library to require postponement of a sabbatical leave, the Members shall be informed by 1 July of the academic year preceding that in which the sabbatical is to be taken. Such a postponement shall not be required unreasonably. In such a case, Members shall receive an additional 5 percent of their regular salary for each year of postponement as "stipend" during their sabbatical year, to a maximum of 100% of normal salary. A sabbatical leave cannot be postponed for more than three (3) years on financial or program grounds.

b) In the event that Members wish to postpone application for leave, they shall do so only for valid reasons, and permission to do so shall be sought from the appropriate Dean/Director of the Library and the unit no later than 1 May immediately preceding the deadline for application specified in 3b) above. Should Members with a sabbatical leave confirmed by the Vice-President, Academic wish to postpone the leave, for valid reasons, permission shall be sought from the appropriate Dean/Director of the Library and the Unit at least two (2) months prior to the planned commencement of such leave. If postponement of application for leave or of approved leave is approved, the Member does not have right of precedence over colleagues in the unit's sabbatical leave plan and is not entitled to any additional stipend. In no case may such a postponement be for more than one (1) year. Should such Members be required by the Dean on financial and/or program grounds to postpone their sabbatical leave in the following academic

year, they shall not be entitled to any additional remuneration.

c) Where Members postpone a sabbatical leave without formal approval, they lose the right of precedence over colleagues in the unit's sabbatical leave plan. Should such Members be required by the Dean/Director of the Library on financial and/or program grounds to postpone their sabbatical leave in the following academic year, they shall not be entitled to any additional remuneration.

d) Where Members fail to apply for sabbatical leave for which they are eligible to apply, they shall not be entitled to any additional remuneration should they be required to postpone their sabbatical leave in the following academic year on financial and/or program grounds.

e) If Members' sabbatical proposals are rejected on academic grounds by the Vice-President, Academic and/or Arbitration Board, they are entitled to apply the following year, but they are not entitled to any additional remuneration.

f) Deadlines may be waived by agreement of the parties.

5. Duration

Members may elect a sabbatical leave for a period of:

a) Six (6) months normally commencing either on the first day of July or the first day of January.

or

b) Twelve (12) months normally commencing on the first day of July or such other date as agreed to by their respective Dean. Such agreement shall not be unreasonably withheld.

6. Remuneration

a) A Member taking a six (6) month sabbatical leave, after six years of accumulated sabbatical credit is entitled to full salary.

b) Members taking a twelve (12) month sabbatical leave are entitled to a stipend equivalent to 85% of the salary they would normally have received.

c) Upon the Member's request, the University will provide a portion of the sabbatical leave stipend as a research grant subject to provincial and federal regulations. A Member who receives such a research grant from the University must make the necessary deductions and declarations as applicable under either the federal or provincial laws. The University accepts no responsibility in this regard.

d) A Member on sabbatical leave shall not take other paid

appointments without the prior written permission of the Dean/Director of the Library. Such permission shall not be unreasonably withheld. Normally, any additional remuneration received during the leave will be limited to an amount which brings a Member's total to one hundred per cent of normal salary, plus travel and related expenses for the Member's spouse and dependent children. Where total remuneration exceeds this amount, the University reserves the right to reduce the sabbatical stipend proportionately.

e) Members who will have accumulated unused sabbatical credit by the time of their normal retirement date will be entitled to apply for a sabbatical leave to occur during their penultimate year before retirement, and on the understanding that they will return to the University for their final year. Should sabbatical leave be granted in such circumstances, Members are entitled to a stipend pro-rated on the basis of the normal sabbatical stipend and shall include entitlement for the year of return. At their discretion, the Deans/Director of the Library may agree to pro-rate the period of time taken as sabbatical leave in lieu of a pro-rated stipend.

7. Benefits

a) During the period of sabbatical leave, the Member shall continue to receive all fringe benefits as a regular full-time Member of faculty.

b) During a sabbatical leave, pension calculations shall be based on the Member's salary that would have been in effect if the Member had not been on sabbatical.

8. Vacation

All Members on sabbatical leave will be assumed to have used their prior year's annual vacation entitlement during the period July 1 to June 30 of the academic year in which the sabbatical leave is taken. Furthermore, Members who take a six-month sabbatical leave shall be deemed to have taken half of their annual vacation entitlement during the actual period of the sabbatical leave. Members will be entitled to one year's vacation entitlement after June 30 of the year in which the sabbatical leave is completed.

9. Return

a) Members granted sabbatical leave shall undertake to return to the University to resume their responsibilities as a full-time Member of faculty for the period of at least one (1) year. Failure to return to the University shall require the Member to reimburse the University for all of the salary and benefits received during the leave, except as such obligations may be waived by the University.

b) Members must prepare and forward to their Dean/Director of the Library and unit head, within one week of their return, a full written account of their scholastic and professional activities and

accomplishments as per the approved sabbatical plan during the leave. This report shall become part of their file to be used in evaluating the Member for salary increments and promotions. Failure of a Member to submit the sabbatical report by the specified time limit will result in the delay of the decision whether to award or deny the annual increment as per Article 4.11 (11).

Members who are not eligible for an annual increment must have their report submitted within one month of their return in order to begin to accumulate sabbatical credit without penalty. When Members fail to do so, sabbatical credit shall not begin to accumulate until January 1 or July 1, whichever is the closest date next following submission of the report. If, after reviewing the report, the Dean/Director of the Library finds the performance to be unsatisfactory, appropriate measures may be taken, as provided in Article 2.40 and 2.41.

c) Notwithstanding the provisions of paragraph 9a) of this Article, the University may grant up to a maximum of one (1) year of study leave to Members immediately following the completion of their sabbatical leave provided that during this sabbatical leave the Members were studying to obtain a Doctorate, and the additional year of leave will allow them to continue the program for the Doctorate. Under exceptional circumstances, upon recommendation of the Member's Dean/Director of the Library and with the permission of the Vice-President, Academic, the study leave may be extended for an additional year. This back-to-back sabbatical/study leave shall be granted to Members only once in their academic career. The Members shall receive a stipend, according to the provisions of Article 3.22 during this study leave, and must return to the University for a period equal to the total leave or, in the alternative, reimburse the University for the full amount of the stipend and fringe benefits received during the period of combined sabbatical/study leave.

A Member may request an altered pattern for the payment of the combined sabbatical/study leave stipends provided that the payment in any one year may not exceed the stipend originally awarded for the sabbatical year.

10. Disability

In the event that a Member on sabbatical leave becomes unable to fulfil the sabbatical obligations because of disability the following policies and procedures shall apply.

a) The Member will advise the Dean/Director of the Library, as soon as possible under the circumstances, of the disability and will provide the Dean/Director of the Library with a physician's report outlining the extent of the disability and if possible the expected date of return. For the duration of the illness the provisions of Article 3.40 - Physical and Mental Illness shall apply.

b) In the event that the sabbaticant is disabled from performing his/her tasks for less than 50% of the sabbatical leave, the Member shall be deemed to have taken his/her sabbatical leave. The Member shall submit a report on his/her sabbatical activities on completion of the sabbatical leave or at the end of the sick leave, whichever occurs later. The impact of the illness on the sabbatical plan of the Member shall be taken into consideration at evaluation time.

c) In the event that the Member is disabled from performing his/her tasks for more than 50% of the sabbatical leave, the Member shall be deemed not to have taken a sabbatical leave. The Member shall be eligible to take his/her sabbatical leave at the first mutually acceptable time. If the member indicates that he/she will carry out the previously approved sabbatical plan then the Dean/Director of the Library, on the advice of the unit and in consultation with the Member, will determine the date on which the sabbatical leave will commence. In the event that the Member wishes to amend the sabbatical plan, the provisions of Article 3.21 3 f) shall apply.

11. Three-year Sabbatical

While sabbaticals after six years are the norm, the parties recognise that outside of the sabbatical eligibility plan, which will take precedence, it may be mutually beneficial to Members and the University if members were to take a six-month sabbatical at 85% salary after three years of service. For each six month of service beyond three years the sabbaticant is eligible for an additional 2.5% of salary during the leave period. When Members take a sabbatical leave all accumulated years of eligibility entitlement are exhausted. Sabbaticals after three years can be granted provided that:

Eligibility

- a) Members have tenure when the leave becomes effective.
- b) Such a leave does not require the postponement of a sabbatical leave for a Member with six or more years of service.
- c) The leave does not have a negative impact on the budget of the academic unit.

Return

- a) Members granted sabbatical leave under this article shall undertake to return to the University to resume responsibilities as a full-time Member of faculty for the period of at least six (6) months. Failure to return to the University shall require the Member to reimburse the University for all of the salary and benefits received during the leave, except as such obligations may be waived by the University.
- b) Members must prepare and forward to their Dean/Director of the Library and unit head, within one week of their return, a full

written account of their scholastic and professional activities and accomplishments as per the approved sabbatical plan during the leave, as outlined in paragraph 9 b) of this article.

ARTICLE 3.22 - STUDY LEAVES

A leave for the purpose of upgrading academic qualifications, normally through the attainment of a higher degree or some other equivalent acceptable to the University and the Unit shall be known as Study Leave. Such leave must be in the best interests of the University. The maximum length of leaves to be granted during a Member's academic career shall normally not exceed two (2) years.

1. Eligibility

A study leave may be granted to all Members having tenure or holding probationary appointments after two (2) years of full-time service as Lecturer/General Librarian or above, but no sooner than two (2) years after a sabbatical leave except as permitted in Article 3.21 (9)(c). Such leave will not be automatic and shall be granted only upon the approval by the Vice-President, Academic, subsequent to consultation with the Unit through its head (Chair/Director) and the appropriate Dean/Director of the Library, upon an approved application procedure noted below.

2. Application

- a) Applications for study leave shall be made by 30 September in consultation with the academic Unit through its head (Chairperson/Director) and the appropriate Dean or Director of the Library to the Vice-President, Academic. In submitting an application for study leave, the Members shall provide a well-considered plan indicating the value of the leave to their professional improvement and to the best interest of the University. In forwarding the application to the Dean/Director of the Library, the academic unit through its head shall recommend for or against approval, including in the recommendation not only an assessment of the project but also a judgement on how the leave, if granted, will affect the academic program(s) and the budget of the particular academic unit. In forwarding the application to the Vice-President, Academic, the Dean/Director of the Library shall make an assessment of the application on the same grounds. The Dean/Director of the Library will, at the Dean/Director of the Library's discretion, make whatever inquiry they deem desirable, including consideration of the applicant's demonstrated potential, in order to determine the merit of the application. Copies of both the Unit's and the Dean/Director of the Library's recommendations shall be made available to the candidate.
- b) Applications for study leave shall be filed with the Vice-President, Academic no later than 31 October of the academic year preceding that in which the leave is to be taken. The Vice-President, Academic shall verify the status of the application in relation to the relevant University

policies and the financial implications of the leave, and make a decision, a copy of which shall be sent to the Member. The decision of the Vice-President, Academic shall be final and binding.

c) In the event that the Vice-President, Academic finds it necessary to refuse Members their study leave on financial grounds after the leave had been approved, that Member shall be given priority within the Member's Unit for a study leave for the following year.

d) Deadlines listed above may be waived in special circumstances.

3. Terms

a) A one year study leave may be granted after two (2) years of service as Lecturer/General Librarian or above at a stipend of \$20,000 or a pro-rated amount if the leave is for a period of less than one (1) year.

b) A two (2) year study leave may be granted after four (4) years of service as Lecturer/General Library or above at a stipend of \$20,000 per year.

c) A Member may request a temporary reduction in workload to undertake or complete doctoral studies. Where, in the discretion of the Vice-President and upon recommendation of the Dean/Director of the Library satisfactory replacement arrangements can be made, the workload reduction will be granted with a proportionate reduction in salary based on the overload stipend.

d) The maximum period of absence is two (2) consecutive years, normally commencing on 1 July.

e) In the event that Members wish to pursue a summer course for upgrading purposes, they may request up to four (4) weeks at full pay if they contribute equal time from their vacation period without losing any of their study leave entitlement. To apply for such a leave, Members will follow the procedures set out in Paragraph 2i) of this Article.

4. Benefits

Benefits of insurance, pension, etc., will continue during the leave provided the Members continue payment of their portion of the fees.

5. Return

a) The Members must agree in writing to return immediately to the University for a period equal to their leave of absence but in no case for a period of less than one (1) year or to reimburse the University for the full amount of the stipend received. If Members return to the University for a period of time less than the length of the leave the

University shall require the Members to reimburse the University for all or part of their stipend received during the leave.

b) The Members must prepare and forward to their Dean/Director of the Library and unit head, within one (1) week of their return, a full written account of their scholastic activities during the study leave. The report shall become part of their personnel file.

c) Time spent on study leave does not count towards sabbatical credit.

6. Appointments while on Leave

All Members on study leave must obtain written approval in advance from the Dean/Director of the Library for any paid activity before making any such commitment.

ARTICLE 3.31 - VOLUNTARY REDUCED WORKLOAD

1. The Board and the Faculty Association endorse the principle of voluntary reduced workload as being mutually beneficial to the Members and the institution. Any full-time Member of the bargaining unit who currently occupies a regular full-time position and who has a minimum of two (2) years of continuous full-time service at the University at their request may be granted up to fifty (50%) temporary reduction in workload with a proportionate reduction in salary, and annual vacation entitlement, provided that:

a) The temporary reduction is effective for a twelve- (12) month period.

b) The request is normally made to the unit and the Dean/Director of the Library three (3) months in advance.

c) The Dean/Director of the Library approves the request, such approval not to be unreasonably withheld.

2. Notwithstanding paragraph 1a) above, the University may, upon request, grant voluntary reduced workloads for periods longer than twelve (12) months and/or renewals of twelve (12) month reduction periods, subject to the Dean/Director of the Library's approval as in 1c) above.

3. Faculty Members on Voluntary Reduced Workload have the right to benefits and to contribute to the benefits plan of the University in accordance with the provisions of the Collective Agreement for sharing contributions.

a) Sick leave. Members will be covered for periods of sick leave to the extent of the actual salary paid during that period as per Article 3.40 - Physical and Mental Illness.

b) Long-Term Disability. Members who are planning to take a

voluntary reduced workload must be provided with specific information concerning coverage for long-term disability during and after the period of voluntary reduced workload. Members should not accept voluntary reduced workload without a full and complete written statement concerning long-term disability coverage.

c) Pension Plan. Members on voluntary reduced workload may contribute to the pension plan on the basis of their normal full salary with appropriate contributions from the employee and employer as outlined in the Collective Agreement to the extent possible under Revenue Canada regulations. It is understood that contributions based on normal salary rather than reduced salary may not be possible under Revenue Canada regulations for a cumulative total of more than five years.

d) Life Insurance. Life insurance may be carried based on the Member's normal salary and normal maximum.

e) Sabbatical Leave. Sabbatical leave entitlements for Members on voluntary reduced workload will be pro-rated in accordance with the reduced workload.

4. Members who use this option shall remain Members of the bargaining unit, notwithstanding the definition of Membership as defined in Article 1.30.

5. For the application of tenure and promotion policies, periods of reduced workload shall be pro-rated in accordance with the reduction in workload. Full-time research and teaching activities at another institution while a Member is on voluntary reduced workload at Laurentian will be counted for purposes of the minimum time requirement for promotion.

6. Members on voluntary reduced workload retain both the right and the obligation to contribute to the Administrative work of the University. Evaluations of such activity by the Dean/Director of the Library would be expected to recognise the reduced workload of the Member. As full-time members of the bargaining unit, Members on voluntary reduced workload retain the right to participate in academic councils as full voting members and to receive minutes and other departmental and university documents and communications if the Member can be present on campus. If Members are absent from campus, the University is not required to undertake extraordinary steps to assure the ability of the Member to fully participate.

7. During the period of voluntary reduced workload, Members are expected to submit annual reports as per Article 2.11 in order to qualify for progress-through-the-rank increments (Articles 4.10 and 4.11). The evaluation will take into account the reduced workload. If awarded, the progress-through-the-rank increment will be added to the base salary of the Member. The new base salary will be used to determine the actual salary of the Member in conformity with the percent reduction in workload.

ARTICLE 3.32 - LEAVES OF ABSENCE WITHOUT PAY

1. A Member may be granted a leave of absence without pay under terms approved by the University. All such terms including arrangements for benefits shall be set out in written form prior to the leave. All terms shall be communicated in written form to the Faculty Association for information prior to the leave. Permission for such leave shall not be unreasonably denied by the employer.
2. An application for such leave shall normally be submitted in writing to the Dean/Director of the Library at least six (6) months in advance stating the purpose of the leave. An application for an extension should be made in writing to the Dean/Director of the Library at least four (4) months in advance. These time requirements may be waived in special circumstances.
3. Applications for such leaves shall be recommended by the Dean/Director of the Library after consultation with the unit. Final approval rests with the Vice-President, Academic.
4. Leave of absence without pay under this article shall normally not exceed two (2) years.
5. The Members may elect to discontinue the fringe benefits during the leave of absence subject to existing policies and regulations. If they elect to continue those fringe benefits available to the Members, they shall make suitable arrangements as defined in paragraph 1.
6. Court and Political leaves shall be governed by Article 3.33 and 3.34.

ARTICLE 3.33 - COURT LEAVES

1. Leave of absence with pay shall normally be granted to any Member, other than a Member on leave of absence without pay, who is required to serve on a jury or to attend as a witness or an expert in a court of justice or before any legal or statutory body in Canada with power to compel the attendance of witnesses before it.
2. The Members shall notify their Dean/Director of the Library in advance, in writing, and shall provide proof of their attendance, if so requested.

Members shall attempt to make arrangements to ensure that their duties are properly carried out during the period of their absence.

3. Leave with pay does not apply to Members serving a sentence or appearing as a witness on their own behalf.
4. When Members wish time off in order to pursue a civil action in court, the Members shall apply to the Dean/Director of the Library for leave of absence without pay. (See Article 3.32).

5. If Members are required to absent themselves from their duties to appear in court as a result of legal action taken against them in regard to matters arising out of the performance of their duties to the University, they shall not be penalised for such absence. Such an absence shall be governed by paragraph 2 of this Article.

ARTICLE 3.34 - POLITICAL LEAVES

1. The Board recognises that all Members of the bargaining unit are free to enter public life and to seek any political office, as a member of the provincial or federal government, or any full-time political office.

2. If Members of the bargaining unit wish to allow their names to stand either before a party convention or for actual nomination for an election, the Members shall notify the Dean/Director of the Library concerned within a reasonable time so that the Dean/Director of the Library may make whatever arrangements may be deemed necessary in order to ensure that the resulting added workload can be properly performed by others from the date of the issuance of the writ up to and including the date of the election.

3. The Board may grant such a Member leave without pay for a period from the issuance of the writ up to and including election day. Such leave shall not be unreasonably withheld.

4. Should the Members not be elected, they shall come back to work immediately to assume their normal duties.

5. If the Members are elected and:

a) If they are Members with tenure and return immediately upon ceasing to hold office within six (6) years of their election, all rights, privileges and rank shall be restored to them upon return and the Members shall be entitled to a rate of pay including all statutory increases which were granted to Members of the teaching staff of equal rank that the Members occupied at the time the leave was granted. Extensions of the six- (6) year time limit may be made by agreement of the parties. During the term of any such leave, the Members shall be entitled to leave without remuneration. Such Members shall not be entitled to any rights or privileges under this Agreement except in regards to benefits as governed by Article 3.32 - Leaves of Absence.

Nothing in this article shall be construed as preventing such Members from being employed on a part-time basis by the University for lecturing/professional library service or for any task, in which case the Members shall be remunerated therefore at the normal scale for part-time Members of the teaching/professional library staff.

b) If they are a Member without tenure, they shall be deemed to have resigned their position with the University as of the day following their election.

6. Any Members of the bargaining unit who wish to run for a political office other than a full-time one are free to do so subject to Article 2.00 - Rights, Responsibilities and Duties of Academics. Any such Members of the bargaining unit shall be required to perform all normal duties as set out in this Agreement.

ARTICLE 3.40 - PHYSICAL AND MENTAL ILLNESS

1. The Members of the bargaining unit are eligible for sick leave up to a maximum of six (6) months at salary otherwise receivable from the date of disability due to accident or illness, for each separate disability cause, excluding maternity which shall be covered by the provisions of Article 3.51. Illness of a duration of more than six (6) months will be dealt with according to the provisions of the University's Long Term Disability Plan. As soon as practicable after the start of each disability period, the Dean or the Director of the Library must be informed by or on behalf of the disabled about the absence and about its expected duration.

Where the University makes payment to the Member according to the above mentioned terms or assumes liability therefore, the University is subrogated to all rights of recovery of the Member to the extent that the University has made payment to, or on behalf of, or for the benefit of the Member. The University may bring an action in the name of the Member to enforce these rights.

2. A physician's report shall be submitted, when requested by the Dean or the Director of the Library. Such a report, with a copy forwarded to the Director of Personnel, will be required:

- a) For any sick leave period in excess of five (5) consecutive working days.
- b) In the event a Member's sick leave pattern raises substantial doubt of the claim, even if the individual's sick leave periods are short enough not to require medical certificates otherwise.

3. In order to have a sick leave benefits period reinstated up to the maximum, Members of the bargaining unit who have been absent and in receipt of sick leave benefits must return to work for at least one (1) full working day in the case of a completely unrelated and different disability cause, and for thirty (30) calendar days in the case of the same disability cause.

4. Sick leave benefits for any period of absence following notice of termination of employment will not be payable without substantiating medical evidence.

5. Sick leave benefits are not cumulative and are not cashable upon termination of employment or at any other time.

6. Sick leave benefits will be reduced by the amount of any Worker's

Compensation benefits or similar disability income benefits which the Member of the bargaining unit is eligible to receive by reason of accident or sickness, from a government plan, except Unemployment Insurance.

7. At any time during any sick leave, the Member of the bargaining unit may be requested by the Dean/Director of the Library or by the Vice-President, Academic to undergo medical examinations by physicians appointed by the President and paid by the University, in order to be eligible to receive sick leave benefits and/or to be able to return to work. All reasonable expenses incurred, as a result of such medical examination shall be paid by the University.

8. When invalidity is due to drug addiction or alcoholism, benefits provided by this Article will be granted only for leaves of absence necessary for proper treatment under a physician's care or that of specialised personnel.

9. When a Member's behaviour raises substantial doubt as to his/her physical or mental health, it is the Board's right to require a medical examination as per Article 2.41, paragraph 3(c). LUFA shall be notified when such action is taken.

10. Sick leave benefits defined in this Article may not be granted under the following circumstances:

- a) Intentionally self-inflicted injuries or diseases.
- b) Pregnancy (however, complications due to pregnancy are covered by sick leave provisions, upon submission of a medical certificate).
- c) While vacation pay is also being received.
- d) Wilful participation in riots, wars or violent or uncontrolled demonstrations or protests.
- e) Injuries or diseases sustained while committing a criminal act for which the Member has been found to be guilty by a duly constituted court or while serving a prison sentence.

11. Should a Member resign or terminate employment with the University his/her medical reports shall be transferred to the Member's archival personnel file, as per Article 2.30 (1).

ARTICLE 3.51 - FAMILY RESPONSIBILITY

1. Maternity

A full-time female Member shall be granted maternity leave subject to the following conditions:

- a) The Member shall be entitled to a paid leave of absence providing she has completed at least twelve (12) months and eleven (11) weeks of

continuous service with the University.

- b) The duration of the leave shall be for a period of seventeen (17) consecutive weeks.
- c) The leave may commence at any time during the eleven (11) weeks preceding the expected date of delivery.
- d) Any period of absence immediately preceding or following such maternity leave will be considered leave of absence without pay.
- e) The Member shall make written application to the Dean/Director of the Library two (2) weeks prior to the date she intends to commence her leave, and at that time will provide the University with a certificate from a legally qualified medical practitioner stating that the Member is pregnant and her expected date of delivery. The Member shall give due regard to the need of the University for early notice of a prolonged period of leave, and application for maternity leave shall be made as early as possible in advance of the expected delivery date.
- f) The Member shall not return to work prior to the expiration of six (6) weeks following the actual date of delivery. A shorter period of time shall only be granted with the approval of a legally qualified medical practitioner.
- g) The Member shall advise in writing her unit head and the Dean/Director of the Library of her intention to return to work two (2) weeks prior to the scheduled completion of her leave.
- h) If a maternity leave happens to occur during the course of a study, sabbatical or unpaid leave, the Member shall continue to receive the stipend that is consistent with the study, sabbatical or unpaid leave taken.

2. Paternity

On the occasion of the birth of his child, a full-time male Member who has completed twelve (12) months and eleven (11) weeks of continuous service at the University shall be entitled to leave with full salary and benefits of up to five (5) days to be taken at the discretion of the Member within two weeks of birth. The teaching/professional and service responsibilities of Members on paternity leave shall normally be assumed by their colleagues without additional expense to the University.

3. Adoption

A full-time Member who has completed at least twelve (12) months and eleven (11) weeks of continuous service at the University shall be eligible for a paid leave of absence for a period of up to eight (8) weeks, subsequent to the placement of the child in his/her care or in accordance with the requirements of the Children's Aid Society. Should both parents be

employees of the University, only one of the two shall be entitled to such leave. Moreover, should a child be the natural child of one of the two parents, and is adopted by the spouse of the natural parent, the spouse shall not be entitled to this leave.

4. Special Needs

A full-time member who has completed at least twelve (12) months and eleven (11) weeks of continuous service at the University shall be eligible for a paid leave of absence for a period of up to two (2) weeks to fulfil responsibilities relating to the special needs of a member of the employee's family. Special needs may include, but are not restricted to, resettlement of aged or disabled parents, serious illness of parents, partner, or child, medical treatment of partner or child that cannot be provided in the Sudbury Region. The teaching/professional and service responsibilities of Members on this leave shall normally be assumed by their colleagues without additional expense to the University.

ARTICLE 3.52 - COMPASSIONATE LEAVE

1. In the event of the death of a Member of an employee's family, the employee shall be granted a leave of absence of up to five (5) consecutive days with pay.

2. The term "member of an employee's family" means partner (which includes husband, wife, common-law partner, and same-sex partner), son and daughter, brother and sister, mother and father, mother-in-law and father-in-law, sister-in-law and brother-in-law, grandparents, guardians, grandchildren, daughter-in-law and son-in-law.

3. For a longer period of absence, a Member may apply for leave without pay according to Article 3.32 - Leave Without Pay.

ARTICLE 3.6 - ABSENCE - GENERAL

The University as a community of scholars requires the availability of its Members on a regular and on-going basis to ensure that the activities of the University scheduled and unscheduled can be carried out in an orderly manner.

1. Any absence shall not normally interfere with assigned and/or scheduled activities and the harmonious functioning of the unit.

2. Any absence from campus affecting teaching/professional librarian duties shall be governed by Article 2.00 - Rights, Responsibilities and Duties of Academics.

3. From Labour Day to Spring Convocation absences of more than one (1) week require notification to the Chairperson/Director and permission of the Dean/Director of the Library. Shorter absences require notification to the Chairperson/Director/ Director of the Library. When scheduled or assigned duties are affected by an absence, Members shall make suitable

arrangements through their Chairperson/Director who shall advise the Dean/Director of the Library when the absence has a significant impact on the Member's duties.

4. From Spring Convocation to Labour Day, Departments/Schools must maintain a fair and equitable system to assure a reasonable presence sufficient to administer the Department/ School, to deal with correspondence and to maintain on-going availability for student counselling and other unscheduled issues as they may from time to time arise. Absences during this period must be in accordance with this system. For any absences of more than a week, prior written permission shall be obtained from the Dean/Director of the Library who shall not unreasonably withhold such permission.

5. Except where Members are on vacation, leave or other approved absence they must remain in communication with their unit so that it is reasonably possible for the University to contact and/or recall them on short notice.

6. It may in exceptional cases, be necessary for the University to recall a Member who is on vacation, leave or formally approved absence as defined in Paragraph 5. The University will not do so arbitrarily or unreasonably. In such cases, the University will bear reasonable transportation costs consequent upon any such recall.

ARTICLE 3.93 - PHYSICAL AND MENTAL ILLNESS

In the event of illness, a Sessional Instructor shall be granted leave with full pay up to two (2) weeks in each term. If requested, the Sessional Instructor shall provide a medical certificate to substantiate the claim. For longer illnesses no deduction of pay shall be made in cases where no substitute teaching costs accrue to the Board.

ARTICLE 3.94 - FAMILY RESPONSIBILITY

The Ontario Employment Standards Act provides specific rights and responsibilities with respect to leaves related to family responsibilities. These provisions will apply to Sessional Instructors.

ARTICLE 3.95 - POLICY AND PROCEDURES IN THE EVENT OF DEATH

NOTE: The following procedures and practices are currently in place and are largely determined by external agencies. It may from time to time be necessary to make adjustments to these procedures based on requirements of these external agencies. The Parties agree that such changes required by external agencies do not require prior approval.

1. The beneficiary is to contact the Pension and Benefits Officer in the Personnel Office. If within seven (7) days the University has not been contacted by the beneficiary, the University shall make every reasonable

effort to contact the beneficiary.

2. Life Insurance

- a) The employee is insured for three- (3) times salary to a maximum of \$300,000.
- b) The following documents will be required to request payment of the insurance carrier:
 - the beneficiary must complete a Statement required by the insurance carrier as well as provide his/her Social Insurance Number;
 - the notice of the employee's death that appeared in the Obituary Notices;
 - a Death Certificate;
 - the last insurance certificate that was issued to the faculty member.
- c) The Life Insurance proceeds are usually paid within one month.

3. Pension Plan

If the Member dies prior to receiving a pension, the following will be required to process the benefits:

- a) The University shall contact the Beneficiary and outline the procedures to be followed.
- b) The Beneficiary must complete an "Application for Death Benefit".
- c) Provide a Death Certificate.
- d) Provide a "notarial copy" of the employee's "Last Will and Testament".
- e) All Members should have a current "Last Will and Testament".
- f) Beneficiaries of Members without a "Last Will and Testament" will have to settle any disputes between "potential Beneficiaries (children vs spouse)" in the courts, prior to receiving any funds from the Pension Plan.

The file will be forwarded to the Actuary for the calculation of the death benefit. Once that calculation is received, the Beneficiary will be contacted. The Beneficiary can request a lump sum refund or a transfer to a R.R.S.P. that is not subject to locked-in provisions.

The death benefit from the Pension Plan is usually paid within two to three months.

If the Member dies after commencing to receive his/her pension, the form of pension that was selected by the Member will determine if further

benefits are payable to the Beneficiary.

4. Continuation of Benefits to Spouse and Dependents

The Benefits, Hospital Care, Extended Medical and Dental Insurance shall be continued to the end of the month following the month in which the death occurred.

5. It is normal that life insurance claims are processed by the insurance carrier within three to four weeks from receipt of required documentation. In the event of delays in processing a claim, the University will use its best efforts to assist the beneficiary in resolving any difficulties caused by the delays.

ARTICLE 3.96 - SALARY TO BENEFICIARY IN THE EVENT OF DEATH OF FACULTY MEMBER

1. Salary Rate: shall be the rate of gross pay for the contract period, including any proportionate reduction in stipend consequent on approved University policies.

2. Termination Date: shall be the end of the month in which the death occurs.

3. Period of Negotiations: where it would unduly retard settlement to postpone closure until the completion of a Collective Agreement, an arbitrary figure in excess of any anticipated agreement may be used as the basis for settlement by mutual agreement of the Parties.

4. Vacation Pay: the lesser of 2% per week or 8% per month of entitlement shall be calculated on gross earnings paid during the period of the year to termination.

5. Sabbatical Leave: is an investment by the University in an approved plan of professional development with a view to enhance future contributions to the work of the University and the broader scholarly community. Sabbatical leave entitlement is not a benefit, which the employee or his/her assigns can claim as of right in the event of either termination (for any cause), retirement, or death. For purposes of death benefits (Hospital care, Extended Medical and Dental Insurance), any sabbatical stipend is to be regarded as the equivalent of salary.

6. Contractual Travel Allowance: may be claimed by the Beneficiary for vouchered expenses incurred prior to termination.

ARTICLE 4.00 - SALARY STRUCTURE

SALARY STRUCTURE YEAR 2002-2003

1. The salary of each Member shall be composed of the base salary of each Member as of June 30, 2002 as modified by the following items:

- a) A scale increase of 3.2 % of the Member's regular salary.

b) A progress-through-the-rank increment for the evaluation carried out for the year 2001-2002 as described in Article 4.11. The progress-through-the-rank increments shall have the following values:

<u>Rank</u>	<u>Increment</u>
Instructor	\$ 1 300
Lecturer / General Librarian	\$ 1 500
Assistant Professor / Librarian	\$ 1 650
Associate Professor / Librarian	\$ 1 950
Full Professor / Librarian	\$ 2 100 *

* For the rank of Full Professor, where a Member's salary exceeds \$115,000 per annum the PTR will be at the 50% value (\$1 050).

c) Additional qualification increments shall be awarded pursuant to Article 4.21.

d) Merit increments shall be awarded according to Article 4.20 to 5% of the full-time Members of each Faculty and the Library.

e) A special catch up increment to be awarded of \$ 500 effective July 1, 2003 and an additional \$800 on January 1, 2004 regardless of rank.

2. The salary structure for 2002-2003 shall be as follows:

<u>Rank</u>	<u>Floor</u>
Instructor	30 666
Lecturer / General Librarian	38 152
Assistant Professor / Librarian	47 326
Associate Professor / Librarian	58 867
Full Professor / Librarian	74 119

SALARY STRUCTURE YEAR 2003 - 2004

1. The salary of each Member shall be composed of the base salary of each Member as of June 30, 2003 as modified by the following items:

a) A scale increase of 3.2 % of the Member's regular salary.

b) A progress-through-the rank increment for the evaluation carried out for the year 2002-2003 as described in Article 4.11. The progress-through-the-rank increments shall have the following values.

<u>Rank</u>	<u>Increment</u>
Instructor	\$ 1 500
Lecturer / General Librarian	\$ 1 700
Assistant Professor / Librarian	\$ 1 850
Associate Professor / Librarian	\$ 2 150
Full Professor / Librarian	\$ 2 300*

* For the rank of Full Professor, where a Member's salary

exceeds \$115,000 per annum the PTR will be at the 50% value (\$1 150).

- c) Additional qualification increments shall be awarded pursuant to Article 4.21.
- d) Merit increments shall be awarded according to Article 4.20 to 5% of the full-time Members of each Faculty and the Library.
- e) A special catch up increment to be awarded of \$ 500 effective July 1, 2003 and an additional \$800 on January 1, 2004 regardless of rank.

2. The salary structure for 2003-2004 shall be as follows:

<u>Rank</u>	<u>Floor</u>
Instructor	31 647
Lecturer / General Librarian	39 373
Assistant Professor / Librarian	48 840
Associate Professor / Librarian	60 751
Full Professor / Librarian	76 491

SALARY STRUCTURE YEAR 2004 - 2005

1. The salary of each Member shall be composed of the base salary of each Member as of June 30, 2004 as modified by the following items:

- a) The scale increase will be determined by the Parties by April 1, 2004. Should the Parties fail to reach agreement on the percentage of the scale increase by April 1, 2004, Mr. Martin Teplitsky, QC shall be appointed to fix the across the board increase for July 1, 2004. If Mr. Teplitsky is incapacitated, Mr. Owen Shime shall be appointed, and if Mr. Shime is unavailable, Mr. William Kaplan shall be appointed. However, if the parties agree, they may appoint another person as arbitrator if Mr. Teplitsky is incapacitated.

- b) A progress-through-the rank increment for the evaluation carried out for the year 2003-2004 as described in Article 4.11. The progress-through-the-rank increments shall have the following values.

<u>Rank</u>	<u>Increment</u>
Instructor	\$ 1 700
Lecturer / General Librarian	\$ 1 900
Assistant Professor / Librarian	\$ 2 050
Associate Professor / Librarian	\$ 2 350
Full Professor / Librarian	\$ 2 500*

* For the rank of Full Professor, where a Member's salary exceeds \$115,000 per annum the PTR will be at the 50% value (\$1 250).

- c) Additional qualification increments shall be awarded pursuant to Article 4.21.
- d) Merit increments shall be awarded according to Article 4.20 to 5% of the full-time Members of each Faculty and the Library.
- e) A special catch up increment to be awarded of \$ 500 effective July 1, 2004 and an additional \$800 on January 1, 2005 regardless of rank.

2. The salary structure for 2004-2005 shall be as follows: (to be determined as in 1.a) above.

<u>Rank</u>	<u>Floor</u>
Instructor	
Lecturer / General Librarian	
Assistant Professor / Librarian	
Associate Professor / Librarian	
Full Professor / Librarian	

ARTICLE 4.10 - PROGRESS-THROUGH-THE-RANK (S) INCREMENTS

- 1. The purpose of these increments is to provide, through a series of salary increases, orderly promotion within rank.
- 2. These increments shall be awarded annually for satisfactory performance of duties per Article 4.11.
- 3. Increments may be withheld if performance is deficient, as outlined in Article 4.11.
- 4. Any Members who are promoted to a higher rank shall not be required to take a loss in salary. If such Members' salaries are below the floor salary of the higher rank, they shall receive the floor salary upon promotion.
- 5. When in a particular year Members are promoted to a higher rank the progress-through-the-rank(s) increment for that year, if awarded by the Dean/Director of the Library, will be made at the higher rank.

ARTICLE 4.11 - PROCEDURES FOR THE AWARD/DENIAL OF A PROGRESS-THROUGH-THE-RANKS INCREMENT

- 1. When a Member's performance is judged to be satisfactory by the Dean/Director of the Library, the annual increment shall be awarded. The denial of an annual increment where the Member is eligible shall be viewed as a disciplinary measure as per Article 2.40.
- 2. Decisions to award or deny the annual increment shall be communicated to the Members by June 30th.

3. For those Members on sabbatical or study leave, the decision whether to award the annual increment may be delayed until submission of their final report as specified in Article 2.11 - Annual Report for Members.
4. The Dean/Director of the Library shall examine the annual reports as per Article 2.11, and make such other inquiries, as he/she deems appropriate. Where the Member does not show active participation and/or satisfactory performance in all three areas, A, B, and C (for Members in the regular stream) or both areas A and C (for Members in the alternate stream) under and within the provisions of Article 2.00, the Dean/Director of the Library shall undertake a more detailed review of the Member's activities. This review shall include at least an examination of prior annual reports covering a period of time determined by the Dean/Director of the Library following consultation with the Member. The Dean/Director of the Library shall inform the Member of the results of this review and shall award an annual increment where overall performance is found to be satisfactory.
5. If, for any reason, the Dean/Director of the Library is sufficiently concerned about the performance of an individual Member who is eligible for an annual increment to consider denying the annual increment, he/she shall direct that an evaluation of that Member be made by the FPC/FFPC/LPC. The Dean/Director of the Library shall have ultimate discretion to decide which Members shall be evaluated by the FPC/FFPC/LPC.
6. The FPC/FFPC/LPC shall submit its evaluation to the Dean/Director of the Library by June 15th. The FPC/FFPC/LPC shall make such inquiries, as it deems appropriate. It may examine any aspect of the Member's academic performance for the proceeding twelve (12) months. The FPC/FFPC/LPC shall be empowered to make use of such Student Evaluation Instruments as are agreed to by the parties. Summaries of such evaluations shall be made available to the Member by the Chairperson of the FPC/FFPC/LPC without attribution to the students. The evaluation of the FPC/FFPC/LPC must include a summary statement of the overall adequacy of the Member's performance, i.e., that such performance is satisfactory or unsatisfactory.
7. The Dean/Director of the Library shall make an independent evaluation of the Member in question. In the formulation of his/her evaluation the Dean/Director of the Library may make such inquiries, as he/she deems appropriate. The evaluation of the Dean/Director of the Library must include a summary statement of the overall adequacy of the Member's performance is satisfactory or unsatisfactory.
8. A copy of the evaluation of the FPC/FFPC/LPC and the Dean/Director of the Library shall be provided promptly to the Member. The said evaluations shall all become part of the Member's personnel files as per Article 2.30 - Personnel Files.
9. After making his/her evaluation, the Dean/Director of the Library shall decide whether to award or deny a normal increment to the Member in question. The normal increment must be awarded if both evaluations

indicate that performance is satisfactory. In the above instance, the Dean/Director of the Library shall not direct a subsequent evaluation of the Member for a period of two (2) years following, unless there is documented evidence of unsatisfactory performance in the Member's personnel file.

10. All procedures for the evaluation of academic performance of Members shall be completed no later than June 30th, except in cases where the Member elects to appeal or in cases of leave as in Article 2.11. In these leave cases; the procedures shall be completed by July 30th for leaves terminating on June 30th or by January 31st for leaves terminating on December 31st.

11. Failure of a Member to submit the annual report by the specified time limit will result in the delay of the decision whether to award or deny the annual increment until such time as the report is submitted. If awarded, the payment of the appropriate monthly portions of the increment shall be retroactive to the date of the first of the month following the submission of the report or July 1st immediately following the due date, whichever is later. No annual increment will be awarded where the annual or sabbatical report is submitted after September 30th in the calendar year the report is due.

ARTICLE 4.20 - MERIT INCREMENTS

1. Merit increments are awarded by the Vice-President, Academic and will become a permanent part of the Member's salary structure.

2. Merit increments shall be awarded each year to at least 5% of the full-time Members in each Faculty and the Library who are receiving a salary or stipend from the University.

3. All merit increments have the value of one increment.

4. Merit increments are awarded according to the procedures of Article 2.23. The FPC/FFPC/LPC will consider applications and/or nominations for merit increments within the time lines specified for promotion to ranks other than that of Full Professor and shall forward a recommendation to the Vice-President, Academic.

5. Each FPC/FFPC/LPC shall consider the award of merit increments in relation to criteria for promotion to the rank that the Member currently holds. The Member's performance over a three-year time period or since the award of the last merit increment, whichever is shorter, must be judged clearly above the level required for promotion to that rank.

6. All merit increments received previously under the terms of prior Collective Agreements remain in force.

7. The determination of individuals to receive merit increments pursuant to paragraph 5 of this Article shall not be subject to grievance.

ARTICLE 4.21 - ADDITIONAL QUALIFICATIONS

INCREMENTS

1. An additional increment shall be awarded to individuals obtaining a first doctorate provided that such a degree was not a condition of nomination to a specific rank and salary as indicated in the letter of appointment. Such an award will be retroactive to the first day of July immediately preceding the receipt of the doctorate. The doctorate will be deemed to have been received when the individual can provide a diploma or a letter from the university where the doctorate is being obtained indicating that all the conditions for the doctorate, including the thesis defence and the corrections to the thesis, have been met. The Member shall apply for an additional increment through the Dean/Director of the Library and must furnish a copy of the appropriate document.

ARTICLE 4.30 - OVERLOADS

1. All ranks of full-time faculty who are teaching a course on a paid overload basis will receive a stipend as shown below for courses beginning after these dates:

<u>Effective</u>	<u>Full course</u>	<u>Half course</u>
July 1, 2002	\$ 6,829	\$ 3,415
July 1, 2003	\$ 7,034	\$ 3,517
July 1, 2004	\$ 7,245	\$ 3,623

2. Where scheduled Continuing Education courses may otherwise have to be cancelled, Members may, if they choose, agree to teach a course for an amount less than the overload stipend. The Association shall be informed of any such agreement prior to its settlement.

3. In recognition of agreement by the Parties, that excessive overload teaching/professional Library service is undesirable (Article 2.10 6b) the Dean/Director of the Library has the authority to limit the number of overload courses a Member may teach in any given academic year, or its equivalent in the Library. In order to fulfil this function, the Dean/Director of the Library must approve all paid overloads including distance education courses and on-campus courses administered by the Centre for Continuing Education. In decisions to limit the number of paid overloads, the Dean/Director of the Library shall be guided by his/her assessment of the total workload of the Member, the impact of overload teaching/professional Library work on the likely career progress of the member, including the capacity of the Member to undertake scholarly activity and administrative duties expected of all Members. A decision by the Dean/Director of the Library to limit paid overloads in any academic year shall not be grievable.

4. Librarians may be paid full or half overloads according to the schedule outlined in this Article.

5. All Members who believe they are entitled to an overload stipend shall apply per Article 2.10 - Academic Workload.

ARTICLE 4.31 - DISTANCE EDUCATION COURSES

1. Normal function

The development and/or supervision of distance or on-line education courses are an integral part of University functions. Therefore, the development and/or supervision of a distance or on-line education course may be part of a Member's normal workload as per Article 2.10 and according to Senate regulations or may be carried out on an overload basis. Prior to assigning the supervision of a distance or on-line course to a Member as part of his/her normal workload, the Dean shall seek volunteers willing to teach such a course. The Dean shall not assign the development of a distance or on-line education course to a Member as part of his/her normal workload without his/her prior consent in writing. The development and/or supervision of a distance or on-line education course are governed by the terms and conditions of a contract issued by the Centre for Continuing Education on behalf of the University.

2. Equivalents

The development of a distance education course shall normally be equivalent to twice the credit value of the course but may be equivalent to a lesser amount or up to a maximum of a full workload.

In all instances, a written statement of the equivalency will be provided in advance by the Dean when the work is part of assigned workload and by the Director of Continuing Education otherwise.

3. Copyright

Copyright for distance education courses shall be governed by Article 4.72.

4. Compensation

Where the development of a distance education course is not included as a part of a Member's normal workload the payment shall be an overload payment based on the equivalence outlined in Paragraph 2 above. A Member may also agree to some combination of normal workload assignment plus paid overload as appropriate.

5. Supervision

Where the supervision of a distance education course is not included as part of a normal workload, a six credit course shall be paid for on the basis of \$1,000 for 1 to 5 students. For enrolments with more than five students \$175 for the year 2002-2003; \$180 for the year 2003-2004 and \$185 for the year 2004-2005 per student to a maximum as per Article 4.30.1 with restrictions as per Article 2.10 paragraph 6. Three credit courses will be pro-rated.

ARTICLE 4.51 - FRINGE BENEFITS

1. The following fringe benefits are available to Members:

Retirement Plan for the Staff of Laurentian University
Group Life Insurance Plan
Accidental Death and Dismemberment Plan
Dependent Group Plan
Extended Medical Plan
Long-Term Disability Plan
Semi-private hospital coverage

2. The cost of premiums shall be shared by the University and the Member on the following basis:

a)	Semi Private Hospital Coverage	University	100%
b)	Life Insurance: (includes (A.D. & D. and D.G.L.)	University Member	50% 50%
c)	Extended Medical	University	100%
d)	Dental Care Plan	University Member	50% 50%
e)	Long Term Disability	Member	100%
f)	Retirement Plan	University: 5.2% of plan earnings up to Canada Pension Plan Yearly Maximum Pensionable Earnings (YMPE), 7% of plan earnings in excess of YMPE, and 1.5% of plan earnings to the Minimum Guarantee Fund. Member: 3.2% of plan earnings up to the YMPE and 5% of plan earnings in excess of the YMPE	

3. Any Member on an unpaid leave of absence shall make special arrangements for benefit coverage as outlined in Article 3.32 - Leaves of Absence Without Pay.

ARTICLE 4.52 - PROFESSIONAL DEVELOPMENT EXPENDITURES

1. In order to further the objectives of the University, the creation and

dissemination of knowledge, the activities of each full-time Member shall be supported by professional expenditures in each contractual year. The amount of these expenditures shall be limited to \$1,550 for the academic year 2002-2003, \$1,600 for the academic year 2003-2004 and \$1,650 for the academic year 2004-2005.

2. Professional development expenditures allowable under this Article include the following:

- a) Membership fees for professional and/or learned societies related to the Member's discipline.
- b) Subscriptions to professional and/or learned journals.
- c) Books, materials, equipment, and services directly related to research and teaching/professional Library work.
- d) Registration fees for the member to attend a scholarly conference.
- e) Travel including transportation, food and accommodation (subject to University travel policies) for the member to attend relevant scholarly conferences or seminars, or to visit other universities or research sites to conduct research and scholarly work which cannot be done at Laurentian University.
- f) Page and reprint charges or costs incurred in the preparation and completion of scholarly manuscripts.
- g) Professional/academic development or upgrading.
- h) Hiring part-time assistants in support of research and teaching, excluding marking.

3. Expenditures must be approved in advance by the Dean/Director of the Library and reimbursements will be made on verification of receipts. In the event that expenditures are incurred in relatively small amounts - less than 50% of the total or less than the remaining maximum allowable amount - reimbursements should be accumulated but receipts must be submitted not later than January 1 or July 1 following the date the expenditures have been made.

4. Full-time Members who are on sabbatical leave, study leave, or voluntary reduced workload are eligible for the professional development expenditures.

5. Any equipment purchased with funds provided under this Article remains the property of the University but a Member shall have the right if he/she so chooses to buy back such equipment at fair market value.

6. Any unused portion of the maximum allowed for professional development can be carried forward for one year only. Such carry forward must be approved by the Dean/Director of the Library.

ARTICLE 4.53 - TUITION FEE EXEMPTION AND TUITION BURSARIES

Tuition Fee Exemption

1. The following shall be eligible for Tuition Fee Exemption.
 - a) All full-time Members as of the effective date of appointment and all retired full-time Members.
 - b) Spouses and dependents of all full-time Members and also retired full-time Members and of deceased retired Members and of Members who died while in the full-time employ of the University. Dependents include wife and husband (including common-law relationships), children up to the age of 26 years (including natural, step, and adopted children, wards and other children for whom the member is the primary care giver).
2. Exemption from tuition fees is subject to the following conditions:
 - a) A student must remain in good standing as defined by the Registrar's Office in order to qualify for tuition exemption. In the event of loss of good standing, the same course(s) or an equivalent one(s) may be taken at the student's expense in order to reinstate good standing and eligibility.
 - b) Students who are eligible for an exemption from tuition fees are not exempted from the payment of incidental fees.
 - c) To the extent that a grant is specifically given to defray tuition a student who receives a grant is not eligible for exemption from tuition fees.
 - d) To the extent that tuition is reduced by a Laurentian University tuition scholarship, the student is not eligible for exemption from tuition fees. Where the funds are from an outside source this condition does not apply.
3. Eligibility ceases with the term immediately following the date of termination of employment of a Member, unless otherwise specified in this Agreement.
4. The Board reserves the right to modify or rescind this policy depending on the development of future government policy that has a bearing on this matter.

Tuition Bursaries

1. Tuition Bursaries for the full value of full-time or part-time credit-course tuition (excluding incidental fees) shall be awarded to those who meet

the eligibility criteria and conditions for Tuition Fee Exemptions (above) and who have achieved a 70% average on admission (for new students) or on the last academic year in which the student was enrolled (returning students).

2. Students awarded a tuition bursary will not be eligible for the tuition exemption.

ARTICLE 4.54 - SECOND MORTGAGE LOANS POLICY

The University has a policy of providing assistance to Members to finance the purchase of a principal residence, or, on occasion, to make major renovations to one already purchased and to refinance second mortgages. This loan can normally be granted only once. If such assistance is given, it is by way of a guarantee of a bank loan of up to \$15,000 from the Royal Bank with which arrangements have been made by the University, subject to the following procedures and conditions.

1. An application must be completed in writing on a form available from the Comptroller's office. Part of this form is a family budget statement of income and expenditures. Loans will be recommended only if applicants can show ability to meet mortgage costs (including first and second mortgages as relevant) in addition to other normal expenditures.
2. This application is presented to the Executive Committee of the Board of Governors for their consideration and approval or rejection.
3. The applicant's equity in the property must be at least 50% of the second mortgage loan and must be at least 10% of the assessed value of the property.
4. These loans are not available for the purchase of a building site only.
5. If approved, the bank concerned is informed in writing and the University subsequently gives its written guarantee.
6. The Member for whom the guarantee is signed is required to register a second mortgage on the property being purchased in the name of the University in order to secure the University's interest in the event the University is required to make payment under the guarantee.
7. The Member is required to pay the costs of drawing, executing, registering and, later when the loan is repaid, of discharging the executed mortgage.
8. The total outstanding loans at any time guaranteed under this resolution may not exceed an amount determined from time to time by the Board of Governors.
9. The Executive Committee shall report from time to time to the Board on all action taken by the Executive Committee pursuant to this Resolution.

10. As long as the present arrangement with the Royal Bank is in effect, these loans are available at prime bank interest rate if the loan is repaid in five years or at prime rate plus one-half percent if the loan is repaid in ten years or less. The loans can be repaid in equal instalments or in graded payments, which are lower for the first four years and higher during the last six years of the loan.

ARTICLE 4.55 - MOVING EXPENSES

1. On initial appointment to the University each regular full-time Member shall be entitled to reimbursement for moving expenses subject to the following conditions:

- a) All claims must be substantiated by official receipts or reasonable facsimiles.
- b) The University shall reimburse claims at the rate of 100% to a maximum of \$2,500. In exceptional circumstances, the University may exceed this amount.

Such conditions will be specified in the initial letter of appointment.

2. Moving expenses include:

- a) Moving, packing, crating and unpacking of household goods and personal effects.
- b) Transfer of family by the most economical means of transportation.
- c) Reasonable living expenses for the duration of the trip to the new location.
- d) One (1) advance visit for the purpose of securing suitable housing. The newly appointed Members may be accompanied by their spouse in this instance.

3. Employees appointed on a contract of twelve- (12) month's duration or less shall not normally be eligible to claim moving expenses. The Vice-President, Academic may under special circumstances, allow some amount of moving expenses to be reimbursed for such employees.

4. Moving expenses paid to a new Member will constitute a loan made by the University. This loan will be retired when the Member has completed three (3) years of continuous service to the University, each year being equivalent to one-third (1/3) of the reimbursement of the loan.

5. Should the beneficiary of such a loan leave the University before completing three (3) years of continuous service, for personal or disciplinary reasons, they must reimburse the University for the remaining unretired portion of the loan.

ARTICLE 4.56 - PHYSICAL EDUCATION FACILITIES

As of the effective date of appointment, all full-time Members, their spouses and dependants as defined in Article 4.53 - shall be eligible for free Physical Education Centre membership subject to the payment of an annual service fee and lockerette rental fee as established by the Division of Physical

Education.

ARTICLE 4.57 - PUBLIC LIABILITY INSURANCE

Subject to the express provisions of the current policy (ies) of insurance providing such coverage, the University shall continue to maintain the present public liability insurance insuring, among others, Members who are acting within the scope of their employment, against liability claims, (including negligence, property damage, personal injury, libel and slander) up to a limit of one million dollars (\$1,000,000). Any changes in this current policy shall be made with the agreement of the parties.

ARTICLE 4.6 - PARKING

The parties agree that Members wishing to reserve a parking space in any parking area on campus shall pay the fee established by the University. The parking fees shall be determined following consultation with the Parking Committee on which the Association shall maintain its current representation of one Member.

ARTICLE 4.71 - PATENTS

1. The Board agrees that the Members have the unqualified right to publish their inventions. The Board further agrees that the Members have no obligation to modify their research to enhance patentability nor, unless otherwise agreed, any obligation to seek patent protection for the results of their scientific work.
2. The Board waives, disclaims and abandons any interest in or claims to any invention, improvement, design or development made by a Member or Members except where this has occurred with the use of the Employer's funds, personnel or equipment in which instance the conditions set out in Paragraph 4 hereof shall apply. Unless otherwise provided in this Article, any invention or any patent arising therefrom shall be the sole property of the inventor.
3. The Members shall have the right to make their own arrangements at their own expense to patent an invention subject to the obligations in this Article and shall be entitled to all the proceeds therefrom except where the invention was made with the use of the Employer's funds, personnel or equipment.
4. Where an invention, improvement, design or development was made by Members with the use of the Employer's funds, personnel or equipment the Members shall sign an Agreement with the University before an application for patent is filed by them. This Agreement shall provide that the Employer shall assign all rights, title and interest in the invention, improvement, design or development to the Members, subject to the University and the Members sharing equally in the "net proceeds" as used in this Article shall mean the net profits derived from licensing or commercialisation of the patented product, equipment or process after deduction of all expenses incurred in

patent searches, for obtaining patent protection and for maintaining said protection in Canada and in other countries.

5. Members agree to disclose the existence of any patent applications to the Employer within three (3) months of the date of the application unless otherwise provided for in this Article and shall affirm in writing at that time whether or not the discovery has been made and developed with the use of Employer's funds, personnel or equipment. The Employer may within one (1) month of receipt of the statement of the Member challenge in writing the assertion of the Member in regard to the circumstances of the discovery, in which case the matter shall be settled by arbitration as detailed in Article 8.3. Any challenge by the Employer shall be null and void unless received within the above noted time limit. If the Member(s) fails to disclose the existence of patent applications within three (3) months, it shall be understood that the Employer maintains its rights under this Article until such disclosure is made. Failure by the Employer to challenge the assertion of the Member within one (1) month shall constitute a waiver of any rights that the Employer may have had in such discovery.

6. For the purpose of interpreting Sections 2, 3, 4, and 5 of this Article, payment of regular salary and fringe benefits shall not be construed as use of the Employer's funds.

7. Members shall grant to the Employer a non-exclusive royalty-free, irrevocable, indivisible, and non-transferable right to use solely for the University's internal use any patented device, equipment or process when such device, equipment or process has been invented with the use of the Employer's equipment, funds or support/technical personnel. Such right however, shall not include the right to transfer or exploit any product or process.

8. Where Members decide that they will not patent, produce or market an invention, improvement or discovery at their own expense but consent to the University patenting, producing or marketing the invention, before an application for patent is filed by the University, the University shall negotiate an agreement with the Members. The agreement shall provide that the Members shall assign all their rights, titles and interests in the invention, improvement or discovery to the University subject to the University and the Members sharing equally in the "net proceeds" derived therefrom.

9. Without mutual agreement, the name of the University shall not be used in connection with inventions in which the Employer has no interest.

10. Any revenue that the Employer may receive from inventions shall be dedicated to academic development and research with at least fifty (50) percent of such income designated for academic development and research in the Faculty/Library with which the inventor is affiliated. These funds shall be maintained in a special account, which shall be open to the inspection of the President of the Faculty Association or the President of the Faculty Association's designate.

11. The Employer agrees that it shall not enter any agreement to sub-contract work or responsibilities already undertaken or possessed by the Employer and the Members without securing to the Members who may be seconded to or be employed by the sub-contractor all the rights, privileges and benefits accorded to them in this patent Article of this Agreement. Nor shall the Employer enter into any agreement to create a consortia of universities or government departments or private companies for the purposes of research or development or commercial exploitation without securing to the Members who may be seconded to or employed by such consortia, departments or private companies all the rights, privileges and benefits accorded by this Article. If the Employer makes an agreement contrary to this provision and fails to secure the said rights, privileges and benefits to said Members, the agreement shall not apply to Members unless there is a special agreement in writing between the Employer and the Faculty Association to waive this clause of the Article.

ARTICLE 4.72 - COPYRIGHT

Copyright vested in the Member:

1. The Member who is the creator of any work including any printed material, computer programmes, on-line course material, painting, sculpture, film, slide, tape or similar material shall retain the copyright therein unless otherwise stated in this Article.

Copyright vested in the University:

2. The parties agree that the University shall hold copyright to any work including any creative work, printed material, computer programme, on-line course material, films, slides, tapes or similar materials produced by Members as part of their normal workload for the University for use in its distance education courses. In all cases, the University shall arrange for the development of these courses through a special contract with the Members, which sets out terms in accordance with the terms in this Agreement. Copies of all works subject to the policy stated in this paragraph shall contain a statement or marking identifying the ownership of copyright, and with appropriate credit, the contributors. A copy of the contract between the Member and the University shall be sent to the Association.

3. If the University requests a work including a creative work, printed material, films, slides, tapes, computer programmes, on-line course material, or similar materials from a Member under special contract, then, in the absence of any agreement to the contrary, the University shall be the first owner of the copyright therein. This includes all materials for distance education courses. A Member entering into such a contract with the University shall be notified of the terms of this paragraph prior to signing the contract. The Association shall receive a copy of such notification.

4. All special contracts for distance education courses shall contain a clause which allows the contributors to use (for their own classroom purposes) parts of any course that they have created provided that they shall

not use such material in another distance education course without the written permission of the University during the period in which the University holds copyright to that material.

5. The master copy of any work whose copyright is vested in the University under the terms of this Article shall be the property of the University. The University shall be responsible for the custody and control of such works and of any copies thereof.

6. Where consent, fees or licenses are required for the use of incorporated materials in works in which the University has copyright under the terms of this Article, the contributor shall notify the University by provision of a list of works which require such clearance. The University shall have the right to refuse to accept requests for copyright clearance, which are judged to be prohibitively expensive.

7. The Members who are the authors of any work, whose copyright is vested in the University shall sign a warranty that the work is original and that, to the best of their knowledge, it does not violate any existing copyright.

8. The offering of courses to which the University has copyright under the terms of this Article shall be at the University's discretion.

Revision:

9. From time to time, the University may require revisions in works to which it holds the copyright in order to ensure that proper and current academic standards are met.

10. Further, the author of work as defined in Paragraph 2 or 3 above may, at any time after three (3) years of use, and at three (3) year intervals thereafter notify the University of the need to revise such a work. The University and the Member shall negotiate the amount it will pay to defray the costs of such revisions including the Member's fee.

11. The process of revision shall be regarded as the joint responsibility of the author of the work and the University. If the author chooses not to undertake the revision or if the author has not accepted the University's request for revision within one (1) month of receipt of that request or if the author is no longer an employee of the University, then the academic unit shall choose an individual to make the required revisions. By so doing, the author shall not lose contractual rights to any fees. Where the author is no longer an employee of the University, notice of the intention to revise and of the proposed revisions shall be sent to him/her by registered mail at the last known address. In the event that the author and the University cannot agree on the nature or extent of the revisions, the University may engage the services of someone approved by the academic unit to make the revisions.

12. The University shall negotiate a fee for any revisions that are made at the University's request.

13. In all cases where someone other than the authors make revisions to the work, if the authors object to the extent or the propriety of the revisions, they may have their names withdrawn as contributors to the work and any visible indication that they are contributors to the work shall be withdrawn. The authors must notify the University of their desire to do so within one (1) month after receiving notice by registered mail of the proposed revisions.

Third party use

14. "Net proceeds" of any fees or royalties that the University receives for the use by another party of a work to which the University has copyright under the terms of this Article shall be distributed in accordance with Paragraph 15 hereof and the Member shall receive no additional payment. "Net Proceeds" shall mean the fees and royalties received less the cost of reproduction, administration and distribution.

15. Net proceeds shall be distributed as follows:

- a) Until the original production costs have been recouped by the University, 75% to the University and 25% to the author.
- b) After recovery of the original production costs, 50% to the University and 50% to the author.

"Original production costs" include the normal tariff charges to produce the physical work including licensing costs of other copyright material exploited in the work. An accounting of production costs shall be produced by the University if requested by the Member or by the Association.

Member's Copy:

16. If practicable the Members shall receive, upon request, a copy at a cost not exceeding the cost of the tape/film/recording or other medium upon which the work has been produced of any work produced by them for the University and to which the University holds copyright under the terms of this Agreement.

17. Should the University wish to erase or otherwise destroy part or all of a work to which it has copyright under the terms of this Agreement, the authors shall be given notice of such intention and shall have one (1) month in which to make known their wish to receive a copy of the section (s) to be erased. If the authors express such a wish within the time limit, they shall receive a copy of those sections at a cost not exceeding the cost of the tape/film/recording or other medium upon which the work has been produced plus reasonable administrative costs arising therefrom.

ARTICLE 4.73 - COMMITTEE ON PATENTS AND COPYRIGHT

1. The parties agree to create a continuing Committee on Patents and Copyright, which shall be composed of two (2) individuals appointed by the

Board and two (2) Members appointed by the Association, with the Chairpersonship alternating between the Board's representatives and the Association's representatives at each successive meeting.

2. The Committee shall meet at least twice annually to:

- a) Conduct such business as is referred to it.
- b) Consider strategies for marketing inventions, improvements or discoveries.
- c) Recommend to the Joint Committee on the Administration of the Agreement any proposals for modifications or changes in the patents and copyright articles of this Collective Agreement.
- d) Mediate any disputes arising out of Articles 4.71 and 4.72 in accordance with Paragraph 3 below.

3. Grievance and Arbitration

For the purposes of this Agreement, any grievance by a Member pertaining to Articles 4.71 and/or 4.72 shall be handled in accordance with the following procedure:

- a) The Member, within three (3) weeks of the event giving rise to the grievance or the date on which the Member knew or reasonably should have known of such event if that date is later, shall present a grievance to the Vice-President, Academic.
- b) Within two (2) weeks of receipt of the grievance, the Vice-President, Academic shall refer the matter to the continuing Committee on Patents and Copyright and inform the Association of such grievance. If the Vice-President, Academic fails to refer the matter to the continuing Committee on Patents and Copyright within the time limits, the Members shall be deemed to have succeeded in their grievance and the results thereof shall be binding on the university.
- c) The continuing Committee on Patents and Copyright, within one (1) month of the receipt of the grievance, shall make a recommendation for the resolution of the grievance. The time limits may be extended by mutual agreement. If the committee fails to make a recommendation within the time limits, the Vice-President, Academic may act as in d) below.
- d) The Vice-President, Academic within one (1) week of the receipt of the recommendations of the continuing Committee on Patents and Copyright or within one (1) week of the end of the time limits for action by the Committee shall render the Committee's proposal in the matter and communicate it in writing to the parties concerned.
- e) If the proposal of the Vice-President, Academic rendered pursuant

to Paragraph 3d) above does not resolve the grievance, the matter may be submitted to binding arbitration by one (1) arbitrator in accordance with the grievance and arbitration procedures of this Collective Agreement.

ARTICLE 4.90 - RATES OF PAY FOR SESSIONAL INSTRUCTORS

1. Sessional Instructors shall be paid as follows for each three (3) credit course which commences after the date shown below; other courses will be pro-rated as per their credit weighting.

<u>Sessional Members</u>	July 1 <u>2002</u>	July 1 <u>2003</u>	July 1 <u>2004</u>
Without Establishment	4,017	4,138	4,262
With Establishment Status	4,182	4,307	4,436
Retired Sessional Members	4,511	4,646	4,785

These sessional rates of pay include the statutory vacation entitlement of 4% and payment in lieu of benefits.

Sessional Members are also entitled to the assignment of teaching assistants and/or markers at a level consistent with assignment of such assistance to full-time Members.

2. When scheduled Continuing Education Courses may otherwise have to be cancelled, Members may, if they choose, agree to teach a course for an amount less than the overload stipend. This amount shall be equal to at least the stipend for the course divided by twelve (12) and multiplied by the number of students enrolled in the course at the time the course starts. A copy of the Agreement shall be sent to LUFA at the same time as it is offered to the Member.

3. The Parties agree that Sessional Members who have establishment for one course, according to Article 2.94 11B, shall be paid at the establishment rate for any other course they may teach. However, such pay does not confer establishment for that particular course.

4. The Parties agree that compensation for Sessional Members teaching a three credit course in "didactique" in the School of Education be pro-rated at \$500 per student up to a maximum of the Sessional stipend for such a course.

5. The Parties agree that the rates of pay for Sessional Members teaching activity courses in the School of Human Movement shall remain frozen for the duration of this Collective Agreement at \$2,588 for Members without establishment and \$2,700 for Members with Establishment.

ARTICLE 4.92 - PHYSICAL EDUCATION FACILITIES FOR SESSIONAL INSTRUCTORS

Sessional Members and their families are eligible for free Physical Education Centre membership subject to the payment of the annual service fee and lockerette rental fee as established by the Division of Physical Education.

ARTICLE 4.93 - EXEMPTION FROM TUITION FEES FOR SESSIONAL INSTRUCTORS

Sessional Instructors shall be entitled to exemption from tuition fees for credit courses taken at Laurentian University. The exemption available shall equal the number of credits taught by the Sessional Member. It can be accumulated over a maximum of five years.

ARTICLE 4.94 - PROFESSIONAL DEVELOPMENT EXPENDITURES FOR SESSIONAL INSTRUCTORS

In order to further the objectives of the University, the creation and dissemination of knowledge, the activities of each Sessional Instructor shall be supported by professional expenditures. Sessional Instructors shall receive \$50 for professional development expenditures (in accordance with Article 4.52) for each 3-credit course taught to a maximum of \$300 per year.

ARTICLE 5.0 - SELECTION OF CHAIRPERSONS/DIRECTORS

1. The Chairperson/Director of a unit shall be appointed by the Vice-President, Academic in accordance with the procedures of this article.
2. The following procedures will begin at least six months before the end of a term of a Chairperson/Director or immediately if a post of Chairperson/Director becomes vacant.
3. a) There shall be a selection committee with the following composition:
 - (i) One third of the full-time teaching/librarian Members of the unit to the nearest whole number. The Members of the committee shall be tenured or probationary appointments, if possible, and shall be elected by all the full-time teaching/librarian Members of the unit.
 - (ii) The Dean/Director of the Library as a non-voting member.
 - (iii) The Chairperson/Director of another unit appointed by the Dean/Director of the Library in consultation with the unit seeking a Chairperson/Director.
 - (iv) At least one member of the committee shall be a woman. Where the unit has no women members and no woman is otherwise on the committee, the Dean/Director of the Library, in consultation with the unit shall appoint a woman Member in addition to those described above.

- b) The Committee shall elect a Chairperson from amongst its Members.
4. The Chairperson of the Selection Committee shall use all reasonable efforts to invite all full-time Members of the unit (including those on leave) to submit to him/her, within a specified period of time, in confidence, the names of possible candidates and reasons supporting their candidature. Without disclosing the names of the individuals submitting them, these names and reasons shall be communicated to the Selection Committee.
5. In the event that no candidates are submitted by the unit within ten (10) working days of the Selection Committee's request, the Committee may suggest a short list of its own or make a request to the Vice-President, Academic to search for an outside candidate. In the latter instance, the unit shall be consulted for the names of possible outside candidates.
6. a) The Selection Committee, after undertaking any further inquiries that it deems appropriate and relevant shall establish a short list of not fewer than two (2) and not more than three (3) candidates, unless it is convinced that it can find only one suitable candidate.
- b) The selection committee shall evaluate candidates on the grounds of proven administrative ability, scholarly activity, and teaching/librarian competence. The Selection Committee will be guided by Article 5.3 in making this evaluation. The Committee may wish to meet with the candidates.
- c) Prior to the compilation of its final short list, the Selection Committee will obtain, in writing, the consent of the candidates on that list.
- d) The unit may wish to meet with the short-listed candidates prior to the balloting process.
7. Within ten (10) working days from the final receipt of names from the unit as per paragraph 4, the Chairperson of the Selection Committee shall make all reasonable efforts to provide all full-time Members of the unit, including those on leave, with a ballot. The ballot shall set out the short list of candidates. The Members shall indicate their one preferred choice, in confidence, to the Chairperson of the Selection Committee within fifteen (15) working days from the distribution date noted on the ballot. The ballots shall be opened and counted in the presence of the Selection Committee.
8. In the event the Selection Committee finds only one suitable candidate, the Chairperson of the Selection Committee shall use all reasonable efforts to submit to all the full-time Members of the unit, including those on leave, a ballot showing this candidate's name. Time limits for this submission and the Member's responses shall be as set out in paragraph 7. The ballots shall be opened and counted in the presence of the Selection Committee.

9. The Chairperson of the Selection Committee shall report the results of the selection process and its recommendation to the Dean/Director of the Library.
10. If the Dean/Director of the Library is prepared to accept the Selection Committee's recommendation then the Dean/Director of the Library will forward this recommendation together with his/her own to the Vice-President, Academic who will make the appointment.
11. Should the Dean/Director of the Library not be prepared to accept the Selection Committee's recommendation, the Dean/Director of the Library shall indicate his/her reservations to the Selection Committee and the unit. If the Dean/Director of the Library and the Selection Committee are unable to agree on an appointment, the selection procedure shall be reinstituted as in paragraph 3.
12. The Chairperson/Director shall be a tenured or probationary Member of faculty. Any outside appointment shall be made in accordance with Article 2.21 - Appointment and Renewal.
13. In exceptional circumstances the Vice-President, Academic and the Dean/Director of the Library, after consultation with a unit, may appoint an acting Chairperson/Director for a period of up to four (4) months, consistent with Articles 5.1 and 5.2 - Terms of Office and Removal from Office.
14. Abbreviated Selection Process

In many selection processes, it is apparent at step 4 that a strong consensus has emerged for the selection of one candidate. In that event, the Selection Committee may proceed directly to step 8 of the procedure. If at least two Members object to the abbreviated selection process, then the Committee shall follow the full procedure.

ARTICLE 5.1 - TERM OF OFFICE

1. The term of office for Chairpersons/Directors shall normally be for three (3) years, renewable by unit selection per Article 5.0.
2. Should Chairpersons/Directors not be able to carry out their duties for four (4) months or less, the Chairpersons/Directors shall make provision for the take-over of their duties in consultation with the unit and Dean/Director of the Library.
3. If the absence is for a period of longer than four (4) months, the Chairpersons/Directors shall relinquish their title and a new Chairperson/Director shall be selected according to the procedures set out in Article 5.0 - Selection of Chairperson /Directors.

ARTICLE 5.2 - REMOVAL FROM OFFICE

1. Proceedings for the removal of the Chairperson/Director may be

initiated by:

a) A written complaint to the Dean/Director of the Library specifying the reasons for the complaint, signed by at least a majority of the full-time faculty of the unit, excluding those on leave and the Chairpersons/Directors themselves. The Deans/Director of the Library shall investigate the situation and offer their services to resolve the matter. If the attempt is unsuccessful, the Deans/Director of the Library will forward the written complaint together with their report to the Vice-President, Academic.

or

b) A written complaint by the Dean/Director of the Library to the Vice-President, Academic specifying the grounds for the complaint. The grounds for such complaints should normally be related to Articles 5.3 and 2.00.

2. The Vice-President, Academic shall invite the Chairpersons/ Directors and the unit to discuss the complaint. Following an adequate investigation, the Vice-President, Academic may request the Chairpersons/Directors to relinquish their office. If the Chairpersons/Directors are not requested to relinquish their office the unit or the Dean/Director of the Library may request initiation of procedures under 3c).

3. If the Chairperson/Director does not voluntarily resign as Chairperson/Director:

a) The Vice-President, Academic is empowered to suspend that individual as Chairperson/Director. Once suspended, the Member retains all other rights and responsibilities as defined in this Agreement.

b) The Vice-President, Academic shall instruct the Dean/Director of the Library to appoint an Acting- Chairperson/Director in consultation with the unit in accordance with Article 5.0 - Selection of Chairperson/Directors and shall forward the complaint to the President in the form of an appeal.

c) The President shall create an ad hoc committee to investigate the complaint and shall conduct its investigation in accordance with statutory requirements. As a result of the committee's investigation, the President shall rule on the question of removal from office.

d) The decision of the President shall be final, non-grievable and binding on all parties.

ARTICLE 5.3 - DUTIES OF CHAIRPERSONS/DIRECTORS

1. The Chairpersons/Directors are responsible for providing academic leadership to their Academic Units. They serve as the principal administrative officers, as well as the official spokesperson of their academic

units and they report to the Dean/Director of the Library.

2. Their duties are the following and shall be carried out in accordance with good administrative practices:

- a) To ensure, to the degree possible with such authority as the Dean/Director of the Library may delegate, that the Members of the unit are informed of, and fulfil, their duties and responsibilities in accordance with Senate regulations, the regulations of the University and this Agreement and to inform the Dean/Director of the Library, in writing, of any infractions thereof.
- b) To convene and preside over meetings of the Academic Unit at regular intervals during the academic year and to be an ex officio and voting Member of its standing committees.
- c) To ensure as far as reasonably possible that the Members of the unit have an opportunity to share in the decision-making process, in the formulation of policies, and in the administrative tasks of the unit.
- d) To review and act on all matters involving staff, both faculty and other, with the appropriate internal body and in accordance with Article 2.11 of this agreement and in accordance with the terms of Collective Agreements applying to other University bargaining units.
- e) To be responsible for presenting the academic programs of the department or school for accreditation or approval of external bodies, as needed.
- f) To prepare budgetary recommendations and administer the annual budget for the Academic Unit in conjunction with the Dean/Director of the Library and the appropriate internal body.
- g) To advise the Dean/Director of the Library on the instructional roster and time-table/desk time for the Academic Unit following consultation with Members of the Academic Unit and other appropriate University bodies and officers including the Office of the Registrar and the Centre for Continuing Education and to supervise the implementation of the timetable and roster/desk time.
- h) To supervise student counselling on academic matters and the assignment of programs of study within the Academic Unit.
- i) To prepare an annual report, due by 1 June, on the teaching/professional library, scholarly and community activities of the Academic Unit for submission to the Dean/Director of the Library who will be responsible by 1 September for preparing a summary report of his/her faculty for distribution including on the WWW (World Wide Web). Academic Units' reports will be submitted to the Dean/Director of the Library after they have been distributed to Members of the Unit.

- j) To supervise the use and proper maintenance of space and equipment allocated to the Academic Unit.
- k) To maintain relations between the Academic Unit and external professional constituencies and agencies and the wider community, as relevant and appropriate; and to arrange representation as necessary.

And other continuing duties as specified by the Agreement and other individual duties as may be reasonably assigned from time to time by the Board.

ARTICLE 5.4 - STIPENDS FOR CHAIRPERSONS/DIRECTORS

1. a) The Chairperson/Director will be entitled to a reduction of one-third teaching load during each calendar year served as Chairperson/Director. Where the Dean has assigned a full teaching load, with the agreement of the Member and the unit, an overload payment will be made, in lieu thereof. Where the Director of the Library has assigned a greater than normal workload, with the agreement of the Member and the unit, an overload payment (or proportion thereof) will be made.
- b) The Chairperson/Director may voluntarily waive these entitlements, in full or in part.
2. The Chairperson/Director will be entitled to an annual stipend for each full-year served. Portions of a year will be pro-rated. An acting Chairperson/Director shall receive a pro-rated stipend in lieu of the Chairperson/Director for each full month served in excess of the first month. The stipend shall be based on the number of full-time teaching/librarian Members in the unit and the number of other full-time employees (secretaries, technical staff etc.) that report to the Chairperson/Director.

For purposes of administration of this Article the Chairpersons/Directors shall indicate to the Dean/Director of the Library as of September 1 of each year the category under which they should be compensated. Changes occurring after September 1 shall be reflected in the following year. If the Dean/Director of the Library agrees with the category under which a Chairperson/Director is to be compensated, the Dean/Director of the Library will forward this information to the Vice-President, Academic. If the Dean/Director of the Library does not agree with the category and the disagreement cannot be resolved, the Vice-President, Academic will rule on the matter. The ruling of the Vice-President, Academic shall not be grievable.

Full-time teaching/librarian Members and other full-time employees: _____	Compensation per year: _____
1 - 7	\$ 750
8 - 13	\$ 1,500
14 - 19	\$ 2,250

3. In lieu of compensation, the Chairperson/Director may elect to receive the whole or part of the stipend in the form of an equivalent enhancement to the professional allowance. The Chairperson/Director will indicate his/her intentions in this matter by September 1 of each year.

ARTICLE 6.0 - SENIOR ACADEMIC ADMINISTRATORS

1. Selection

While retaining the right to appoint Senior Academic Administrators, including the President, the Board recognises the usefulness and desirability of consultation with Members, Units and Divisions in their selection, and shall follow the selection and appointment procedures that have been approved by the Board and the Senate. In instances where an outside candidate is being considered for a senior academic appointment, the candidate will normally be offered an appointment according to their qualifications at a rank consistent with the criteria listed under Article 2.21 - Appointments and Renewal.

2. Removal

The Board shall consider all serious complaints against senior Academic Administrators and take appropriate action, including the possibility of removal from office. It is understood that if a majority of Members of the bargaining unit within the Administrator's purview indicate dissatisfaction with that Administrator, the University will view this as one example of a serious complaint.

3. Re-entry into the Bargaining Unit

- a) Any senior Academic Administrators, who are excluded from the bargaining unit by virtue of their office, shall upon resignation/retirement/removal from that office return to take-up Membership in the bargaining unit.
- b) No Member shall be displaced from the unit by the entry or re-entry of former senior Academic Administrators. If there is no vacancy in the Department/School/Library concerned, the additional allocation shall not be at the expense of another Department/School/Library allocation.
- c) For all purposes relating to this Agreement, membership in the bargaining unit of a Senior Academic Administrator shall be reckoned as if they had not been outside the bargaining unit during their term of office.
- d) Senior Academic Administrators returning to the bargaining unit shall be considered as Members teaching for the first time (as per Article 2.10 – Academic Workload, Section 8. 3) and shall be

assigned teaching/professional library loads in keeping with the practice of their respective unit(s).

4. Acting or Substitute Senior Academic Administrators

a) The University may from time to time appoint Members of the bargaining unit to act or substitute for short periods of time in the place of Senior Academic Administrators.

Members so serving shall not undertake or be required to undertake any personnel action.

b) For longer periods, i.e. two months or more, when there is a need for an appointee to substitute or act with full authority and responsibility of office, a Member who so acts shall cease to be a Member of the bargaining unit for the period of substituting or acting and shall receive a pro-rated stipend for the position.

5. Relationship between Senior Academic Administrators and Academic Units.

Senior Academic Administrators shall be considered full Members of academic units in which they teach/offer professional library service, except that they must not participate in decisions by the unit on personnel matters.

ARTICLE 7.1 - REDUNDANCY

1. For the purposes of this Article, the declaration of a state of redundancy by the Board shall mean that the number of Members employed in a particular academic unit(s) must be reduced. The Board agrees that no procedures other than those specified in this Article will be used to deal with redundancies as defined in Paragraph 3. It is understood that the term redundancy does not apply to limited term appointments that carry no implication of renewal or continuation beyond the stated term in accordance with Article 2.21.

2. The Board shall declare a state of redundancy by sending a written notice to the Association and to the Vice-President, Academic that it has approved a resolution for one of the reasons outlined in Paragraph 3 of this Article. With this notice, the Board shall submit a detailed report specifying the reasons why the redundancy is justified and the exact magnitude of the reduction believed to be necessary.

3. A declaration of redundancy by the Board may be initiated in one of two (2) ways:

a) Senate may resolve to terminate a Faculty, Department/ School or program for reasons other than Financial Exigency. For the purpose of this Article, a program is defined as a course of study previously approved by the Senate and leading to a degree or a diploma. Should the program involve more than one Faculty or Department/ School, the

plural should be understood in the following paragraphs. If the Board resolves to approve Senate's decision, then a program redundancy shall be declared.

b) The Vice-President, Academic may make a submission to the Board that a particular academic unit(s) has (have) a larger number of Members than necessary to fulfil its (their) program and service teaching requirements in the light of student demand. Such a redundancy shall be known as a workload redundancy. The Board agrees that it will not declare a workload redundancy if such an action will result in insufficient academic personnel for that unit(s) to continue to offer a viable program(s). The onus shall be on the Board to show that the proposed reductions are consistent with normal workloads as defined in Article 2.10 and that the proposed reductions will not create an inequitable workload for the unit(s) affected by the redundancies.

4. Redundancies may be justified only for bona fide academic reasons and/or on the grounds of insufficient student demand. When insufficient student demand is used as a justification, such lack of demand must be demonstrable over a period of at least three (3) years and projections into the future must not indicate any appreciable increase in this student demand.

5. As a result of the Board's declaration, a Redundancy Committee shall be formed. This Committee shall hold its first meeting within fifteen (15) days of receipt by the Association of the Board's notice as specified in paragraph 2 hereof. Within ten (10) days of receipt of that notice, the Association shall forward to the Vice-President, Academic the names of three (3) Members who shall serve on the Redundancy Committee.

6. The Redundancy Committee shall include the following:

- a) Three (3) Members chosen by the Association
- b) Three (3) individuals named by the Board
- c) The Vice-President, Academic as non-voting Chairperson

7. Within sixty (60) days of its first meeting, the Redundancy Committee shall make its final report to the Board (with a copy to the Association). The Board shall make no new academic or administrative appointments nor shall the Board order the reduction or redistribution of the actual number of full-time Members of the bargaining unit, until the Redundancy Committee has made its final report or until the time limit of sixty (60) days stated in this paragraph has expired, whichever comes first.

8. It shall be the responsibility of the Redundancy Committee in consultation with the Vice-President, Academic, the Dean/Director of the Library and the Faculty/Library Personnel Committee to recommend who, among the Members of the unit(s) under consideration, shall be affected by redundancy.

9. Keeping in mind that the continuing academic function assigned to the unit is of the highest priority, the Redundancy Committee shall consider the

following steps in the following order:

- a) Non-renewal of limited term appointments within the unit.
- b) Non-renewal of two-year probationary contracts within the unit.
- c) Non-renewal of contracts of Members within the unit on three-year probationary contracts.
- d) Removal of a tenured Member from the unit.

10. If the Redundancy Committee decides that Members with tenure or on a three-year probationary contract will be affected by Redundancy pursuant to paragraph 9 hereof, it shall include, in its final recommendation to the Board, a list of administrative and academic areas to which the Members could be transferred, with or without a year's retraining, considering their academic and professional qualifications.

11. If the Board approves a resolution to act on the Redundancy Committee's recommendation that a Member be declared redundant, then the Board shall send the Member a written notice of its resolution. This notice shall also contain an offer to the tenured Member of the following options:

- a) Voluntary early retirement if the Member is age 55 or more.
- b) Transfer in whole or in part to another academic unit for which the Member is academically qualified or could become qualified with a year's retraining if the transfer can be effected by one of the following means:
 - (i) Filling a vacancy
 - (ii) Non-renewal of a limited term contract
 - (iii) Non-renewal of a two-year probationary contract
 - (iv) Non-renewal of contract of Members on three-year probationary contract

In the unit to which the tenured Member is to be transferred.

- c) Transfer to an appropriate administrative vacancy in the University.
- d) Termination of employment with severance pay.
- e) Any other alternative that may be implemented in the future with the mutual consent of the two (2) parties.

Any of the above options shall be implemented in accordance with the terms of this Article. All proposed transfers to another academic unit must have the approval of the Vice-President, Academic. If the offer is to transfer one component of the Member's workload (this component restricted to either teaching or research) to another academic area, such offer shall

include a statement of the duties of that Member and a method of weighing the Member's evaluation for merit based on these special arrangements.

If the Board cannot offer at least one of (b), or (c), it shall offer to keep the Members in their present position until such time as it can offer them one of (b), or (c) unless Paragraph 16 applies.

12. Notwithstanding Article 2.21 - Appointment and Renewal, Members with a two-year, initial probationary appointment can be refused the second probationary appointment for reasons of redundancy in accordance with Paragraph 9 or Paragraph 11 of this Article. In such instances, the Members shall receive notice by 15 December of the academic year in which their contract comes up for renewal. A written notice of non-renewal shall be sent to the Members in which redundancy shall be clearly stated as the reason for non-renewal.

13. Notwithstanding Articles 2.21 and 2.22, Members who are on a three (3) year probationary appointment can be refused a renewal of their appointment and/or tenure for reasons of redundancy in accordance with Paragraph 9 or Paragraph 11 of this Article. In such instances, the Members shall receive notice by 15 December of the academic year in which their contract comes up for renewal. A written notice shall be sent to the Members in which redundancy shall be clearly stated as the reason for non-renewal and/or refusal to grant tenure. They shall be given severance pay in accordance with Paragraph 18 hereof as well as recall rights in accordance with Paragraph 18.

14. Tenured Members who accept a transfer to another academic area in whole or in part, shall retain their rank as well as all pre-existing employment rights. If such a transfer requires retraining, the Members shall be granted leave to a maximum of one (1) year at 100% salary plus benefits. Any tuition fees connected with the retraining shall be paid by the University.

15. Tenured Members who accept a transfer to an administrative position in accordance with Paragraph 11c) hereof cease to be Members of the bargaining unit on the date that the transfer becomes effective. Members transferred to an administrative position shall not be dismissed for a period of five (5) years for reasons other than just cause and shall retain for this period the full rights of Members of this Association, to grieve dismissal for cause. Such Members shall not have their pay decreased as a result of the transfer but they shall receive only the basic percentage increase to salary scale and no increments until the normal salary level for their administrative position has reached their own. For a period of five (5) years from the date of their appointment to the administrative position, the Members shall have first right of refusal of any academic vacancy within Laurentian for which they are judged by the Vice-President, Academic to be academically competent.

16. Where a redundancy results from the termination of a program per Paragraph 3a) and when all transfer provisions have been exhausted, the

Board may lay-off a tenured Member provided that those Members who are at least forty-five (45) years of age, have tenure and in respect of whom the sum of years of seniority from the effective date of tenure plus age equals fifty-five (55) shall be exempt from lay-off.

Costs associated with any arbitration arising out of lay-off shall be distributed in accordance with Article 8.3. The usual burden of proof shall apply.

17. Groups and/or individuals who are selected for redundancy may grieve their selection (under Article 8.3) on the grounds of bias or procedural error, as well as on the grounds that the criteria for selection have been applied in a manner which is discriminatory or is in bad faith. This right to grieve includes the right to challenge the validity of the redundancy but not the right to challenge the Board's authority to initiate Redundancy procedures.

Tenured Members who wish to remain in the employ of the University and who have been offered transfer but do not wish to accept the offer must grieve this transfer within thirty (30) days of receipt of the offer. If the Arbitration Board concludes that the Members' refusal is well founded, the Members retain their original positions. If the Arbitration Board concludes that the Members' refusal are not well founded or that another suitable transfer is available, then the Members must accept the transfer within thirty (30) days of receiving a copy of the decision or else the Members' employment shall be terminated. The effective date of notice shall be the date that the arbitrator's report is received by the Members. The Members shall retain recall and notice of termination rights but shall lose their rights to all severance payments and benefits.

18. All Members who are on tenured or three-year probationary contracts, and whose appointments are terminated pursuant to this Article shall have rights as set out hereafter:

- a) (i) Twelve (12) months' notice in writing or any equivalent combination of notice plus salary followed by
- (ii) Six (6) months' salary plus one (1) month's salary for each year as a full-time employee provided that no Member on a three-year probationary contract receives less than nine (9) months' salary and no tenured Member receives less than eighteen (18) months' salary.

All payments under this paragraph shall be based on the Members' total regular salary including the University's contribution to pension and other benefit plans for their final full academic year of service at the University. In no case shall the number of months' salary paid under this paragraph exceed the time remaining until the normal retirement age of the Member.

- b) First right of refusal of all academic vacancies within Laurentian University, for which they have academic competence as judged by the

Vice-President, Academic in consultation with the unit to which the individual is to be appointed for a period of three (3) years for a Member on a three (3) year probationary contract and five (5) years for a tenured Member from the effective date of termination. Individuals who accept such positions shall return to the University at the rank they held when their appointments were terminated, with full recognition for years of service at Laurentian. Disputes arising out of these recall procedures are referable to the grievance and arbitration process set out in this Agreement.

Individuals who are recalled pursuant to this Article shall have up to thirty (30) days to accept such recall offer, and shall terminate their alternative employment and take up the offered post, as soon as they are contractually able to do so but in no instance later than six (6) months after accepting the recall offer.

c) Reasonable efforts by the Board to assist a laid off Member in obtaining suitable alternative employment including the use of professional assistance as well as access to University resources.

d) Reasonable access to library, laboratory and computer facilities subject to the agreement of the Dean of the Faculty or Director of the Library concerned until suitable alternative employment is secured or for three (3) years in the case of a Member on a 3-year probationary contract or for five (5) years in the case of a tenured Member if suitable alternative employment has not been secured.

e) Eligibility for themselves and their dependants for exemption from tuition and Physical Education fees until suitable alternative employment is secured or for three (3) years in the case of a Member on a 3-year probationary contract or for five (5) years in the case of a tenured Member if suitable alternative employment has not been secured.

19. Nothing in this Article shall limit the total amount of severance benefits that a tenured Member might privately negotiate with the Board.

20. All grievances submitted under the terms of this Article shall go directly to arbitration in accordance with Article 8.3 - Grievance and Arbitration. Unless stated otherwise in this Article, within fifteen (15) days of receipt of the written notice containing the decision which the Members wish to grieve, the Members must give notice in writing to the Board of their intention to submit that decision to Arbitration.

ARTICLE 7.2 - FINANCIAL EXIGENCY

1. The Board of Governors and the Association agree that the first duty of the University is to ensure that its academic priorities remain paramount, particularly with regard to the quality of instruction, library service and research, and the preservation of academic freedom.

2. For the purposes of this Article, Financial Exigency shall be defined as substantial and recurring deficits, which threaten the long-term solvency of the University as a whole.
3. Reductions in academic staff for reasons of financial exigency shall occur only in extraordinary circumstances, and only then after efforts to alleviate the financial crisis by economies in all other segments of the budget have been undertaken and after all reasonable means of improving the University's revenues have been exhausted.
4. Members may be laid off in accordance with this Article only in the event that a state of financial exigency has been both declared and confirmed pursuant to the procedures contained in this Article.
5. In the event that the Board of Governors considers that a financial exigency exists, within the meaning of Paragraph 2, it may give notice of such a belief. As of the date of such notice the procedures specified in this Article shall apply, and no new appointments may be made to either the academic or administrative staff complement.
6. Within two (2) days of giving notice of its belief that a financial exigency exists, the Board of Governors shall forward to the Faculty Association all financial documentation relevant to the alleged state of financial exigency.
7. Within fifteen (15) days of the notice specified in Paragraph 5 above, the parties shall establish a Financial Commission which will consider the alleged financial exigency and either (a) confirm it (under whatever conditions it chooses to impose) or (b) reject it.
8. The Financial Commission shall be chosen, as is an Arbitration Board per Article 8.3. It is agreed that in this instance no Member of the Financial Commission shall be a government official, and the Minister of Labour, if requested to appoint a Chairperson, shall choose a person who is not in the employ of a government. Decisions of the Financial Commission under this Article shall be final and binding on all parties. In this regard the Financial Commission shall be deemed to be an Arbitration Board.
9. The onus of proof shall be on the Board to establish to the satisfaction of the Financial Commission that a state of financial exigency exists within the meaning of this Article.
10. Within seven (7) days of the choice of a Chairperson, the Financial Commission shall meet and invite and consider submissions on the University's financial condition. *Inter alia* it shall consider:
 - a) Whether the University's financial position (as evidenced from the total budget and not just the academic or salary components thereof) constitutes a *bona fide* budgetary crisis such that deficits projected by generally accepted accounting principles are expected to continue for more than two (2) fiscal years.

- b) Whether in view of the primacy of academic goals at the University the reduction of academic staff is a reasonable type of cost saving.
- c) Whether all reasonable means of achieving cost-saving in other areas of the University budget have been explored and exhausted.
- d) Whether all reasonable means of improving the University's revenue position have been explored and exhausted.
- e) Whether every effort has been made to secure further assistance from the provincial government.
- f) Whether enrolment projections are consistent with a proposed reduction in the academic staff complement.
- g) Whether all means of reducing the academic staff complement including voluntary early retirement, voluntary resignation, voluntary reduced workload, voluntary redeployment and leaves, etc. have been exhausted. and
- h) Whatever other matters it considers relevant.

11. The Financial Commission will normally be expected to hand down its Report and deliver a copy to the Board and to the Association within sixty (60) days of its first meeting. If the Commission finds that a state of financial exigency does not exist, no reductions of academic staff for reasons of financial exigency may take place. If the Commission finds that a financial exigency does exist, its Report shall specify the amount of reduction required, if any, in the budgetary allocation to salary and benefits for Members of the bargaining unit. Any reduction in the budgetary allocation for academic salaries and benefits may be made conditional upon the further exploration of alternative cost-saving measures by the University, and the Commission shall remain seized of its jurisdiction in this matter pending the satisfactory exhaustion of all such specified alternatives. Within five (5) days of receipt of the Report of the Financial Commission, the parties shall meet and confer with respect to its implications.

12. Pursuant to the ruling of the Financial Commission, the Board of Governors may reduce the budgetary allocation for salaries and benefits of Members of the bargaining unit but such reduction shall not exceed the amount of the reduction specified by the Commission. The decision of the Board of Governors shall be taken and written notice thereof sent to the Financial Commission within two (2) weeks of receipt of the notice mentioned in Paragraph 11 above.

13. Within twenty (20) days the Financial Commission shall apportion among the Faculties, Library and similar units, the reduction in the budgetary allocation for salaries and benefits of the Members of the bargaining unit. Whenever possible, such reductions will be divided in a

proportionate amount among the Faculties and Library within the University unless there is a clear and substantial reason for doing otherwise.

14. Within thirty (30) days, the Faculties/Library through their respective Faculty/Library Councils shall apportion the budgetary reduction among the academic units within the Faculty/Library and determine which among its Members are to be laid off. Whenever possible such reductions will be divided among the units within a Faculty/Library in a proportionate amount unless there is a clear and substantial reason for doing otherwise.

15. The principal criteria in the termination/lay-off of Members within a department, school or similar unit shall be:

- a) The possession of qualifications suitable for the continuing function of the Faculty, School, Department or Library.
- b) Quality of performance in teaching and research or scholarly activity where applicable.
- c) The possession of qualifications suitable for transfer with or without retraining to another academic or administrative position within the University.
- d) Contributions to the wider community.

16. Within a unit, a tenured Member shall not be terminated in preference to a non-tenured Member. For tenured Members, the more senior Member, in terms of service determined from the date at which tenure at the University became effective shall be retained unless, after applying the above criteria, there is a clear and substantial reason for doing otherwise.

17. Those Members who are at least forty (40) years of age, have tenure and in respect of whom the sum of years of seniority from the effective date of tenure plus age equals at least fifty-five (55) shall be exempt from lay-off until all other academic staff within the Faculty/Library and not included in this category have been laid off.

18. Should the Faculty/Library Council fail to determine within thirty (30) days who among its Members is to be laid off, it shall be the responsibility of the Deans/Director of the Library to apportion the budgetary reduction within their faculty/library. Should the Deans/Director of the Library fail to make such a decision within seven (7) days, the Financial Commission shall make the apportionment of the budgetary reduction.

19. Members who are selected for lay-off under this Article shall be provided with written notice of the reasons for their selection. Lay-offs under this Article shall not be treated or recorded as dismissals for cause.

20. After the selection of the Members who are to be laid off, but prior to the implementation of such lay-offs, the Board shall make every reasonable effort to secure positions elsewhere in the University, including

administrative positions, for those Members who are to be laid-off. Members who accept alternative academic employment retain all pre-existing employment rights, including credit for sabbaticals, salaries and pensions. Members who accept alternative employment shall be given the opportunity to retrain for a period of up to one (1) year for their new duties. The employer shall pay any related tuition fees and full salary to the Member during this retraining period.

21. Groups and/or individuals who are selected for lay-off by a Faculty/Library Council or Dean/Director of the Library, may grieve their selection under the Grievance and Arbitration Article 8.3 on the ground of bias or procedural error, as well as on the grounds that the criteria for lay-off have been applied in a manner that is discriminatory or is in bad faith. The right to grieve does not include the right to challenge the validity of the financial exigency.

22. All tenured and probationary Members whose appointments are terminated pursuant to this Article shall have rights as set out hereafter:

- a) (i) The University shall be obliged to offer twelve (12) months' notice or twelve (12) months' salary in lieu of notice followed by;
- (ii) One (1) month's salary for each year as a full-time employee provided that no tenured Member shall receive less than twelve- (12) month's salary.

All payments under this paragraph shall be based on the Members' total salary including the University's contribution to pension and other benefit plans for their final full academic year of service at the University. In no case shall the number of months' salary paid under this paragraph exceed the time remaining until the normal retirement age of the Member.

b) First right of refusal of all academic vacancies within Laurentian University, for which they have academic competence as judged by the Vice-President, Academic in consultation with the unit to which the individual is to be appointed for a period of three (3) years from the effective date of termination. Individuals who accept such positions shall return to the University at the rank they held when they were laid off, with full recognition for years of service at Laurentian. Disputes arising out of these recall procedures are referable to the Grievance and Arbitration process set out in this Agreement.

Individuals who are recalled pursuant to this Article shall have up to thirty (30) days to accept such recall offer, and shall terminate their alternative employment and take up the offered post, as soon as they are contractually able to do so but in no instance later than six (6) months after accepting the recall offer.

c) Reasonable efforts by the Board to assist a laid off Member in

obtaining alternative employment including the use of professional assistance as well as access to University resources.

d) Reasonable access to Library, laboratory and computer facilities subject to the agreement of the Dean of the Faculty/Director of the Library concerned until suitable alternative employment is secured or for three (3) years whichever is less.

e) Eligibility for themselves and their dependants for exemption from tuition and Physical Education fees until suitable alternative employment is secured or for three (3) years, whichever is less.

23. Notice of academic vacancies shall be deemed to be good and sufficient if they are sent by the Board of Governors to the Member's last known address with a copy to the Association. Any Member who fails to reply within thirty (30) days or who refuses a permanent position offered under this Article shall lose all rights of recall.

24. A Member accepting a permanent position at Laurentian University will no longer receive severance pay.

25. Any vacancy that occurs and that cannot be filled through the recall procedures in this Article will be filled in accordance with the normal hiring practices.

26. Tenured Members, whose appointments are terminated while they are on leave as in Article 3.2, shall have the same rights as other tenured Members in accordance with the terms of this Article.

27. Laid off Members who are recalled shall repay any portion of the allowance specified in Paragraph 22 which exceeds their entitlement had they continued to occupy their normal position.

28. The cost of the Financial Commission established under this Article shall be borne by the Board.

ARTICLE 8.1 - VALIDITY OF THE AGREEMENT

In the event of any of the provisions of this Agreement or any practices established hereby being contrary to the provisions of any applicable law hereinafter enacted, this Agreement shall not be deemed to be abrogated, but shall be amended so as to conform with the regulations of any such law.

ARTICLE 8.2 - DURATION AND CONTINUANCE OF THE AGREEMENT

1. This Agreement shall come into effect upon ratification by the parties and shall continue in effect to 30 June 2005 and shall continue from year to year thereafter unless either party gives the other party notice in writing, not more than one hundred and fifty (150) days but not less than one hundred and twenty (120) days prior to the thirtieth (30th) of June in 2005 or in any

year following 30 June 2005, that it desires to amend or terminate this Agreement.

2. If notice is given as provided in paragraph 1 above, the two parties to this Agreement shall meet within ten (10) days.

3. During any period of negotiations, this Agreement shall remain in force. If a new Agreement has not been ratified by both parties by 30 June of the year in which notice has been given as provided for in paragraph 1 above, then all the provisions of this Collective Agreement shall continue in force (but these provisions shall not constitute a Collective Agreement) until either:

a) A new Collective Agreement has been ratified by both parties.

or

b) Following conciliation, a strike or lockout is declared in accordance with the Ontario Labour Relations Act.

4. At least ten (10) days before the termination of this Agreement, a separate memorandum which shall continue in force thereafter, shall be signed by the parties to the effect that in the event of a strike or lockout,

a) Members whose ongoing research requires access to University facilities in order to prevent irreparable damage to research facilities (such as loss of live and/or decomposable materials) shall be allowed access to the facilities usually associated with such research. Such access will be limited to maintaining the facilities and shall not be used to continue the research. Such Members shall give notice in writing of their access requirements to the President of LUFA and to their Deans/Director of the Library. Such notice will normally be given at least ten (10) days before the date of termination of the Agreement.

b) The Association will assume the costs of maintaining Members' eligibility in the University's hospital, extended health and dental care plans.

ARTICLE 8.3 - GRIEVANCE AND ARBITRATION

1. For the purposes of this Article:

a) A "grievance" shall mean any difference arising from the interpretation, application, administration or alleged violation of the Agreement (including any question as to whether a matter is arbitrable).

b) A "grievor" or "party to a grievance" may include:

(i) An individual Member or group of Members with or without the formal support of the Association against the Board;

(ii) The Association on behalf of an individual Member or group of Members, or on its own behalf against the Board;

(iii) The Board against the Association, an individual Member or a group of Members except as otherwise prohibited in this Agreement.

c) "Working days" shall mean Monday through Friday, excluding Recognised and other Holidays identified in Article 3.0 including the customary Christmas recess, as well as the months of July and August.

2. The Association and the Board agree to make every effort to settle grievances promptly by informal and amicable means.

3. Notwithstanding paragraph 2 above, a grievor shall have recourse to the grievance procedures set out below if such grievor is convinced that no settlement can be reached by informal means, unless otherwise specified in this Agreement.

4. There shall be no discrimination, harassment or coercion of any kind practised against any persons involved in these procedures.

5. All communications required under these procedures shall be in writing and shall be delivered by registered mail or with written proof of receipt.

6. All parties to a grievance shall be bound by and shall promptly implement all decisions arrived at under the procedures described in this Article.

7. Applicability of Grievance and Arbitration Procedures

a) The following decisions will not be subject to grievance:

- (i) Non-renewal of term appointments per Article 2.21
- (ii) The award of a merit increment per Article 4.20.

b) The following decisions will be subject to grievance only in the case of allegations of violations of academic freedom, significant procedural irregularities or discrimination:

(i) The non-renewal of a probationary contract when the Vice-President, Academic confirms a negative recommendation of an FPC/FFPC/LPC.

(ii) The denial of a first application for promotion to a particular rank when the Vice-President, Academic confirms a negative recommendation of an FPC/FFPC/LPC (and the denial of a second application for promotion where the two applications are made in consecutive years).

(iii) Any tenure decision which does not result in the termination

of employment.

- c) Grievances concerning Renewal as per Article 2.21 - Appointment and Renewal, concerning tenure as per Article 2.22 - Tenure Evaluation Procedures, and concerning promotion as per Article 2.23 - Promotion Procedures, shall proceed directly to arbitration as set forth in this Article.

8. Grievance Procedure:

a) Step No. 1:

The grievor shall present a notice of grievance in writing to the Dean/Director of the Library in the case of a Member or to the President of the Association in the case of the Board within thirty (30) working days of the date upon which the grievor had notice of the event or decision giving rise to the grievance. The notice of grievance shall include:

- (i) The article of the Agreement claimed to have been relied upon or claimed to have been violated, misinterpreted or improperly applied;
- (ii) The facts upon which the grievance is based;
- (iii) The remedy sought;
- (iv) The result of the informal stage; and
- (v) In the event of a grievance concerning renewal, tenure or promotion, as per Article 8.3 (7) c, the name of the grievor's appointee to the Arbitration Panel.

The Dean/Director of the Library concerned or the Association President shall answer the grievance within five (5) working days. If the grievance is not satisfactorily settled at Step No. 1 or if the answer of the Dean/Director of the Library or the Association President is not given within five (5) working days, the grievor may elect to proceed to Step No. 2

b) Step No. 2:

The grievors shall give written notice of their grievance to the Joint Grievance Committee within five (5) working days of the date on which the Dean's/Director of the Library's or Association President's response was due under Step No. 1. The written notice to the Joint Grievance Committee shall outline the grievance together with any answer received from the Dean/Director of the Library or Association President and shall include the notice of grievance.

The Joint Grievance Committee shall meet to hear such grievances

within fifteen (15) working days of receipt of notice. At this stage the Association and/or the University may include a professional or technical advisor. The Joint Grievance Committee shall communicate its decision in writing to the parties within ten (10) working days of its last meeting on the issue. If the decision of the JGC is not given within the specified ten- (10) working day limit, the grievor may elect to proceed to Step No. 3.

c) Step No. 3:

Notice of intent to submit the grievance to arbitration shall be given:

- (i) Within fifteen working days of the date of the notice of the decision of the JGC;
- or
- (ii) At the expiration of the time limit for the JGC to produce a report;
- or
- (iii) With the notice of grievance concerning renewal, tenure, or promotion.

With any notice of intent to submit the grievance to arbitration, the grievor shall advise the other party to the grievance of the name and address of their appointee to the arbitration board.

Within five (5) working days of receipt of the above notice, the other party shall respond by naming its nominee to the arbitration board.

d) Omission of Steps:

By mutual agreement of the parties, one or more steps of this procedure may be omitted.

9. Joint Grievance Committee

- a) The JGC shall be composed of three voting Members. One Member (and an alternate) shall be nominated by the Board, and one Member (and an alternate) shall be nominated by the Association. The nominees of the Board and the Association (and their alternates) shall serve for a one- (1) year term.
- b) The third Member of the Joint Grievance Committee who shall act as Chairperson shall be chosen from a list prepared for this purpose.
- c) Within thirty (30) days of ratifying this Collective Agreement the Association and the Board shall establish a list consisting of at least five (5) persons who have been mutually agreed upon, after having verified that such persons would be willing to act as Chairperson of the JGC.
- d) The procedure for choosing a Chairperson shall be by sequential order from the list provided in (c) above. If the person next to serve is not available within the time limits, then the next person shall be

chosen and so on.

- e) Each Chairperson shall be chosen to hear a single grievance with the exception that should more than one grievance be scheduled for a single sitting, the person chosen as above shall act as a Chairperson for all grievances scheduled for that sitting.
- f) For each sitting of the JGC the chairperson shall be paid an honorarium of five hundred (\$500) dollars of which one half shall be paid by the Board and one half by the Association.
- g) The JGC shall establish its own procedures and may invite any person to appear before it and may require the production of any document from a Member's Personnel file.
- h) Members of the JGC shall have a single vote.
- i) Copies of any documentary evidence filed before the JGC will be supplied to the other party to the grievance.
- j) The JGC shall confine itself to the grievance submitted to it and shall have no authority to determine any other issue or issues not submitted to it.
- k) The JGC shall not have jurisdiction to amend or add to any of the provisions of this agreement, nor to give any decision inconsistent with the terms of this agreement.
- l) If a grievance presented to it arises strictly out of a claim of non-compliance with procedures set out in this Agreement, the JGC shall direct that the matter be reconsidered in accordance with those procedures.
- m) The JGC shall render its decision in the form of a written resolution and shall include reasons for its decision.
- n) The JGC shall not be construed as an Arbitration Board and any grievance may be taken to arbitration by either party unless otherwise specified in this agreement.

10. The Arbitration Board:

- a) The Arbitration Board shall consist of three (3) Members, the two (2) Members named by the parties to the grievance in accordance with the procedures at Step No. 3 of this Article and a Chairperson who shall be chosen by mutual agreement between the two parties. In the event that the two parties to the grievance are unable to agree upon a Chairperson within five (5) working days of the appointment of the other two nominees to the Arbitration Board, the Chairperson shall be the Minister of Labour of the Province of Ontario, or the Chairperson's nominee.

- b) No persons may be appointed to an Arbitration Board in relation to any grievance which would involve a conflict of interest because of their personal involvement in the matter that gives rise to the grievance.
- c) The Chairperson shall convene the Members of the Arbitration Board within twenty (20) working days after being constituted.
- d) The Arbitration Board shall confine itself to the grievance submitted for arbitration and shall have no authority to determine any other issue or issues.
- e) The arbitrators shall not have any power to alter any of the provisions of this Agreement, nor to substitute any new provisions for any existing provisions, nor to give any decision inconsistent with the terms and provisions of this Agreement.
- f) Within thirty (30) working days of its last hearing the Arbitration Board shall render its decision. A decision of the majority shall be the decision of the Arbitration Board and where there is no majority decision, the decision of the Chairperson shall be the decision of the Arbitration Board.
- g) Each party to the grievance shall bear the costs of its nominee to the Arbitration Board and the costs of the Chairperson shall be shared equally, provided that the arbitrators may, in their decision, make any other disposition as to costs.
- h) In cases involving termination of a Member's appointment where a violation by the University of Article 1.21 - Academic Freedom or Article 1.22 - No Discrimination has been established, the costs of the arbitration, including the costs of the arbitrators, shall normally be borne by the University.
- i) A grievance initiated at the Arbitration stage pursuant to paragraph 7 of Article 8.3 shall be made in the same form as set out in paragraph 8 above and must be presented within thirty (30) working days of the date upon which the grievor had notice of the event or decision giving rise to the grievance.

11. Notwithstanding the provisions of Paragraph 10 above, the parties to the grievance may agree to submit any particular grievance to a single arbitrator who shall alone constitute the Arbitration Board.

12. No grievance initiated or in process prior to the date of ratification of this Agreement shall fall under the terms of this Agreement except by explicit codicil signed by the parties to this Agreement.

13. Any of the time limits prescribed by this Article may be varied by agreement between the parties to the grievance.

14. It is understood and agreed that where an individual Member proceeds with a grievance without the formal support of the Association, any settlement of such a grievance shall not constitute a precedent to be used against the Association or the Board in any future grievance.

ARTICLE 8.4 - STRIKES AND LOCKOUTS

1. The University and the Association hereby agree that there shall not be, during the currency of this Agreement, any lockout by the University or any strike by Members of the Association.

2. A Member shall not be dismissed per Article 2.41 or disciplined per Article 2.40 for refusing to cross a picket line on campus which has been established in full compliance with existing laws. The Board may however, dock such a Member's salary by 1/365 for each day lost.

ONTARIO LABOUR RELATIONS BOARD

FILE NO. 3328-93-R

BETWEEN:

Laurentian University Faculty Association "Applicant"
v.
Laurentian University of Sudbury "Responding Party"

BEFORE:

Kevin Whitaker, Vice-Chair, and
Board Members J.A. Rundle and P.V. Grasso.

DECISION OF THE BOARD:

October 31, 1995

1. This is an application for combination of bargaining units pursuant to section 7(1) of the Labour Relations Act to which the responding party has consented.
2. The applicant seeks the combination of two bargaining units consisting of employees of the responding party all of whom are represented by the applicant trade union.
3. Having regard to the agreement of the parties dated October 26, 1995, and the provisions of section 7(1) of the Act, the combination of the units requested is granted. The applicant's bargaining rights now pertain to the following combined bargaining unit:

All members of faculty, including professional librarians, employed by Laurentian University of Sudbury in the Regional Municipality of Sudbury, save and except administrators at or above the rank of director, academic staff, at or above the rank of dean, registrar, special assistant to the president, director of academic staff relations, translators, director of the library, director of graduate studies and research, members of the board of governors, and athletic coaches required as part of their duties to teach degree credit activity courses.

For the purposes of clarity the parties agree that:

- 1) The bargaining unit does not include full-time faculty members employed by Laurentian University for a period of not more than one year while on leave from another university, persons employed through the centre for continuing education to conduct instruction at off-campus centres located outside the Regional Municipality of Sudbury or through distance education delivery modes, persons employed to teach courses intended primarily for students who are not registered in a degree credit programme, persons

assigned responsibility for teaching portions of courses coordinated by regular faculty members, such as teaching assistants, field consultants in social work, clinical teachers in nursing, laboratory technicians, clinical instructors, or outdoor school instructors.

2) The designation "members of the faculty including librarians" is deemed to include those aforementioned employees of Laurentian University who from time to time may be required to teach outside the City of Sudbury, unless otherwise excluded.

4. The effective date of this combination of the said bargaining units should be the earlier of (1) the date upon which the parties become bound by a collective agreement covering the current part-time bargaining unit, or (2) the date upon which notice to bargain is given by either party with respect to the renewal of the current collective agreement between the parties covering the full-time bargaining unit.

5. The expiry date of any first collective agreement covering the current part-time bargaining unit shall be the expiry date of the current collective agreement between the parties in respect of the current full-time bargaining unit, notwithstanding section 41(8) of the Labour Relations Act, unless the parties agree otherwise in writing.

"KEVIN WHITAKER"
for the Board

**OLRB CERTIFICATE AND DECISION
THE LABOUR RELATIONS ACT
BEFORE THE ONTARIO LABOUR RELATIONS BOARD**

BETWEEN:

Laurentian University Faculty Association, "Applicant"

-and-

Laurentian University of Sudbury, "Respondent"

CERTIFICATE :

Upon the application of the applicant and in accordance with the provisions of The Labour Relations Act, THIS BOARD DOTH CERTIFY Laurentian University Faculty Association as the bargaining agent of all full time members of faculty including full-time professional librarians employed by Laurentian University of Sudbury, Ontario, to whom at least fifty per cent of the salary at the University is paid by the University, save and except President, Vice-President, Academic, Special Assistant to the President, Deans, Director of the School of Graduate Studies, Directeur du Conseil de l'enseignement en français, Director of the Library, part-time members of faculty, technicians, faculty members employed by Laurentian University for a period of not more than one year while on leave from another university or other employer and members of the Board of Governors.

This certificate is to be read subject to the terms of the Board's decision(s) in this matter and, accordingly, by the bargaining unit described herein is to be read subject to any qualifications referred to in the said decision(s) of the Board.

DATED at Toronto this 9th day of July, 1979.

ONTARIO LABOUR RELATIONS BOARD

D.K. AYNSLEY

Registrar

ONTARIO LABOUR RELATIONS BOARD

FILE NO. 1463-78-R

BETWEEN:

Laurentian University Faculty Association, (Applicant)
-and-
Laurentian University of Sudbury, (Respondent)
-and-
Group of Employees, (Objectors)

BEFORE:

Arthur Haladner, Vice-Chairperson and
Board Members J.D. Bell and W.F. Rutherford.

APPEARANCE:

C.M. Mitchell, T. Bartley and R. Kari for the applicant;
K.R. Valin for the respondent;
Jean Eugene Havel for the objectors.

DECISION OF THE BOARD:

1. On November 27, 1978 the applicant, Laurentian University Faculty Association, applied for certification for a unit of employees of Laurentian University. This hearing was called for the purpose of considering an objection to the conduct of the representation vote taken on April 4, 1979 and for the purpose of hearing representations from the parties on the issue of whether certain persons classified as "director" should be included or excluded from the bargaining unit.
2. At the hearing the Board indicated that while it regretted the fact that the ballot in this matter had not been printed in both French and English, it was not, in the circumstances, prepared to direct a new vote having regard to the delay and prejudice both to the applicant and to the future course of representation proceedings that such a direction would create. In so ruling, the Board pointed out that the desire for a French and English ballot had not been communicated until after the vote had been conducted and the results known. This, despite there having been, prior to the vote, ample opportunity to express that desire. The Board also expressed its opinion that the absence of a French and English ballot did not affect the outcome of the representation vote. In that vote the employees voted 107 to 81 in favour of the applicant.
3. Dealing now with the issue of Director status - the report of the Labour Relations Officer indicates that for the most part recommendations for hiring are made by the school's academic council or by the faculty as a group, and submitted to authorities superior to the director where the decision is made.

Apart from Dean Hildrup, who made one decision and one effective recommendation - after conducting interviews in South Africa when the senate appointments and promotions committee was not available - the involvement of directors in the hiring process is minimal.

4. Directors' role in evaluation of faculty members is primarily one of co-ordination, i.e., calling for recommendations from other faculty members, the school council or the appointments and promotions committee, and submitting them to higher authorities.

5. Directors submit recommendations on promotions and tenure; however, there was no evidence that their recommendations, if contrary, outweigh those of the faculty as a group. Moreover, these recommendations are for the most part made with the participation of faculty members.

6. Directors' recommendations on salary are limited to whether an increase should be granted. They have no discretion to recommend specific amounts.

7. Directors' role in discipline of faculty members is minimal, being limited to the occasional reprimand - in one of the two examples given after consultation with faculty and the Dean/Director of the Library. Directors have no authority to discharge or suspend.

8. One director made a sabbatical recommendation which, as far as she knew, was accepted. However, the others had no independent involvement with the process, although one thought he could make a negative recommendation.

9. Directors' role in budget formulation is primarily consultative; in preparing budget recommendations, they consult with the school budget committee or their colleagues, and decisions are made at the Senate level. Directors have no authority to re-allocate funds having to do with salaries.

10. Directors assign work to the secretaries on the support staff and evaluate their performance. However, the time spent in the performance of these functions is minimal, and other faculty members are involved.

11. In Carleton University, (1975) OLRB Rep. June 500, the Board pointed out that there are significant differences between the university model, where decision-making is shared by a peer group, and the industrial model of hierarchic authority, where ultimate power resides above - typically, with the plant manager - and filters down through a management chain to the primary level of supervision - the unit supervisor, or foreman. It stated:

While the Board of Governors is, in a general overall sense, responsible for the business operations of the institution, and the senate for its academic policies, the power of detailed decision-making is diffuse and extends into the institution's basic organizational unit, the department. Moreover, management-type-decisions are made not only by the Board of Governors,

the senate, the president, the senior administrative staff, the deans, but by faculty members as well and in more recent times, students, as members of various committees or boards...Important determinations of general application are made at the higher levels and in this sense, a parallel with the industrial model remains. What is novel is that many important decisions, narrower in scope and having to do with the academic and personnel matters applicable to limited groupings, do originate at the department level, subject only to endorsement at the higher levels.

12. In determining that department chairmen were employees for purposes of the Act and included in the bargaining unit, the Board in Carleton concluded:

In those areas of greatest importance, hiring, tenure, promotion, dismissal - the dominant role is played by the department collectively ... in the more routine areas, while some potential for the exercise of independent discretion exists, it is for the most part narrowly circumscribed. Moreover, in a substantive sense, the decisions in these areas are of limited importance ... In our view, the infrequent exercise of authority over the office staff poses no danger of conflict of interest within the unit. It is important to emphasize that the overwhelming proportion of the chairperson's duties have nothing whatever to do with the supervision or control of the department's small clerical staff...

See also University of Windsor, (1977) OLRB REP. May, 300, where the Board, following Carleton, determined that department heads did not exercise managerial functions for purposes of section 1(3) (b) of the Act and were, therefore, appropriate members of the academic bargaining unit.

13. The Board is of the opinion that the Directors, whose status is in dispute, play a similar role in the decision-making process at Laurentian to that performed by department chairmen in Carleton and department heads in Windsor. While there are some differences in certain isolated areas, the Board is satisfied that their duties and responsibilities are not in any fundamental respect different. The evidence is that they play a part in a process of shared decision-making and do not, in the areas of greatest importance, i.e., hiring, tenure, promotion, and dismissal, play a dominant role which would entail the risk of a conflict of interest. Our conclusion, after considering the evidence, is that the Directors of the School of Engineering, Translators and Interpreters, Nursing, Social Work, Education and Physical Education do not exercise managerial functions within the meaning of section 1(3) (b) of The Labour Relations Act and, accordingly, that they are included in the bargaining unit. The Director of the School of Graduate Studies and Director, Conseil de l'enseignement en français are excluded from the bargaining unit by agreement of the parties.

14. Having regard to the foregoing, the Board finds that

All full-time members of faculty including full-time professional librarians employed by Laurentian University of Sudbury at Sudbury, Ontario, to whom at least fifty per cent of the salary at the University is paid

by the University, save and except President, Vice-President, Academic, Deans, Director of the School of Graduate Studies, Directeur du Conseil de l'enseignement en français, Director of the Library, part-time members of faculty, technicians, faculty members employed by Laurentian University for a period of not more than one year while on leave from another university or other employer and members of the Board of Governors

constitute a unit of employees of the respondent appropriate for collective bargaining.

CLARITY NOTES

(1) The designation "all full-time faculty including full-time professional librarians employed by Laurentian University of Sudbury at Sudbury" is deemed to include those aforementioned employees on the payroll of Laurentian University who from time to time may be requested to teach at various locations outside the City of Sudbury.

(2) "All full-time faculty (professional librarians) shall mean such persons holding an academic rank at present described as instructor, lecturer, assistant professor, associate professor or full professor (general librarian, assistant librarian, associate librarian or full librarian) and whose duties and responsibilities are fifty per cent or more of the full status employees in the same classification in the same academic unit.

15. A certificate will issue to the applicant.

"Arthur Haladner"

For the Board

9th July, 1979

[1984 OLRB Designation of Sessional Bargaining Unit (for reference only)]

ONTARIO LABOUR RELATIONS BOARD

FILE NO. 3329-93-R

BETWEEN:

Laurentian University Faculty Association, "Applicant"
and
Laurentian University of Sudbury, "Responding Party"

CERTIFICATE:

Upon the application of the applicant and in accordance with the provisions of The Labour Relations Act, THIS BOARD DOTH CERTIFY Laurentian University Faculty Association as the bargaining agent of all the faculty including part-time professional librarians employed by Laurentian University of Sudbury in the City of Sudbury, save and except administrators at or above the rank of Director, Academic Staff, at or above the rank of Dean, Registrar, Special Assistant to the President, Manager of Employment and Staff Relations, Translators, Director of the Library, Members of the Board of Governors and athletic coaches required as part of their duties to teach degree credit activity courses.

This certificate is to be read subject to the terms of the Board's decision(s) in this matter and, accordingly, the bargaining Unit described herein is to be read subject to any qualifications referred to in the said decision(s) of the Board.

DATED at Toronto this 28th day of March, 1994.
ONTARIO LABOUR RELATIONS BOARD

T.A. Innis
Registrar

The above description of the bargaining unit is subject to the following qualifications:

CLARITY NOTE:

For the purposes of clarity, the parties agree that the bargaining unit does not include full-time faculty on reduced assignments, persons employed through the Centre for Continuing Education, persons employed to teach courses primarily for students who are not registered in a degree credit programme, persons not assigned responsibility for teaching one or more degree credit courses such as Teaching Assistants, Field Consultants in Social Work, Clinical Teachers in Nursing, technicians, laboratory, clinical or outdoor school instructors in courses coordinated by faculty members.

APPENDIX B

[Prefacing notes in the Memorandum of Agreement adding clauses to the
1992-95 Collective Agreement concerning employment of
Sessional (part-time) faculty (for reference only)]

Memorandum of Agreement

BETWEEN:

The Laurentian University Faculty Association
and
The Board of Governors of Laurentian University of Sudbury

RE: Terms and Conditions of Employment of the Sessional (part-time) Bargaining Unit.

Whereas a decision of the Ontario Labour Relations Board dated 31 October 1995 (a copy of which is attached as an appendix) and the ratification of this Memorandum of Agreement give effect to a Merger of the previous Full-time Faculty Bargaining Unit and the previous Sessional Faculty Bargaining Unit, the 1992-1995 Collective Agreement between the above Parties, subject to the following variations, shall be read as a single Collective Agreement between the Parties, covering all Members of the new Merged Bargaining Unit of Full-time and Sessional Members.

This Memorandum of Agreement shall be in force for the period from 1 July 1994 to 31 March 1996, the latter date being the date to which LUFA 1992-1995 has been extended, pursuant to a notice given under section 35 of the Social Contract Act (Bill 48).

Sessional Members of the Bargaining Unit shall be covered by the same Collective Agreement articles as Full-time Members under Sections 0 (The Agreement), 1 (Relations Between the Association and the Board), and 8 (Duration of the Agreement) of the LUFA 1992-95 Collective Agreement, unless otherwise indicated. Sessional Members of the Bargaining Unit shall also be covered by Articles 2.00 (Rights, Responsibilities and Duties of Academics - A1 Teaching and A2 Professional Librarianship, only) 2.30 (Personnel Files), 2.40 (Disciplinary Measures), 3.0 (Recognized and Other Holidays), 3.33 (Court Leaves), and 3.52 (Compassionate Leave). Additional Articles relevant to Sessional Members only bear number designations not used in LUFA 1992-95.

All other provisions, those covered by sections 2, 3, 4, 5, 6, and 7, of the LUFA 1992-95 Collective Agreement shall apply to Sessional Members only when specifically indicated in this Memorandum of Agreement.

(The clauses of the Memorandum of Agreement appear at the appropriate places in the 1996-97 Collective Agreement)

DATED at Sudbury, 17 November 1995.

For Laurentian University
Faculty Association

"R.D. Schell", M.A., D.Phil.
LUFA Chief Steward

"Wendy Jerome", Ph.D.
LUFA President

"Gary MacCoubrey", M.A.

"Leda Culliford", M.A.

For the Board of Governors of
Laurentian University of Sudbury

"Hermann Falter", Ph.D.
Director, Academic Staff Relations

"Ron Chrysler", C.A.
Vice-President, Administration

"Geoff Tesson", Ph.D.

LAURENTIAN UNIVERSITY FACULTY
SPECIAL VOLUNTARY EARLY RETIREMENT PLAN

1. Laurentian University plans to extend the Special Voluntary Early Retirement Plan for full-time faculty members, hereafter called the Member, with effect from July 1, 2000. The purpose of this program is to facilitate renewal of faculty to the extent that this is possible without increasing budgetary expenses or jeopardizing academic programs. Faculty renewal is expected to have a positive impact on the organization through the revitalization of academic departments and by helping to reduce hiring problems anticipated in the future.
2. In the current financial climate, renewal is possible only if some senior faculty choose to retire early. The Special Voluntary Early Retirement Plan will provide an early retirement incentive to help make early retirements possible. These programs are separate from the Pension Plan, and are to be funded through savings in the operating budget owing to replacement at lower salary levels.
3. The opportunity for this plan is provided by the fact that this program, to a large degree, would be self-financing and that there will be no or minimum increase in cost to the University.
4. To be eligible for Special Voluntary Early Retirement, the Member must be:
 - a) five (5) years or less from the attainment of his/her Normal Retirement Date, and
 - b) have completed at least fifteen (15) years of full-time service at Laurentian University as of the proposed date of commencement of Special Voluntary Early Retirement.
5. On any July 1 (January 1), a Member who is eligible under the requirements described in the previous paragraph may choose to take Special Voluntary Early Retirement. In such a case the Member shall apply in writing to the Dean/Director of the Library of his/her Faculty/Library by no later than the previous October 1 (April 1).
6. A Member who does not fully meet the eligibility criteria may apply through the Dean/Director of the Library of his/her Faculty/Library for individual consideration. Each application will be assessed on its merits. If the proposed early retirement is judged to be of benefit to both the Member and the University, the early retirement incentive as set out in this plan will be made available. The University will consider applications from individuals who are up to eight (8) years from attainment of their retirement date. Key consideration for approval of such applications will be potential

recruitment problems for a replacement and the financial benefit of the University associated with the proposal.

7. The granting of a Member's application may, but will not normally be delayed by decision of the University. Such a delay may occur once only and will be for a period of six months to one year.

8. A Member shall be notified by the Vice-President, Academic by December 1 (June 1) in the year that the Member has applied for Special Voluntary Early Retirement if the application has been granted for Special Voluntary Early Retirement to commence the following July 1 (January 1) or is to be delayed for six months or one year. The Member must confirm his/her decision to take Special Voluntary Early Retirement by February 1 (August 1) immediately preceding the July 1 (January 1) when the Special Voluntary Early Retirement period would commence. The Member's confirmation will render the decision final.

9. A Member eligible for Special Voluntary Early Retirement may request, before October 1 (April 1), a statement of the early retirement incentive and benefit costs for the following year. All members applying for Special Voluntary Early Retirement will automatically receive such a statement. The Member will receive the statement no later than November 1 (May 1). A Member eligible for early retirement shall be entitled to receive a one-time reimbursement of up to \$400 for the services of a financial consultant (receipts required).

10. A decision to opt for Special Voluntary Early Retirement is final, and the Member may not return to full-time or part-time employment at Laurentian University unless requested and agreed to by the University.

11. The Special Voluntary Early Retirement Period for the individual Member will be from the commencement date of Special Voluntary Early Retirement and will continue until the earlier of the Member's normal retirement date or death or to a maximum of five (5) years.

12. During the initial year of Special Voluntary Early Retirement, the Member shall receive an early retirement incentive of 1.75% of salary (last year of his/her full-time employment) times years or fractions thereof of full-time service at early retirement to a maximum of 50% of the aforementioned salary. (Leave of absence without pay is not included in the calculation of a Member's years of service. Years of service under Reduced Voluntary Workload, Article 3.31, will be prorated according to the percent workload reduction). The Vice-President may, after discussion with the Member concerned, increase the incentive percentage to address particular concerns. Any increase in the incentive percentage over the formula amount must be communicated with explanation to the Association.

13. During the subsequent years of Special Voluntary Early Retirement, the Member shall receive an early retirement incentive increased each year by the percentage increase of the faculty scale.

14. While on Special Voluntary Early Retirement, the Member may wish to continue to participate in the Laurentian University Retirement Plan. In such case the University's share of contributions will be deducted from the early retirement incentive. The contributions will be based on the salary of the last year of his/her full-time employment escalated annually by the percentage increase of the faculty salary scale. Furthermore, the Member will be eligible for the minimum guaranteed pension based upon the aforementioned escalated salary and years of Special Voluntary Early Retirement of paid pension contributions. In this case the Member will be considered to be on leave with pay and will be required to pay CPP and UIC contributions and will not be eligible to the roll-over provisions described in the next paragraph. The aforementioned is subject to the current Revenue Canada Regulations.

15. If the Member chooses not to continue contributing to the Laurentian University Retirement Plan, then he/she could be treated as though he/she had terminated his/her employment with Laurentian. In that case, the incentive payments could be treated as a retiring allowance so they would be eligible for roll-over to an RRSP up to the legal limit. The allowable roll-over amount may be spread over the years of the Special Voluntary Early Retirement and the remaining incentive amount would be considered income for the sake of calculating the annual RRSP contribution limit. In this case there would be no deductions for CPP and UIC and the employer's cost would be added to the early retirement incentive. The Member could collect his/her pension in addition to the incentive if he/she so desired. If the Member is at least 60 years of age, he/she may be eligible for full or partial CPP benefits, provided he/she has contributed to the plan. For more information, or to get application forms, call the Income Security Programs Office, which is listed under Human Resources and Labour Canada of the Government of Canada. The aforementioned is subject to the current Revenue Canada Regulations.

16. During the Voluntary Early Retirement period, the benefits will apply as follows:

a) Members considered to be on leave with pay will retain participation in the Group Life Insurance, Dependent Group Life, Accidental Death and Dismemberment, Hospital Care, Extended Medical (including ManuAssist) and the Retirees Health Benefit Plan. Participation in the Dental Plan is optional. The long-term disability benefit cannot be continued. Members may also be exempt from the hospital care and extended medical coverage if they have similar coverage through the group plan of a spouse.

b) Members no longer considered employees may choose to retain participation in Group Life Insurance, Dependent Group Life, Accidental Death and Dismemberment, Hospital Care, Extended Medical (including ManuAssist) and the Dental Plan. The long-term disability benefit cannot be continued. Continued participation in these plans will entitle the Member to receive a subsidy under the Retirees Health Benefit Plan at normal retirement age.

The cost sharing of the premiums for these benefits will be split according to the cost sharing arrangement in the Faculty Collective Agreement. The life insurance coverage will be based on three (3) times the early retirement incentive to a maximum of \$200 000. If improvements in benefits are provided in subsequent Collective Agreements these improvements shall be extended to the retirees on Special Voluntary Early Retirement. Members who go on Special Voluntary Early Retirement will not be eligible for sick leave. The employer's cost of those benefit plans in which the Member does not retain participation will be added to the early retirement incentive. The employer's cost will be based on the premium charged by the carrier and will not include the Provincial Sales Tax.

17. Should the Member die during the Special Voluntary Early Retirement Period, the payment will cease at the end of the month the death occurred. Benefits and Pension contributions will also terminate as of the end of the month of the Member's death.

18. A Member taking Special Voluntary Early Retirement would enjoy all retiree privileges as well as tuition fee waiver.

19. Admission to the Special Voluntary Early Retirement Plan will be available under this plan for a five (5) year period i.e. from July 1, 2000 to June 30, 2005. If during this period the mandatory retirement age of sixty-five (65) becomes inapplicable to Laurentian University faculty employees, or if the Laurentian University Retirement Plan is amended to provide for additional early retirement provisions to Laurentian University faculty employees, the Special Voluntary Retirement Plan will be reviewed at that time.

20. The provisions of this Special Voluntary Early Retirement Plan shall apply as of the date of approval by the Board of Governors. These provisions may be amended and/or extended for a further period with the agreement of both the Board and the Association. Such decision will be made prior to June 30, 2004. Early-retired Members at the time of amendment or termination of these provisions will not be disadvantaged by such amendment or termination.

The parties hereby agree to unanimously recommend this Plan to their respective principals.

On behalf of the University

On behalf of the Laurentian
University Faculty Association

Hermann Falter

Anis Farah

Ronald E. Chrysler

M.A. Beauvolks

Ronald Slater

Dated at Sudbury, Ontario, this 7th day of September, 1999.

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
and
LAURENTIAN UNIVERSITY OF SUDBURY

**RE: Mutually Beneficial Arrangements for Leaves, Study Leaves
and Outplacement Leaves**

The parties agree that in the current climate of financial restraint opportunities may exist for combining temporary reduction in budgets with opportunities for faculty academic and professional development through flexible and innovative approaches to leaves of absence, study leaves etc.

The parties agree to explore and, if possible, implement proposals from each other and faculty members that meet the above criteria.

DATED AT Sudbury, Ontario this 24th day of June, 1999.

Dr. Anis Farah
for Laurentian University
Faculty Association

Dr. Hermann Falter
for Laurentian University
of Sudbury

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
AND
LAURENTIAN UNIVERSITY OF SUDBURY

RE: Ongoing Review of Benefits Program for Retired Employees

THE PARTIES AGREE that the Benefits Committee should continue to review the benefits for retired employees within the parameters of the original mandate with the view of:

- a) finding options to improve the existing benefits plan; and
- b) investigating to what extent benefits of the existing plan can be used to offset costs of improving a spousal benefits plan with a different employer; the committee will inform the parties and the retired members of the outcome of the investigation as soon as it has been completed.

DATED AT Sudbury, Ontario this 23rd day of September 1999.

Dr. Anis Farah, for
Laurentian University
Faculty Association

Dr. Hermann Falter, for
Laurentian University of Sudbury

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
AND
LAURENTIAN UNIVERSITY OF SUDBURY

RE: Early Retirement and Voluntary Severance Packages

THE PARTIES AGREE that any early retirement or severance procedures that are not provided for in this Collective Agreement will be subject to prior approval by the Parties before they are offered to the faculty.

THE PARTIES FURTHER AGREE that individual early retirement or severance agreements that are not provided in this Collective Agreement shall be subject to LUFA approval by way of Memoranda of Agreement.

DATED AT Sudbury, Ontario this 24th day of June 1999.

Dr. Anis Farah, for
Laurentian University
Faculty Association

Dr. Hermann Falter, for
Laurentian University of Sudbury

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
AND
LAURENTIAN UNIVERSITY OF SUDBURY

RE: Committee on Faculty Renewal

THE PARTIES AGREE to establish, for the duration of the Collective Agreement, a committee to devise a strategy for faculty renewal as a consequence of the impending retirement of a relatively large number of faculty over the next several years. The Committee will consist of two representatives of the Faculty Association (the president of the Association or his/her representative and one other faculty member) and two representatives of the Administration. Each of the Parties chooses its own representatives. The Committee will report to the Parties by April 1 in each year of the Agreement.

DATED AT Sudbury, Ontario this 29th day of June 1999.

Dr. Anis Farah, for
Laurentian University
Faculty Association

Dr. Hermann Falter, for
Laurentian University of Sudbury

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
and
LAURENTIAN UNIVERSITY OF SUDBURY

Re: Pension Committee

WHEREAS the Parties acknowledge that there is a need to review various issues relating to the operation of the existing Pension Plan and the Pension Committee; and

WHEREAS the Parties acknowledge the interest of other employee groups in the outcome of such a review.

THE PARTIES AGREE to undertake to establish a committee with two representatives chosen by LUFA and two representatives chosen by the Board to undertake the following:

1. Examine the potential merits and implications of establishing a separate Pension Plan or Pension Fund for LUFA and other current members of the Pension Plan.
2. Review the current composition of the Pension Committee with a view to address the issue of adequate representation of LUFA on this Committee.
3. Investigate changes that can be made to address concerns of employees affected by the current Revenue Canada limitation on maximum pension benefits that can be paid under the minimum guarantee provisions of the Plan.

THE PARTIES AGREE that a report on the results of this review will be prepared by March 31, 2000.

THE PARTIES AGREE that in view of the importance of this review to the interests of other employee groups, the committee will seek and encourage input from these groups and provide an opportunity to discuss the results of this review with these groups.

DATED AT Sudbury, Ontario this 22nd day of September 1999.

Dr. Anis Farah
for Laurentian University
Faculty Association

Dr. Hermann Falter
for Laurentian University
of Sudbury

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
AND
LAURENTIAN UNIVERSITY OF SUDBURY

RE: Teaching Loads

WHEREAS teaching loads (number of courses and number of students taught) at Laurentian should be examined in relation to teaching loads at other Universities in Ontario; and

WHEREAS the Collective Agreement provides sufficient flexibility for adjusting teaching assignments for individual faculty members, if such adjustments are deemed necessary and desirable; and

WHEREAS teaching loads arise from a complicated interplay of many related factors including the need to provide required courses for Programs (including external accreditation requirements), optional courses to make programs more attractive, pedagogical considerations that lead to limits on sections sizes, very small classes, judgements about the suitability of related courses for various programs, preferences of faculty members for teaching courses in their area of specialization (regular or alternate stream appointments), commitments to offer programs to meet external requirements for special grants (i.e. bilingual grants etc), requirements for replacement of faculty on leaves, graduate programs in the same or related areas, undergraduate thesis projects, WAC/LIP courses, availability of teaching assistants to aid faculty teaching large sections, requirements for laboratories, clinical sections and similar activities, and many other factors; and

THE PARTIES AGREE that given the complexity of the issues to be considered to establish a committee made up of four (4) members chosen by LUFA and four (4) members chosen by the Administration to undertake the following:

- a) Collect comparative data on teaching loads for other Universities for specific areas.
- b) Examine factors that contribute to teaching loads in various areas at Laurentian with the intention of identifying factors that would lead to more efficient use of faculty resources.
- c) Recommend definitive steps to be taken to modify requirements and practices that lead to high teaching loads but do not enhance significantly the quality of programs.
- d) Recommend what fraction of the savings entailed by the changes

should be applied to adjust teaching loads in light of practices at other universities and whether certain tasks should be compensated by some form of additional payment.

- e) Examine the impact of new internet based technology on teaching and workload of faculty, including issues related to purchases of prepackaged courses and their development, as well as support services and training opportunities for such activities.

THE PARTIES FURTHER AGREE that given the magnitude of the task, it is expected that the Committee will not wait until there is a final report covering all areas, but will proceed to recommend implementation of recommendations covering certain sections as soon as, in the committee's view, such action is warranted. It is within the committee's mandate to identify priority areas for examination, however it is understood that the Committee will address the workload issue in the School of Nursing as a priority item. If actions recommended by this committee require a Memorandum of Agreement, the Parties agree to produce such memoranda and if a recommendation requires action by Senate, the Parties agree to co-sponsor appropriate motions to Senate. The committee will submit a progress report to the Parties by April 30, 2000 and every six months thereafter.

DATED AT Sudbury, Ontario this 22ND day of September 1999.

Dr. Anis Farah, for
Laurentian University
Faculty Association

Dr. Hermann Falter, for
Laurentian University of Sudbury

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
AND
LAURENTIAN UNIVERSITY OF SUDBURY

RE: Guidelines and Procedures to Assure a Safe Working Environment

THE PARTIES AGREE that all employees of the University, faculty, staff and administrators have the right to carry out their responsibilities in a secure environment, without being subjected to verbal or physical intimidation or threats from students or other University employees.

To that end, THE PARTIES AGREE to establish a committee of nine (9) members drawn from LUFA (3), LUSU (2), LUAPSA (1), the senior administration (1), students (1) and security staff (1) to undertake the following:

- a) a review of existing policies and practices for dealing with threatening or abusive behaviour;
- b) organize public sessions to encourage dissemination of available information and input into revised policies and procedures;
- c) draw up written guidelines and procedures for dealing with such behaviour.

THE PARTIES FURTHER AGREE to cooperate in this undertaking to produce new written guidelines by April 1, 2000, for ratification by the Board.

Date at Sudbury, Ontario this 8TH day of September 1999.

Dr. Anis Farah, for
Laurentian University
Faculty Association

Dr. Hermann Falter, for
Laurentian University of Sudbury

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
AND
LAURENTIAN UNIVERSITY OF SUDBURY

RE: Alternate Stream Workload

THE PARTIES AGREE that within sixty days of the signing of this agreement, the Dean of Professional Schools, the Director of the School of Nursing, an alternate stream Member, a LUFA representative, and a Vice-President, Academic shall report to the Parties on the issue of workload for the alternate stream.

THE PARTIES FURTHER AGREE that should a mutually acceptable agreement between the Board and the Association not be reached as a result of this Committee's deliberations, the issue of workload for alternate stream members shall be resolved through arbitration by Mr. Martin Teplitsky at no cost to the Parties.

Date at Sudbury, Ontario this 11TH day of September 2002.

'Dr. Anis Farah'

for
Laurentian University
Faculty Association

'Dr. Hermann Falter'

for
Laurentian University of Sudbury

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
AND
LAURENTIAN UNIVERSITY OF SUDBURY

RE: Committee on Long Term Disability

WHEREAS the Parties acknowledge that there is an ongoing need to address concerns related to Long Term Disability claims.

AND WHEREAS there is currently a working group established by the Benefits Committee reviewing a number of issues relating to the current long term disability coverage.

AND WHEREAS the Parties acknowledge the interest of other employee groups in the outcome of such a review.

THE PARTIES HEREBY AGREE to establish a committee with two representatives chosen by LUFA and two representatives chosen by the Board to:

1. Compare the incidence of claims in Laurentian's LTD program with that of programs at other Ontario universities and the Sudbury region.
2. Compare regional incidence of LTD claims with that of other Ontario regions.
3. Identify possible causes of the apparent high incidence rate of LTD at Laurentian.
4. Make recommendations to the parties where appropriate.

THE PARTIES FURTHER AGREE that it is not intended that this Committee duplicate the work of the working group established by the Benefits Committee but rather that it build upon the data already considered by this group and expand the scope of the work to concentrate on the causes of the apparent high incidence rate at Laurentian.

THE PARTIES FURTHER AGREE that the Committee shall report its findings by March 31 of each year until the Committee concludes that its work has been completed.

THE PARTIES FURTHER AGREE that in view of the importance of this review to the interests of other employee groups, the Committee will seek and encourage input from these groups by offering LUSU to name two representatives, the Administrative Staff Association to name one representative to the Committee, and one representative from the Federated

Universities.

THE PARTIES FURTHER AGREE that for the first year, the representatives shall be appointed within 30 days of the signing of this Agreement, or by September 30, whichever comes later, and that in future years, by September 30.

THE PARTIES FURTHER AGREE that once selected, the members of the Committee shall select their own chair that shall convene meetings, and their own vice-chair that shall perform this function in the absence of the chair.

Date at Sudbury, Ontario this 5TH day of September 2002.

'Dr. Anis Farah'
for
Laurentian University
Faculty Association

'Dr. Hermann Falter'
for
Laurentian University of Sudbury

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
AND
LAURENTIAN UNIVERSITY OF SUDBURY

RE: Criteria for Promotion

RE: CRITERIA FOR PROMOTION

THE PARTIES HEREBY AGREE THAT without prejudice or precedent and in recognition of the fact that the criteria for promotion have changed, the following promotions are granted:

Jean-Charles Cachon
Richard Carrière
Ozhand Ganjavi
Léo Leduc
Kathryn Molohon
Gerry Tapper

THE PARTIES FURTHER AGREE THAT all grievances and harassment claims related to the decision not to affirm the FPC decisions are withdrawn in writing as a condition of promotion in each individual case.

Date at Sudbury, Ontario this 12TH day of September 2002.

'Dr. Anis Farah'
for
Laurentian University
Faculty Association

'Dr. Hermann Falter'
for
Laurentian University of Sudbury

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
AND
LAURENTIAN UNIVERSITY OF SUDBURY

RE: Pension and Benefits

THE PARTIES HEREBY AGREE THAT the following changes will be made to the benefit coverage effective November 1, 2002.

Life Insurance: 3 x annual salary to a maximum of \$300,000.

Vision Care Expenses: maximum of \$300 every two years.

Dental Plan: payment shall be made in accordance with the current rate schedule as established by the Ontario Dental Association.

THE PARTIES FURTHER AGREE to implement a supplementary pension plan for all Members who retire after July 1, 2002 as proposed by the plan's actuary in his letter dated February 17, 2000.

Date at Sudbury, Ontario this 11TH day of September 2002.

'Dr. Anis Farah'
for
Laurentian University
Faculty Association

'Dr. Hermann Falter'
for
Laurentian University of Sudbury

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
AND
LAURENTIAN UNIVERSITY OF SUDBURY

RE: Policies and Procedures

THE PARTIES HEREBY AGREE to produce a complete listing of University Policies and Procedures within sixty days of the signing of the Collective Agreement and to provide a copy of this listing to all Members in the form of an addendum to the Collective Agreement. This listing will identify how Members can access these policies and procedures.

THE PARTIES FURTHER AGREE that one member of the senior administration and one member nominated by LUFA will oversee this task.

Date at Sudbury, Ontario this 12TH day of September 2002.

'Dr. Anis Farah'
for
Laurentian University
Faculty Association

'Dr. Hermann Falter'
for
Laurentian University of Sudbury

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
AND
LAURENTIAN UNIVERSITY OF SUDBURY

RE: Policy Grievance 2002-05

THE PARTIES HEREBY AGREE THAT the Policy Grievance 2002-05 for an alleged failure to pay a share of gross increased revenue pursuant to Article 1.40 and Article 4.00 is withdrawn.

Date at Sudbury, Ontario this 11TH day of September 2002.

'Dr. Anis Farah'

for

Laurentian University
Faculty Association

'Dr. Hermann Falter'

for

Laurentian University of Sudbury

Letter of Understanding

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
AND
LAURENTIAN UNIVERSITY OF SUDBURY

RE: Retirees Health Benefits

THE PARTIES HEREBY AGREE THAT effective July 1, 2002, the Retirees Health Benefit will be increased to \$800 per year for a family and \$400 per year for a single individual.

Date at Sudbury, Ontario this 12TH day of September 2002.

'Dr. Anis Farah'
for
Laurentian University
Faculty Association

'Dr. Hermann Falter'
for
Laurentian University of Sudbury